

BASIC INTRODUCTION TO FAMILY LAW FOR PARALEGALS



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Basic Introduction to Family Law for Paralegals

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Licensing

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1: Basic Introduction to Family Law

What is Family Law?

The practice of Family Law deals with laws, regulations, and court procedures that impact both marital and non-marital family units. The laws dictate how certain relationships are created, the rights and obligations arising from those relationships, and how those relationships are terminated. The types of relationships impacted include those between married and unmarried adult partners, between parents and children, and between other “parent-like” adults and children. When people need information about family law, it is usually because they are going through—or considering—significant changes in their lives, such as getting married, divorced, or separated; becoming a parent; or adopting a child.

In Wisconsin, Family Law generally includes the following topics:

- Requirements for marriage
- Premarital, post-marital, cohabitation, and separation agreements/contracts
- Treatment of income and property during marriage
- Rights and obligations of parents and children in marital and non-marital relationships
- Determination of parentage outside of a heterosexual marital relationship (paternity, adoption, surrogacy)
- Treatment of income and property upon termination of marriage
- Rights and obligations of parents, children, and other adults upon termination of marriage

Legal practitioners engaged in family law practice may also provide legal services related to

- Actions relating to abused or neglected children
- Actions relating to juvenile crime and justice matters

Typical Paralegal Family Law Tasks and Responsibilities

As with most litigation-based practice areas, paralegals working with family law attorneys are responsible for many different types of tasks, including:

- Pre-client screening and conflicts-checking
- Client interviews
- Opening and managing the client’s internal file
- Assisting the client with locating, obtaining, producing, and organizing information and documentation relevant to the client’s legal matter
- Drafting legal correspondence to the client, witnesses, court personnel, and other parties/counsel involved in the client’s legal matter
- Conducting factual investigation and legal research regarding the client’s legal matter
- Drafting contracts, pleadings, discovery, and other documents necessary to fulfill the agreed-upon legal services to the client
- Receive, organize, and summarize documents and other information received from third parties in response to document requests, interviews, and discovery
- Liaison between the client and the attorney with respect to providing legal information to the client and requesting legal advice from the attorney
- Maintaining contact with lay witnesses, expert witnesses, agencies, and other personnel as needed to effectuate the attorney’s plan and client’s wishes
- Assisting the attorney with court proceedings, negotiation/mediation, and preparing the client for court hearings/trials
- Managing deadlines, calendars, and tasks lists relating to the client’s legal matter
- Staying current in State and Federal laws, regulations, and case law impacting the client’s legal matter
- Maintaining awareness of current trends in technology and social media that may impact the client’s legal matter

Family Law is one of the most client-contact intensive practice areas for paralegals. It can also be one of the most emotionally charged practice areas. As such, successful family law paralegals have strong empathy and interpersonal skills, as well as the ability to set aside personal biases toward various situations or diverse persons. Maintaining a healthy work/life balance by placing appropriate boundaries and compartmentalizing is also key to a rewarding practice. Other personal attributes and skills necessary to providing effective legal services include strong written and oral communication skills, attention to detail, time management skills,

ability to work independently and as a member of a legal team, flexibility, adaptability, ability to work in a fast-paced and sometimes stressful environment, and well-developed research and investigation skills.

Ethics in Family Law Practice

As with all practice areas, the American Bar Association's *Model Rules of Professional Conduct* and Wisconsin's *Rules of Professional Conduct* apply to Family Law practice. Attorneys are responsible for their own conduct and have the duty to ensure personnel they supervise – associate attorneys, paralegals, and other legal staff – do not engage in conduct that would violate the rules. While all of the rules apply, it is helpful to examine the rules that come up the most often and that can be particularly troublesome in a Family Law practice.

Rule 1.1: Competence

This Rule requires legal practitioners to provide clients with competent representation, which is defined as “the legal knowledge, skill, thoroughness and preparation reasonably necessary for the representation.” (Wisconsin Supreme Court Rule 20:1.1). As mentioned above, family law matters can sometimes implicate other areas of law; thus, it is important that legal practitioners do not attempt to represent clients in complex legal matters requiring legal knowledge and skill outside of their actual competence. For example, Bankruptcy is a highly specialized area of law that often comes up in family law matters involving a significant amount of debt. Legal practitioners without training and experience in Bankruptcy law should consider referring family law clients with potential Bankruptcy concerns to a bankruptcy attorney.

Rule 1.4: Communication

This rule requires legal practitioners to keep clients informed about their legal matters by promptly communicating and consulting with clients and providing information as requested. (Wisconsin Supreme Court Rule 20:1.4). Especially in an emotionally charged family law matter, clients are much more satisfied with their representation – and much less likely to lodge ethical complaints – when they are regularly informed about the status of their case.

Rule 1.5: Fees

This rule requires legal practitioners to charge reasonable fees based on time, labor, and skill required to competently perform the desired legal services (among other factors). The rule also requires that the scope of the representation and how the fee is calculated be explained in writing unless the total cost will be less than \$1,000. Finally, with respect to Family Law matters, contingent fees are prohibited. (Wisconsin Supreme Court Rule 20:1.5). Most fee agreements for Family Law matters are based on hourly charges for attorney and paralegal time. Additionally, a chargeable advance fee (also sometimes called a retainer fee) is typically collected when the client signs the fee agreement. The amount of the advance/retainer fee varies, but its purpose is to act as a “deposit” sufficient to cover anticipated costs and time required for at least the early stages of the representation. Fees for time spent by attorneys and paralegals are deducted from (or charged against) the advance/retainer fee at first, and then are typically billed to the client monthly.

Rule 1.6: Confidentiality

This rule **prohibits** legal practitioners from **ever** revealing or disclosing **any and all information** relating to the client's representation, regardless of the source of the information, without the client's express consent. There are circumstances, however, that require legal practitioners to reveal otherwise confidential information. (Wisconsin Supreme Court Rule 20:1.6). Sometimes during a family law matter it becomes clear that the client intends to commit “a criminal or fraudulent act that ... is likely to result in death or substantial bodily harm or ... substantial injury to the financial interest or property of another.” For example, a client may communicate a threat to physically harm someone or to fraudulently dispose of assets; in that situation, the legal practitioner is required to take action to prevent those circumstances from occurring, or, if they have already occurred, to rectify or minimize the damage. A related rule requires legal practitioners to prevent perjury (lying under oath) or to reveal to the Judge when perjury has occurred. (Wisconsin Supreme Court Rule 20:3.3: Candor toward the tribunal.)

Attorney-Client Privilege

Although not technically an ethical rule, the attorney-client privilege is one of the ways confidential client *communication* is protected. The privilege prohibits disclosure of any communications (written or oral) between the client and the attorney or the attorney's staff that relates to legal services provided to the client. This privilege becomes effective if confidential information is obtained, even if the person does not subsequently retain the law office in the legal matter. For that reason, it is important not to

obtain confidential information from persons until they have signed our fee agreement officially establishing a paid attorney-client relationship.

Attorney Work Product Protection

The attorney work product rule protects *activities* performed by the legal team on the client's behalf from disclosure. Protected activities include factual investigation, legal research, notes, memoranda, strategies, preparation and organization performed by the attorney, paralegal, or other legal staff.

Rule 1.7: Conflicts of Interest – Current Clients

This rule prohibits representation that is adverse to or could injure the interests of another client. The rule requires legal practitioners to avoid situations in which they may need to choose between the interests of:

- Multiple current clients
- A current client and a former client or other person from whom the legal practitioner has obtained confidential information
- A current client and the business or personal interests of the legal practitioner

(Wisconsin Supreme Court Rule 20:1.7).

Tricky situations arise when multiple persons involved in a Family Law matter want to use the same attorney for legal advice/representation; this is known as **multiple representation**. Most often, this occurs when both spouses want a divorce and they have no children and no marital assets to divide, which is sometimes called a “friendly” or uncontested divorce. Even in this circumstance, the representation of both parties is ill-advised, even if both parties sign a statement explaining and waiving this conflict of interest. Unanticipated conflicts can arise during or after the divorce proceedings, putting the legal practitioner in jeopardy of violating this rule.

Rule 1.9: Duties to Former Clients

Equally important is the need to avoid the **former client/current adversary** conflict of interest. In Family Law, the two most common ways this conflict arises are:

✓ Example 1.1

A new client wishes to hire the legal practitioner to modify or challenge an order or judgment previously entered in a case in which the legal practitioner represented the opposing party (the former client). For example, suppose that our office represented Lia in her divorce from Shaun; five years later, Shaun wants our office to represent him in requesting a reduction in the amount of child support he was ordered to pay to Lia. Even though our representation of Lia terminated five years ago when the judgment of divorce was entered, we would be using confidential information we obtained from Lia during the divorce proceedings against her in the post-judgment proceedings.

✓ Example 1.2

An employee of the law office represented the opposing party while employed with a different law office in the same legal matter or in a legal matter substantially related to the current legal matter. For example, suppose that after our office represented Lia in her divorce from Shaun, we hired Mateo, a paralegal who previously worked for the law office that represented Shaun in the divorce action. Three years after the final judgment was entered Lia again retains our office to seek an increase in her spousal support. The confidential information Mateo obtained from Shaun travels with him, again making Shaun a former client/current adversary, even though our office never represented Shaun. This would be the case even if Mateo's previous employer represented Mateo in a personal injury claim that occurred while Lia and Shaun were married. Because a judgment in the personal injury claim might impact a claim for spousal support, the matters are closely related and Mateo may possess confidential information obtained from Shaun that could be used against Shaun in the spousal support claim. In that case, our office would need to inform Shaun of the potential conflict and take steps to screen Mateo from any involvement in the spousal support claim. This is accomplished by implementing an ethical wall around Mateo so that he never works on the spousal support case and does not discuss any aspect of either that case or Shaun's personal injury case with anyone.

Rule 4.2: Communication with Person Represented by Counsel and Rule 4.3: Dealing with Unrepresented Person

These rules govern contact with persons involved in the legal action who are not clients. Typically, these are opposing parties. If the opposing party is represented by an attorney, all communication between our law office and that party must occur through and be directed to that party's attorney. When the opposing party is **pro se** (self-represented without an attorney), our office is required to inform that party that we do not represent that party and cannot give that party legal advice of any kind (other than advice to retain another attorney). (Wisconsin Supreme Court Rules 20.4.2 and 20.4.3). Many times one of the parties in a family law matter may decide not to hire their own attorney as a way to save money. In that situation, it is imperative to inform that party in writing that we do not represent that party, that our client's interests may be adverse or in conflict with that party's interests, and that we are prohibited from representing that party or providing legal advice.

Unauthorized Practice of Law

As you've learned in other classes, there are certain tasks and activities that can only be performed by a licensed attorney; anyone else who performs them has engaged in unauthorized practice of law, or UPL. Non-lawyers are prohibited from doing the following:

- **Accepting or rejecting a client/legal matter.** In other words, establishing the attorney-client relationship, communicating an intent to establish (or not establish) it, and signing fee agreements, contracts, or correspondence relating to establishing (or not establishing) an attorney-client relationship
- **Setting legal fees.** Only the attorney is allowed to decide the amount and manner (hourly, flat fee, task-based, etc.) in which to charge a client for legal services.
- **Providing legal advice.** Legal advice includes recommending actions or inactions, interpretation of law or documents, evaluation of legal claims or likelihood of success, explaining legal rights or obligations, and the like.
- **Preparing legal documents without attorney supervision.** In other words, any document, pleading, letter, etc., must be reviewed and approved by the attorney before it leaves the law office.
- **Representing clients in Court.** This not only includes personal appearances at hearings or trials but also signing pleadings, motions or other legal documents to be filed in the Court.
- **Terminating the attorney-client relationship.** Only the attorney can determine whether a legal matter has been concluded according to the retainer/fee agreement and communicate its completion with the client. This restriction especially applies to decisions to terminate the attorney-client relationship before the conclusion of the legal matter, for whatever reason.

Ethical Use of Social Media and other Electronic Data in Family Law

The advent of social media has added a whole new dimension to ethical family law practice, and it is continuously evolving. Legal practitioners need to be aware of the evidentiary implications of social media and other electronically stored information on clients in family law matters.

Social media posts, texting, and other forms of electronic messaging are notorious for causing damage to marital and other family relationships. Increasingly, they are also becoming potential sources of evidence for contested cases involving parental fitness, child custody, child placement/visitation, child support, spousal or child abuse, and other legal issues. Care must be taken to make sure clients do not erase or delete electronic information, as that could result in penalties being imposed against the client by the court on the basis of **spoliation of evidence** (intentionally destroying, altering, or concealing evidence).

As a result, with respect to social and electronic media, legal practitioners frequently advise their clients to

- Change their social media privacy settings to "private" and block opposing parties from accessing their social media pages
- Change all of their passwords for social media and email to prevent others from accessing them
- Refrain from posting any information (positive or negative) that relates to the relationship with the other party, children, or matters involved in the legal representation
- Set as private (but do not remove or delete!) past posts to social media
- Do not delete past emails, text messages or other electronic communications with the other party or with other persons that relate to the relationship with the other party, children, or matters involved in the legal representation

Additionally, caution must also be exercised to stay within the limits of the ethical use of social media by legal practitioners during the pendency of a family law matter. As previously mentioned, social media can provide a treasure trove of information that often cannot be accessed through traditional means of discovery such as **depositions** and **interrogatories**.

 Definition: Terms Relating to Discovery

Deposition: Oral questions to another person that must be answered under oath.

Interrogatories: Written questions to the other party that must be answered under oath.

While it is perfectly ethical and acceptable for a paralegal to access and use information that is “public” on social media platforms, it is less clear when the information is “private” or accessible only to “friends.” Would it be ethical for a legal practitioner to “friend” the person with the sole intent of gaining access to otherwise private information? On the one hand, it could be argued that anyone who accepts what appears to be a random friend request does so at their own peril. However, the ethical rules would likely prohibit this contact if the person is an adversary party represented by an attorney. Additionally, legal practitioners have an ethical duty to refrain from engaging in deceptive practices, particularly with respect to non-represented persons. As such, it is probably unethical for a legal practitioner to send a “friend” request that would not have been sent for reasons unrelated to the family law matter. An even murkier question arises if the client is the one who sends the “friend” request. Although the legal practitioner would not be ethically responsible if the client does so without the legal practitioner’s knowledge, it would likely be unethical to direct the client (or any other person) to do so. The rules are definitely not always black and white.

Now you have a basic understanding of what is involved in an ethical Family Law practice. The next chapter will introduce you to the sources of law relevant to family law matters, as well as some of the interplay between other practice areas and Family Law.

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2: Sources of Law in Family Law Practice

Family Law matters are mostly governed by State laws; however, the United States Constitution, as well as an increasing number of Federal laws, also impact this practice area. Below is a table summarizing the Wisconsin and Federal laws that impact different aspects of family law:

Family Law Aspect	Wisconsin Laws	Federal Laws
Marriage requirements	Chapter 765, Wisconsin Statutes	United States Constitution Due Process and Equal Protection clauses (14 th Amendment) US Supreme Court cases regarding same-gender marriage
Contracts impacting marriage	Chapter 766, Wisconsin Statutes Wisconsin case law	United States Constitution Due Process and Equal Protection clauses (14 th Amendment)
Marital income and Property	Chapter 766, Wisconsin Statutes	
Termination of Marriage	Chapter 767, Wisconsin Statutes	
Spousal Support and Property Division	Chapter 767, Wisconsin Statutes Wisconsin case law	Federal Tax laws Bankruptcy laws
Parentage/Paternity/Surrogacy	Chapter 767, Wisconsin Statutes Chapter 891, Wisconsin Statutes Chapter DCF 151, Wisconsin Administrative Code Chapter DCF 102, Wisconsin Administrative Code Wisconsin case law	United States Constitution Due Process and Equal Protection clauses (14 th Amendment) US Supreme Court cases regarding abortion
Child Custody	Chapter 767, Wisconsin Statutes Wisconsin case law	United States Constitution Due Process and Equal Protection clauses (14 th Amendment)
Child Placement and Visitation	Chapter 767, Wisconsin Statutes Wisconsin case law	Parental Kidnapping Prevention Act
Child Placement and Visitation	Chapter 767, Wisconsin Statutes Wisconsin case law	Parental Kidnapping Prevention Act
Child Support	Chapter 767, Wisconsin Statutes Chapter DCF 150, Wisconsin Administrative Code Chapter DCF 102, Wisconsin Administrative Code Chapter DCF 152, Wisconsin Administrative Code Chapter DCF 153, Wisconsin Administrative Code Wisconsin case law	Federal laws regarding enforcement and collection of child support Uniform Interstate Family Support Act
Adoption	Chapter 48, Wisconsin Statutes	United States Constitution Due Process and Equal Protection clauses (14 th Amendment)
Child Abuse and Neglect	Chapter 48, Wisconsin Statutes	
Juvenile Justice	Chapter 938, Wisconsin Statutes	

Subsequent chapters of this textbook will include more in-depth discussions of these laws and how they apply.

Constitutional Considerations in Family Law Matters

Family Law is one of the few State-based practice areas that often involves issues of constitutional rights. As seen above, the portions of the United States Constitution that impact Family Law are the Due Process and Equal Protection Clauses contained in the 14th Amendment. In the context of Family Law, these clauses impact rights related to marriage and children (procreation, contraception, abortion, and child-rearing).

Due Process of Law

The US Constitution provides protection by requiring both **procedural due process** and **substantive due process**. Also, different levels of protection are provided to different types of rights.

Definition: Terms Relating to Due Process

Procedural due process: Fairness in legal actions, notice requirements, opportunity to be heard

Substantive due process: Protection against arbitrary government actions – there must be a logical reason for restrictions on someone’s rights.

Fundamental rights: A right that is (1) specifically guaranteed in the US Constitution; OR (2) implicit in the concept of “ordered liberty;” OR (3) deeply rooted in our nation’s history and tradition.

Non-fundamental rights: A right that is important but does not fall into any of the three categories listed above.

The first step a court must take when a law or action is claimed to violate Due Process is to determine the nature of the right being impacted/restricted. That is, the claimed right is determined to be either **Fundamental** or **Non-fundamental**.

The type of right dictates the amount of “scrutiny” that courts must apply to laws or actions being challenged under either type of due process. The two levels of “scrutiny” applied to each type of right are:

- **Strict scrutiny:** restrictions on **fundamental rights** must be necessary **or narrowly tailored to serve a compelling State interest**.
 - **Narrowly tailored:** the level of restriction must be no more than the minimum amount absolutely necessary to effectively achieve the goal of the action/law
 - **Compelling State interest:** an interest of the “highest order” that is clearly justified by the State’s need to provide for necessities of national or community life
- **Rational-basis test:** restrictions on **non-fundamental rights** must be **reasonably related to a legitimate State purpose**.
 - **Reasonably related:** the level of restriction must be logically connected to achieve the goal of the action/law, and the restriction must be reasonably likely to succeed in achieving that goal
 - **Legitimate State interest:** any government objective the State has the authority to pursue (such as providing for public safety)

The table below summarizes Due Process concepts in Family Law:

Type of Right	Family Law Example	Level of Scrutiny
Fundamental Right	• Marriage • Use of Contraception, reproductive rights • Direct the education and upbringing of one’s children • Abortion without undue burden	Strict Scrutiny (the restriction on the right must be narrowly tailored to meet a compelling State interest)
Non-fundamental Right	• Private sexual activity between consenting adults • Grandparents’ rights to have a relationship with their children	Rational-basis test (the restriction on the right must be reasonably related to a legitimate state interest)

Equal Protection of the Law

The US Constitution requires the government to treat all groups or classes of people the same, in like circumstances. Challenges are based on claims that a law or action is treating similarly situated groups of people unequally without proper justification. Similar to Due Process, the level of protection is highest when the alleged discrimination involves a **fundamental right**. In addition to determining the type of right involved, an Equal Protection Clause analysis requires courts to determine the nature of the **class of persons** being impacted/treated differently. There are three levels of classifications of protected persons: suspect class, quasi-suspect class, and any other class.

Definition: Terms Relating to Classes of Persons

Suspect class: A group of people classified based on their race, national origin, or place of birth

Quasi-suspect class: A group of people classified based on their gender or being born outside of marriage

Any other class: A group of people that do not meet the definition of suspect or quasi-suspect classes

As you might expect, any law or action that unequally impacts persons in a suspect class faces strict scrutiny, and a law or action that impacts “any other class” need only pass the rational-basis test. For persons in a quasi-suspect class, the law or action must pass the **intermediate-scrutiny test**: the classification must be *substantially related* to serving an *important* State interest.

The table below summarizes Equal Protection of the Law concepts in Family Law:

Type of Classification	Family Law Example of a Violation	Level of Scrutiny
Suspect Class	Disallowing marriage between persons of two different races	Strict Scrutiny (classification must be narrowly tailored to meet a compelling State interest)
Quasi-suspect Class	- A statute that allows female ex-spouses to receive spousal support (alimony) but not male ex-spouses - A statute that allows children born during marriage to inherit from their parents but not children born outside of marriage	Intermediate scrutiny test (classification must be substantially related to serving an important State interest).
Non-suspect or non-quasi-suspect class	An ordinance allowing apartment complexes to restrict tenants to persons with a high school diploma	Rational-basis test (classification must be reasonably related to a legitimate state interest)

How the US Constitution impacts specific issues or causes of action in Family Law practice will be discussed further in later chapters.

Interplay Between Family Law and Other Areas of Law

Although many family law matters appear “simple” and straightforward, that is not always the case. The issues that frequently arise in family law matters can sometimes implicate other areas of law. At a minimum, Family Law attorneys and paralegals must develop the ability to recognize when other areas of law are implicated and must be aware of the limits of their own competence to assist clients in these areas.

Example 2.1

Suppose your law office represents Lia, who retained the law firm while living in Minnesota. The supervising attorney receives the following email from Lia:

After 5 years of attempting to salvage my marriage, I will be moving back to Wisconsin with my children to live as a tenant in my parents’ basement beginning on the first day of next month. I’m hoping they will help me with food and other expenses for me and my children since I have to quit my job to move, and we have a mountain of debt. My husband, Shaun, is aware I

intend to file for divorce and he is not happy about it. He left a voicemail on my cellphone threatening me. Shaun told me if I file for divorce, he'll make sure I regret it, and that I "won't see a penny" from him or from his construction business. My three younger children are moving with me, but I have no idea where my 14-year-old son is – he's probably with his father or with his high school friend and getting into more trouble. I need to see you ASAP.

In addition to Family Law relating to divorce, spousal support, property division, child custody, child placement, and child support, here are some other areas of law that might be implicated by this scenario:

- Bankruptcy Law, depending on the enormity of the parties' debt
- Business/Corporate Law, particularly as it relates to ownership interests in Shaun's business.
- Civil Procedure, as it relates to where and how an action for divorce can/must be brought, service of process, and rules of evidence, as well as enforcement of court orders
- Contract Law, as it relates to the parties' debts, business dealings, or other agreements
- Criminal Law, as it relates to the threats or potential domestic violence or criminal non-support by Shaun
- Juvenile Law, as it relates to the whereabouts and potential criminal activity of the parties' 14-year-old son
- Property Law in Minnesota, as it relates to any personal or real property owned by the parties in Minnesota
- Tax law, as it relates to the parties' past and future tax returns and the impact of a divorce action/court orders for support, property division, etc.
- Tort Law, as it relates to potential claims against Shaun, or responsibility for damages caused by the parties' 14-year-old son

Due to this myriad of potential legal issues, the attorney must take great care in a written fee agreement to specify and limit the scope of representation that will be provided to Lia. While the matter is pending, it will also be crucial for the legal team to abide by the terms of the fee agreement and to be prepared to refer Lia to other competent attorneys for assistance with matters outside the defined scope of representation.

You now have a basic understanding of the laws relating to family law matters. Next, you'll get into the details of what is involved in getting ready to represent a client in a family law matter.

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3: Working Up the New Family Law File

After the office has successfully completed a conflicts-check and the attorney has accepted the client, the next step is to schedule a more in-depth legal consultation between the attorney and the client to confirm the nature of the legal services the client desires. Sometimes clients are confused about the law and what they want, and sometimes their perception of what family law matters involve is distorted by the media, tabloids, and what they've heard from friends and family. Incorrect and/or incomplete information about legal options is usually addressed during the initial legal consultation with the attorney prior to the in-depth interview. As a result, clients sometimes change their minds about what they want, even after the representation has begun. Once the attorney and client have agreed to the legal services that will be provided and the client has signed the fee agreement (and paid any required upfront attorney fee), it is time to begin the process of collecting information necessary to the client's legal representation.

Compiling a Family History

Family law matters typically involve issues regarding finances, property ownership, income, debts, and expenses. Relational, psychological, and social dimensions of the client's life are also implicated. Thus, competent representation of family law clients often requires an enormous amount of fact-gathering that is sometimes equivalent to the client's life history.

Interviewing Guidelines

An effective interview process will not only help clarify what the client wants from the legal representation but will also collect the information needed to accomplish the client's goals. The in-depth client interview should occur only after the client has officially hired the law office by signing a fee agreement and paying any required up-front fee. Typically, at this point, the client has stated what they want/need the lawyer to do.

Although your primary purpose in conducting the interview is to obtain needed information from the client, an equally important purpose is to gain the client's trust and confidence in you as a professional, to assure the client that their legal matter is important, and to demonstrate acute sensitivity toward the client's feelings and experiences which may be embarrassing, frustrating, or anger-provoking. You'll also want to make sure you schedule plenty of time (usually an hour or more) for the interview. Here are some things to keep in mind when conducting that interview:

1. **Prepare an appropriate space.** Make sure the interview takes place in a private space so that all information remains confidential. For a web-conference interview, make sure both you and the client are in private spaces, and use a secure network (not public wi-fi) and a secure web-conferencing platform. If the client is coming in person, reserve a private conference room at the office supplied with writing materials, water (or coffee, juice, or soda), and a box of facial tissues; make sure the client is comfortable. Turn on "do not disturb" for electronics and other devices and take other steps to prevent interruptions. Make sure there are no other files or papers lying open in the interview space.
2. **Formulate responses to client questions to which you cannot respond.** It's practically guaranteed that clients will ask questions you are ethically not allowed to answer. Having prepared responses will give you confidence to respond without feeling awkward. For example,
 - "As a paralegal, I don't have as much knowledge and skill as the attorney, so I can't answer that question as it involves legal advice. I'll be sure to refer that question to the supervising attorney."
 - "Every case is different, so I can't predict how long the case will take, what it will cost, or what the outcome will be. Rest assured that our office will use its skills and expertise to seek the best outcome in the most efficient way possible."
3. **Prepare yourself for the interview.** Review the information from the client's initial intake form and legal consultation. Make sure you have the appropriate interview checklist and other documentation ready before the interview begins. If you will need the client to sign releases, complete those documents and have them ready for the client's signature.
4. **Begin with required disclosures.** Make sure the client understands the following:
 - As a paralegal, you cannot give legal advice. You will be working closely with the attorney handling the client's legal matter.
 - Although you can provide general information about procedures, you cannot predict costs, time required, or results for their legal matter.
 - You need to take detailed notes during the interview to ensure you have complete and accurate information.
 - Complete and honest answers are critical to the successful representation of the client's interests; remind the client that all information will remain confidential.

5. Obtain permission before recording the interview.

- Before recording the interview, get permission to do so from both the supervising attorney and the client.
- Once you receive permission to record the interview, start the recording with the following information:
 - Name of the client and any other relevant information about the client (for example, mention that the client hired the law office to obtain a divorce)
 - State your name and the names of any other persons who are present
 - Identify the date, time, and place of the interview
 - Ask the client for permission to record the interview. Wait to begin asking your questions until after you have received permission
- Keep in mind that while there are benefits to recording an interview, the downside is that sometimes clients feel uncomfortable or may be less open and forthcoming when they know they are being recorded. Many times, the downsides of recording outweigh the benefits.
- Even if you don't plan to record the interview, let the client know you will be taking notes to share with your supervising attorney

6. Use empathetic and active listening techniques.

- Maintain eye contact as much as possible (unless doing so would make the client especially uncomfortable).
- Encourage the client to speak freely and explain answers beyond one or two words (tell me about that; help me understand ...)
- Repeat back portions of what the client has just told you to demonstrate listening and understanding (this may also encourage more details from the client)
- Refer back to previous information as the basis for follow-up questions
- Use language the client understands, and check for understanding if you are using legal terms (such as spousal support, maintenance, etc.)
- Acknowledge the client's emotions and experiences before redirecting, if necessary ("I can understand why that would make you feel angry ...). Take breaks when necessary to help diffuse strong emotional responses.
- Be aware of how your tone of voice, verbal language, body language, and mannerisms may be impacting the client, particularly if the client has been a victim of abuse or domestic violence.
- Do not "talk down to" or disparage the client.
- Notice the client's body language and other verbal and non-verbal reactions to your questions and be prepared to adjust your interview techniques.
- Wait for the client to finish answering the question and pay attention to all details of what the client has said.
- Be prepared to ask follow-up questions to obtain more specific details. Refer back to previous information as the basis for follow-up questions
- Expect the client to skip around topics, or to not tell the story in chronological order. Make sure you understand the order in which events occurred.
- Clarify when necessary. If the client uses pronouns (he, she, they) instead of names, you may need to ask the client to confirm/use proper names rather than pronouns to refer to people.
- Pay attention to the client's body language and mannerisms. Sometimes changes in posture, facial expression, or even tone of voice can signal the need for additional follow-up questions. If the client seems uncomfortable, it's okay to take a break.

7. Make mental notes on the client's personality.

During the initial legal consultation, the attorney is primarily concerned with determining whether the office can help with the client's legal matter. The follow-up interview is also an assessment of the client's demeanor and to discern potential red flags. Ask yourself whether the client

- Appears emotionally distraught or volatile, overly angry, or vengeful
- Has unrealistic objectives or expectations, or appears to want to tell the office "how to run" the case
- Answers questions inconsistently or avoids directly answering questions
- Frequently rambles, wanders off topic, constantly interrupts you, or appears otherwise unable to focus
- Seems to be compromised by a mental health condition, or is under the influence of alcohol, drugs, or medications
- Is flirtatious or otherwise makes you feel uncomfortable

8. Plan for needed follow-up.

Know how you will end the interview.

- Give the client an opportunity to voice concerns or questions.
- Let the client know it is often necessary to meet with the client more than once.

- Compile a list of documents still needed from the client. A pre-prepared checklist that allows you to use checkboxes to let the client know which additional documentation is needed is beneficial.
- Determine how to access any necessary electronic data you may need for the client's legal matter, for example, what does the client/client's family use for
 - computers/devices/phones?
 - email providers/addresses?
 - social media platforms/accounts?
 - cloud-based applications, such as Microsoft Office 365, Google Drive, etc.?
- Provide contact information for you and the supervising attorney

The Interview/Family History Checklist

Most law offices will have multiple interview checklists to be used depending on the legal matter involved. Below are the topics typically covered in checklists for various family law matters. Obviously, not all information is pertinent to every family law matter; similarly, this is not an exhaustive list of topics that may apply in each situation.

Client Basic Information

- Name (current and previous), mailing address, personal email address, personal phone number, and other contact information
- Length of time at current address (if less than 5 years, previous addresses)
- Social Security number,
- Date and place (City, State, Country) of birth
- Business/employer name, mailing address, email address, phone number, and webpage address
- Education (highest degree completed) and employment history
- Marital status
- Military status
- Race and ethnicity
- Religious affiliation
- Citizenship/immigration status

Client's Spouse/Spouse to be/Ex-spouse Basic Information

This information includes legal matters relating to Marital Contracts, Divorce/Separation/Annulment pre-and post-judgment Actions, Adoption Actions, and Paternity Actions.

- Same as Client Basic Information, above

Cases Involving Formation of Marriage

- Basic information for Client and Spouse, above
- Date and location (City, State, Country) of current and prior marriage (if applicable) of both parties
- Names, current contact information (address and phone), and other contact information of the person who performed the ceremony for the current marriage and persons named as witnesses to the ceremony
- Date, location (City, State, Country), and means (annulment, divorce, death) of termination of previous marriage(s) (if applicable)
- Age of both parties when they married
- Compliance with marital laws of the State in which the marriage was performed (marriage license, blood tests, or other formalities)
- Did both parties participate in the marriage ceremony with free and full intention to become legally married spouses?
- Did either party lie about or misrepresent important facts that would have resulted in the cancellation of the ceremony if those facts had been known?
- *Documents needed:*
 - Marriage license
 - Documentation of termination of previous marriages (if applicable), such as final divorce judgment, annulment decree, or death certificate

Cases Involving Marital Contracts (Prenuptial, Post-Nuptial, Separation)

- Basic information for Client and Spouse, above
- Do the parties have any current contracts or agreements?
- Names and current contact information (address and phone) of other professionals consulted (attorneys, accountants, financial planners, etc.)
- Information regarding both parties' financial assets and worth, including income, investments, personal property, real property, business property, and intellectual property
- Information regarding both parties' existing debts, loan obligations, and financial liabilities
- For previous agreements:
 - Date and location (City, State, Country) the agreement was signed by each party
 - Describe the nature and extent of financial disclosures prior to signing the agreement, including waiver of disclosure
 - Did each party have the opportunity to consult with independent legal counsel and other financial professionals prior to signing the agreement?
- *Documents needed:*
 - Previous marital contracts (if applicable)
 - Documents demonstrating ownership or other interests in personal property, real property, business property, intellectual property, or businesses (deeds, titles, operating agreements, certificates of ownership, etc.)
 - Financial records, such as bank statements, investment statements, tax records, and retirement accounts

Cases Involving Termination of Marriage (Pre- and Post-Judgment)

- Basic information for Client and Spouse, above
- Date and location (City, State, Country) of current marriage
- Date, location (City, State, Country) and means (annulment, divorce, death) of termination of previous marriage(s) for both parties (if applicable)
- Information regarding marital contracts, above (if applicable)
- If the parties are currently living separately, the date of physical separation from the spouse
- Dates, length of time, and circumstances of previous physical separations, if any
- Is there a realistic chance of reconciliation? Why or why not?
- Does the client want a divorce or a legal separation?
- Current health of client and client's spouse, including physical and mental health history
- Financial information for both parties, including
 - All financial information/documents listed in Marital Contracts, above
 - Current income and tax information
 - Did either spouse contribute to the other spouse's career enhancement (for example, took a job to allow the other to attend school, agreed to assume all child-raising and household management responsibilities; postponed education or other career enhancement so the other's education/career could be enhanced)
 - Description of all monthly expenses (including mortgage, rent, food, transportation, etc.)
 - Does the client or the spouse have individual or joint credit cards?
 - Health and life insurance information
 - Wills, trusts, powers of attorney or other estate planning documents
 - Has the client or the client's spouse declared bankruptcy?
 - Is either the client or the client's spouse currently involved in litigation with third parties, or does either spouse have a potential claim that could be litigated (for example, personal injury, wrongful termination, breach of contract)?
 - Are there concerns that the spouse will give away, destroy, conceal, or spend marital assets?
- Asset information for the client and the client's spouse (see Marital Contracts, above) including
 - Date and method property was obtained (gift, purchase, inheritance)
 - If purchased, the source of funds used to purchase (for example, marital funds or funds traceable to individual property or funds)
- Is the client or the client's spouse currently pregnant?
- Information regarding minor or dependent children born to the marriage or adopted into the marriage

- Names, ages, dates of birth, Social Security numbers, and current contact information (address and phone)
- Length of time at current address (if less than 5 years, previous addresses)
- Names and current contact information (address and phone) for adults other than the client or client's spouse with whom the children have lived during the past 5 years
- Health information, including physical/mental health conditions, special needs, names, and contact information for health care providers
- Assets owned by children (including Education Savings, Trusts, etc.)
- Income sources (other than the client and the client's spouse) for children
- Strengths and weaknesses of both parties as parents
- Relatives and other adults with ongoing relationships with children or with the client or spouse; include grandparents, coaches, teachers, caregivers, leaders of extracurricular and other organizations in which the children are involved, etc.
- Current and future childcare/elementary education plans
- Are there concerns that the spouse may remove the children out of state?
- Is there a history of spousal or child abuse/neglect in the current marriage?
 - Describe dates, locations, and nature of incidents, as well as police involvement
 - Provide documentation of police or Court involvement (including citations, judgments, etc.)
- *Documents needed:*
 - Previous marital contracts (if applicable)
 - Documents demonstrating ownership or other interests in personal property, real property, business property, intellectual property, or businesses (deeds, titles, operating agreements, certificates of ownership, etc.)
 - Financial records, such as bank statements, investment statements, tax records, retirement accounts, loan contracts/agreements/statements
 - Income information, such as pay stubs, W-2s, and Federal and State tax returns for the past five years
 - Documentation of disability of client, spouse, or children, if applicable
 - Court documents related to bankruptcy or other past, current, or pending litigation

Cases Involving Paternity of Children

- Basic information for the Client, above
- Basic information for the other parent or "alleged other parent," same as for the client
 - For alleged fathers, may want to have a physical description (height, weight, etc.), especially if assistance is needed in locating them
- Basic information for the child, same as for the client (not all information will apply)
- Date(s) and location(s) (city, state) of sexual intercourse between the mother and alleged father of the child
 - Was contraception used? If so, describe
 - Does the alleged father claim to be sterile or impotent?
- Health and income information for mother and alleged father (similar to Termination of Marriage, above)
- Information regarding the child (see Termination of Marriage, above)
- Was the alleged father aware of or informed of the pregnancy? If so, describe the circumstances and communication(s)
- Has there been an acknowledgment of paternity?
- Did the father agree to have his name entered onto the child's birth certificate?
- Have there been other paternity proceedings regarding the child?
- Have any other men had sexual intercourse with the mother during the conceptive period?
- Is the mother currently married? Or was the mother married when the mother became pregnant?
 - If so, contact information for the spouse
- With whom was the mother cohabitating (if anyone) when she became pregnant?
- Date of mother's last menstrual period before this pregnancy
- Does either the mother or the alleged father have existing child support orders for other children?
- Have DNA tests been performed? If so, describe the circumstances, by whom performed, and the results
- Describe in detail the relationship between the child and the alleged father, including
 - Living arrangements
 - Contact with the child (details regarding nature, frequency, etc.)

- Financial contributions
- Financial or other agreements with the child's mother
- Involvement of the alleged father's relatives in the child's life
- Involvement of the mother's relatives in the child's life
- *Documents needed:*
 - Previous contracts/agreements between the child's mother and alleged father (if applicable)
 - Correspondence, text messages, etc., between the mother and alleged father regarding the pregnancy, the child, etc.
 - Documentation relating to the date/place of sexual intercourse (for example, hotel receipts)
 - DNA test results
 - Income information, such as pay stubs, W-2s, and Federal and State tax returns for the past five years
 - Birth certificate for the child
 - Documentation of disability of client, alleged father, or child, if applicable
 - Court documents related to other paternity proceedings relating to the child

Cases Involving Adoption of Minor Children

- Basic information for Client(s), above
- Client health (including mental health, prescriptions, over the counter (OTC), and other drug use), financial, and income information (similar to Termination of Marriage, above)
- Information about other persons living in the client's household, including other children, same as for the client (as applicable)
- Basic information for the birth parents (if parental rights have not been terminated), same as for the client
- Has the paternity of the child been established? (If not, see cases involving paternity, above)
- Is the client related to one of the child's birth parents?
 - If so, describe how related
 - If not, is the client currently licensed for foster care?
 - If not, is the child or at least one birth parent a registered member of a Native American Tribe, or claimed to be of Native American descent?
- Is a licensed adoption agency currently involved? If so, provide contact information
- Has the client completed adoption training?
- Is either birth parent currently represented by an attorney? If so, provide contact information
- Are there any current or past agreements between the client and either or both of the child's birth parents with respect to
 - Adoption
 - Financial/payment of expenses arrangements between the client and the birth parent(s)
 - Medical arrangements between the client and the birth parent(s)
 - Legal arrangements between the client and the birth parent(s)
 - Exchange of information
 - Contact between the child and the birth parent(s) after finalization of the adoption
- Is anyone being pressured or influenced to go along with the adoption and/or termination of parental rights? Describe, if possible, the circumstances surrounding the decisions that were made. Describe any promises or threats (financial, physical, emotional, mental) that were communicated in any way to any party
- If there has been no termination of parental rights for one or both birth parent(s)
 - Will there be a voluntary termination of parental rights?
 - Has the client been informed that grounds exist for the involuntary termination of parental rights?
 - Have the birth parent(s) received counseling regarding the termination of parental rights?

The remaining chapters of this textbook will focus on the requirements of marriage, contracts impacting marriage, termination of marriage, and establishment of parent-child relationships.

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4: Marital Contracts

According to a [2022 Harris Poll survey](#), around 15% of married couples have a prenuptial agreement, a significant increase from just 3% in 2010. Due to cultural shifts, prenuptial and other marital contracts are no longer just for the rich and famous. There are four types of contracts that impact domestic relationships: **Prenuptial agreements, postnuptial agreements, cohabitation agreements, and separation agreements.**

Definition: Domestic Relations Contracts

Prenuptial agreements: A contract between two unmarried persons who intend to marry that is effective upon marriage. It covers financial and related matters during the marriage and upon termination of the marriage by separation, annulment, divorce, or death.

Postnuptial agreements: A contract between two married persons who intend to remain married that is effective immediately. It covers financial and related matters during the marriage and upon termination of the marriage by separation, annulment, divorce, or death.

Cohabitation agreements: A contract between two unmarried persons who intend to remain unmarried indefinitely that is effective immediately. It covers financial and related matters while they live together and upon termination of the cohabitation by separation or death.

Separation agreements: An agreement between two married persons who have separated or who intend to separate. It covers financial and related matters after the termination of the marriage.

In this chapter, we'll explore three of the types of contracts that impact domestic relationships: **Prenuptial agreements, postnuptial agreements, and cohabitation agreements.** Separation agreements are covered in a later chapter.

Basic Introduction to Contracts

Contracts are legally enforceable agreements between persons. Like any contract, contracts impacting domestic relationships must meet certain requirements to be valid. These **elements** (or requirements) are **mutual agreement, consideration, capacity, and legality.**

- **Mutual agreement** is defined in the law as a “meeting of the minds” and requires that the parties to the contract agree on the contract’s essential terms, conditions, and obligations. In business-based contracts, mutual agreement is demonstrated by one party making an **offer** (a promise to do or refrain from doing a specific act) and another party’s **acceptance** (an agreement to the terms of the offer). The agreement must also be **voluntary**: entered into by both parties freely and without **duress** (unlawful use of force, threats, or pressure) or **undue influence** (taking advantage of a powerful or special relationship).
- **Consideration** is something of value that is exchanged between the parties to a contract. Consideration can be money, action, forbearance (not performing an act), or promises relating to any of those things.
- **Capacity** is the legal ability or power to do something, such as enter into a relationship or contract. Contractual capacity typically has two components: mental competence and minimum age. **Mental competence** refers to a person’s ability to understand the nature of the relationship or contract, which can be impacted by mental health conditions, alcohol, or drugs. The **minimum age** for contracts is determined by State law and is typically 18 years of age.
- **Legality** prohibits parties from agreeing to contractual terms that violate federal or state laws. For example, a contract in which one person agrees to pay another person to kill a third person would violate both federal and state criminal laws prohibiting homicide.

Any contract that does not meet all four of these requirements is invalid and cannot be enforced by either party. A determination that the contract is valid, however, does not guarantee its enforceability. You may recall learning in a previous legal studies class that certain types of documents must be in writing to be enforceable pursuant to the statute of frauds. One memory trick for the types of documents is **MYLEGS**: Marital contracts; contracts in effect for at least one **Year**; transactions involving **Land**; transactions involving an **Executor** (or an **Estate**); transactions involving **Goods** worth more than \$500; and transactions involving a **Surety**. Trusts involve an Estate, and so they are required to be in writing. Thus, according to the **Statute of Frauds**, contracts impacting domestic relationships must be in writing and signed by both parties to be enforceable.

Special Considerations for Marital Contracts

Due to the emotional and financial nature of the marital relationship, special rules and procedures uniquely apply to marital contracts to ensure the voluntariness and fairness of these contracts. A marital contract should specifically address how these considerations were addressed within its written terms.

Financial Disclosure

Wisconsin requires a full and complete disclosure of assets, income, debts, liabilities, and other financial information between the parties prior to signing a marital contract. Typically, this involves written documentation that may be accompanied by permission to meet with the other party's financial advisors. The right to full financial disclosure can be waived by either or both parties; if a party decides to waive this right, there should be a written, signed waiver. This is much more of an issue in prenuptial contracts than in postnuptial contracts.

Unconscionability and Fairness

Any contract that is shockingly one-sided, unfair, or unjust is **unconscionable** and cannot be enforced.

Definition: Unconscionable contract

Unconscionable contract: Any contract that is shockingly one-sided, unfair, or unjust toward one party.

In marital contracts, there are two kinds of fairness required:

1. **Procedural fairness.** The focus here is on the circumstances existing prior to and at the time the agreement was signed. The contract must have been voluntarily and intelligently signed. Procedural fairness asks the following questions:
 - Was there complete and accurate financial disclosure?
 - Did other circumstances provide each party the reasonable opportunity to acquire complete and accurate knowledge of the other party's finances? For example, if the parties lived together and shared income or property for a period of time that might be enough opportunity to acquire knowledge. Similarly, if one party worked as a bookkeeper in the other party's business, that might be enough opportunity to acquire knowledge.
 - Did each party have sufficient time to read, study, and understand the terms of the agreement?
 - Did each party have sufficient time and opportunity to seek advice from independent professionals (attorneys, financial advisors, etc.) prior to signing the agreement?
 - Was there any undue pressure on the party to sign the agreement? For example, financial, physical, mental, emotional, or other threats; unequal bargaining power (due to different education or business backgrounds, age, language barrier, "take it or leave it" or absence of meaningful choice); severe time constraints; or other high-pressure circumstances. **Note:** a threat to call off the engagement/marriage is typically not enough "pressure" to establish involuntariness. The same is true for pregnancy alone (unless there are other aggravating factors)
2. **Substantive fairness.** The focus here is on the actual terms of the agreement and their impact on each party. Substantive fairness asks the following questions:
 - Are the terms equitable to both parties, mutually favorable, and not unduly one-sided?
 - Are the terms reasonable toward both parties, particularly with respect to how income, assets, debts, and liabilities would be treated upon termination of the marriage?

Substantive Fairness and the "Second Glance Doctrine"

With most contracts, the courts are only concerned about the circumstances present just before and at the time the contract is signed (the first glance). With marital contracts, however, courts are also concerned about the circumstances existing at the time a party wishes to enforce the contract (the second glance). Under the **Second Glance Doctrine**, the marital contract will not be enforced if a significant and unexpected change in the parties' circumstances after the contract was signed would result in "substantial injustice" such as spousal impoverishment or other circumstances making enforcement unduly harsh.

Legality

Again, due to the unique nature of marital relationships and the State's interest in governing marital relationships, there are certain types of clauses that, if contained in a marital contract, likely would not be legally enforceable:

- Agreement that one or both parties would not be required to pay child support in the event of an annulment or divorce,

- Agreements regarding child custody or physical placement of children born or adopted into the marriage in the event of an annulment or divorce
- Agreements that no children will be born into the marriage; or, that no birth control will ever be used by the parties during the marriage (violates constitutional protections regarding reproduction)
- Agreements relating to the nature and/or frequency of sexual relations (in most states)
- Agreements that go against a State's "no-fault divorce" laws (for example, a liquidated damages clause requiring payment of \$50,000 if a spouse is sexually unfaithful)

Guidelines for Drafting Marital Contracts

Most law offices have templates they use for drafting marital contracts; the paralegal's primary job is accurately completing the templates with the client's information and facilitating the signing of the agreement. The following are guidelines for steps to take at each point in the process:

Preliminary preparation

- Double-check the accuracy and correct spelling for all names, addresses, and other contact information, and relationships of each individual who will be referenced in the contract
- Confirm both parties' ages, level of education, business experience, etc., and the amount of current income from all sources
- Obtain a list of the client's financial or other professional advisors with whom the client has consulted regarding the client's assets, debts, and property
- Determine whether the other party to the agreement has ever been treated for or is currently receiving treatment for a mental health condition that could impact the other party's ability to understand and voluntarily sign the agreement
- Confirm whether the other party to the agreement is represented by counsel
- Inform the client that the other party to the agreement will need to be given ample time to consult with independent professionals regarding the agreement after it is drafted and presented to the other party (typically several weeks)

Documentation for the client's file

- Prepare a detailed list of the client's personal and business assets, with the current exact or approximate fair market value of each. Include real property, vehicles, jewelry, household furniture, financial investments (checking/savings accounts, certificates of deposit, stocks, bonds, mutual funds, annuities, cash), retirement accounts (IRA, 401k, pension, etc.), other personal property, and intellectual property. Indicate whether each item is individually or jointly owned. Include account numbers and legal descriptions.
- Prepare a detailed list of the client's current personal and business debts, liabilities, and obligations
- Prepare a detailed list of the client's known future assets that the client expects to acquire during the marriage, with the exact or approximate fair market value of each. Include future employment contracts, purchase options, or other anticipated purchases.
- Obtain copies of the client's documentation regarding the above items, such as bills, statements, deeds, titles, contracts, purchase agreements, etc.
- Obtain copies of the client's recent personal and business tax returns
- Obtain a list from the other party of the other party's current and known future personal and business assets, debts, and liabilities as described above

Documentation to provide to the other party to the agreement

- Draft correspondence (to be signed by your supervising attorney) ensuring the other party understands that your supervising attorney does not represent the other party and cannot give the other party legal or financial advice, and encouraging the other party to retain independent legal counsel
- Provide a list of the client's current and known future personal and business assets, debts, and liabilities as described above. **Remove** account numbers, legal descriptions, or confidential information from the list. Keep only enough information to adequately identify each item and its value (for example, 2003 Polaris Pro X 800 snowmobile, with an approximate value of \$4,000)
- Provide a separate list of personal and business assets, debts, and liabilities jointly owned by the client and the other party

Provisions to include in a Wisconsin agreement

- Statement regarding the date on which the parties intend to marry (or date of the marriage, for postnuptial agreements)

- General acknowledgement that both parties own separate property, that both parties acknowledge is “Individual Property”, and that they played no role in accumulating the other’s Individual Property
- Statement of domicile in Wisconsin and election of Wisconsin law as the choice of law to be applied to the agreement regardless of either party’s future domicile
- Statements that each party understands the impact of the agreement on present and future assets, and their rights related to those assets
- Statement that the mutual promises contained in the agreement are the sole consideration forming the basis of the agreement
- Statement that full and complete disclosure of assets and liabilities has been made and/or waived by both parties
- Separate list of currently owned Individual Property of each party, with only enough information to adequately identify each item and its value
- Separate list of anticipated future owned Individual Property of each party, with only enough information to adequately identify each item and its value
- Statements regarding each party’s rights to their Individual Property and its management and control
- Separate list of currently owed individual debts and liabilities of each party, with only enough information to adequately identify each item and its value
- Definition of “Earnings” and what is included or excluded as Marital Property
- Separate list of property currently jointly owned by the parties (if any); definition of what shall be considered Marital Property that is accumulated during the marriage
- Description of how the parties intend to pay household and other expenses during the marriage
- Provisions regarding property disposition, division, or distribution upon the death of either party, and in the event of divorce, annulment or legal separation
- Provisions regarding spousal support in the event of divorce, annulment, or legal separation
- Necessary severability clauses, as determined by the attorney. A **severability clause** states that if any part of the agreement is later determined to be invalid, the remaining valid portions of the agreement should still be enforced.
- Statement that each party acknowledges the agreement was signed voluntarily, with no duress or undue influence
- Statement that prior to signing the agreement, each party had the opportunity to consult with the party’s own individual independent legal counsel regarding the agreement’s terms and legal impact on the party. Alternatively, that the other party chose not to hire individual independent legal counsel to review and explain the agreement.

Procedure for signing the agreement

- Confirm that each party has read the agreement, understands it, and voluntarily intends to sign it
- Confirm that each party is not currently under the influence of alcohol, drugs, or any medication that might affect the party’s mental capacity
- Witness each party signing the agreement; notarize (using proper procedure) as applicable
- Provide original agreement to the parties; retain a copy for the client’s file

Access [additional information from the Madison State Counsel regarding Marital Agreements](#)

Special Considerations for Cohabitation Contracts

In general, because cohabitating couples are not married and have no intention to marry, cohabitation contracts are treated more similarly to non-marital contracts. Marital property laws do not apply to unmarried couples in Wisconsin, and the requirements of financial disclosure and the “second glance” doctrine do not apply. As long as the contract is in writing and meets the four requirements for validity, terms of cohabitation contracts regarding the division of property between the parties upon termination of their cohabitation will most likely be enforced. As with marital contracts, provisions regarding children (child support, child custody, child placement) will not be enforced. However, *as long as sexual relations are not part of the consideration (that is, are not a condition of the contract)*, Wisconsin courts may enforce property, debt, and income terms of cohabitation agreements. Wisconsin law also recognizes the right of cohabitating partners to recover financial contributions toward property owned by their partners.

See the following for more information about cohabitation agreements:

- [Sample Cohabitation Agreement - FindLaw](#)
- [Cohabitation Contracts: What to Include and How to Write One | Nolo](#)
- [Free Cohabitation Agreement Template | PDF & Word \(legaltemplates.net\)](#)

✓ Case in Point: *In re the Marriage of Bonds*, 24 Cal. 4th 1, 5 P.3d 815 (2000).

Synopsis

Barry Bonds was a major league baseball player in the 1980s, 1990s and early 2000s. When he married Susann (who went by the name of Sun) in 1988 he was a second-year outfielder with the Pittsburgh Pirates earning \$106,000 per year. When the parties divorced in 1994, Bonds had just signed a then-record 6-year contract with the San Francisco Giants worth \$43.75 million. Sun was a Swedish native who had emigrated to Canada two years before meeting Barry. She worked as a waitress and bartender; although her native language was Swedish, she spoke both French and English in her employment, education, and personal relationships when she lived in Canada. Although Sun had completed some cosmetology training, she was unemployed from the time she moved in with Barry in 1987 through the date of their divorce. In January 1988, Barry and Sun decided to marry. On February 5, 1988, Barry and Sun signed a prenuptial agreement drafted by Barry's attorney in which both parties waived any interest in the other party's marital earnings and acquisitions. Sun was not represented by an attorney. The day they signed the agreement Barry and Sun flew to Las Vegas where they were married the next day (February 6, 1988). Sun challenged the enforceability of the prenuptial agreement, claiming she was not represented by an attorney and lacked sufficient knowledge and understanding to enter into the contract voluntarily.

Excerpts

Following are excerpts from the opinion affirming the trial court's determination that the prenuptial agreement was enforceable against Sun: (citations and references to other authorities within the opinion are omitted)

Barry testified that he ... recalled that from the beginning of his relationship with Sun he told her that he believed his earnings and acquisitions during marriage should be his own. He informed her he would not marry without a premarital agreement, and she had no objection. He also recalled that from the beginning of the relationship, Sun agreed that their earnings and acquisitions should be separate, saying "what's mine is mine, what's yours is yours." Indeed, she informed him that this was the practice with respect to marital property in Sweden. She stated that she planned to pursue a career and wished to be financially independent.

[Sun] testified that her English language skills in 1987 and 1988 were limited. Out of pride, she did not disclose to Barry that she often did not understand him. She testified that she and Barry never discussed money or property during the relationship that preceded their marriage. She agreed that she had expressed interest in a career as a cosmetologist and had said she wished to be financially independent. She had very few assets when she took up residence with Barry, and he paid for all their needs ... She testified that only at the parking lot of the law office where the agreement was to be entered into did she learn ... that Barry would not marry her unless she signed a premarital agreement She was under the impression that Barry wished to retain separate ownership of property he owned before the marriage, and that this was the sole object of the premarital agreement. She was unaware the agreement would affect her future....

Barry [and his attorneys] testified that ... at the meeting the attorneys informed Sun of her right to independent counsel. All three recalled that Sun stated she did not want her own counsel, and [Barry's attorney] recalled explaining that he and Brown did not represent her. Additionally, all three recalled that the attorneys read the agreement to her paragraph by paragraph and explained it as they went through it, also informing her of a spouse's basic community property rights in earnings and acquisitions and that Sun would be waiving these rights. [I]t was clearly explained that Barry's income and acquisitions during the marriage would remain Barry's separate property, and ... Sun stated that such arrangements were the practice in Sweden. Furthermore, Barry and the two attorneys each confirmed that Sun ... asked questions during the meeting ... that Sun did not exhibit any confusion, and that Sun indicated she understood the agreement. They also testified that changes were made to the agreement at Sun's behest. [Barry's attorneys] experienced no difficulty in communicating with Sun, found her confident and happy, and had no indication that she was nervous or confused, intimidated, or pressured. No threat was uttered that unless she signed the agreement, the wedding would be cancelled, nor did they hear her express any reservations about signing the agreement.

The trial court determined that there had been no coercion. It declared that Sun had not been subjected to any threats, that she had not been forced to sign the agreement, and that she never expressed any reluctance to sign the agreement. It found that the temporal proximity of the wedding to the signing of the agreement was not coercive, because under the particular circumstances of the case, including the small number of guests and the informality of the wedding arrangements, little

embarrassment would have followed from postponement of the wedding. It found that the presentation of the agreement did not come as a surprise to Sun, noting that she was aware of Barry's desire to "protect his present property and future earnings," and that she had been aware for at least a week before the parties signed the formal premarital agreement that one was planned.

With respect to the presence of independent counsel, although Sun lacked legal counsel, the trial court determined that she had a reasonable opportunity to obtain counsel. The trial court stated: "[Sun] had sufficient awareness and understanding of her right to, and need for, independent counsel. [Sun] also had an adequate and reasonable opportunity to obtain independent counsel prior to execution of the Agreement. On at least two occasions during the February 5, 1988, meeting, [Sun] was told that she could have separate counsel if she chose. [She] declined. [She] was capable of understanding this admonition."

With respect to the question of inequality of bargaining power, the trial court determined that Sun was intelligent and, evidently not crediting her claim that limited English made her unable to understand the import of the agreement or the explanations offered by Barry's counsel, found that she was capable of understanding the agreement and the explanations proffered by Barry's attorneys. There is ample evidence to support the trial court's determination regarding Sun's English-language skills, in view of the circumstances that for two years prior to marriage she had undertaken employment and education in a trade that required such skills, and before meeting Barry had maintained close personal relationships with persons speaking only English. ... we observe that the evidence supports the inference that Sun was intrepid rather than a person whose will is easily overborne. She emigrated from her homeland at a young age, found employment and friends in a new country using two languages other than her native tongue, and in two years moved to yet another country, expressing the desire to take up a career and declaring to Barry that she "didn't want his money." These circumstances support the inference that any inequality in bargaining power—arising primarily from the absence of independent counsel who could have advised Sun not to sign the agreement or urged Barry to abandon the idea of keeping his earnings separate—was not coercive.

Think About It ...

Based on what you've learned:

1. A client brings a proposed prenuptial contract to the office and is wondering whether it would be a good idea to sign it.
 - What kinds of questions would you ask the client about the client's background and current and future circumstances?
 - What kinds of questions would you ask the client about the other party's background and current and future circumstances?
 - In addition to the proposed contract, what kinds of documentation should the client bring for the supervising attorney's review?
2. A client is seeking a divorce and has a signed prenuptial contract that the soon-to-be ex-spouse is seeking to enforce.
 - What kinds of questions would you ask the client about the client's background, and the client's past, current, and future circumstances?
 - What kinds of questions would you ask the client about the other party?
 - How would you investigate questions of voluntariness and fairness?
 - In addition to the proposed contract, what kinds of documentation should the client bring for the supervising attorney's review?
 - Are there any other persons whom you'd like to speak with regarding the client's situation?

Paralegal Roles

Whether a client comes to the law office requesting a marital contract, asking about the advisability of signing a proposed marital contract, or seeking to enforce a marital contract, the paralegal's role is to support the supervising attorney in providing legal services and acting as a liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, conducting factual investigation and/or legal research, drafting documents as directed by the supervising attorney, and facilitating the signing of documents.

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5: Introduction to Marriage

Although many people cohabit without marrying, most adults in the United States will marry at least once. In addition to being a personal relationship, **marriage is a legal status created by the State that forms a union of two persons as spouses**. As such, marital status impacts each person's rights and obligations with respect to many aspects of life including property ownership, financial support, insurance coverage, health care and other benefits, inheritance, income tax liabilities and benefits, government benefits, and rights to pursue certain legal claims (such as wrongful death or loss of consortium), to name a few. This chapter examines the legal status of marriage and issues commonly arising relating to the formation of marriage.

Formation of Marriage

Marriage is a state-created legal status; each State has an interest in regulating the legal status of marriage based on the state's duty to protect and provide for the general welfare of its citizens. Each State has laws establishing specific requirements and procedures for entering into a marriage that will be legally recognized by that State. However, the power to make laws creating and regulating marriage is not unlimited; it is important to understand the interplay between states' (and individuals') rights regarding marriage and the United States Constitution.

Marriage and the US Constitution

As previously mentioned, the right to marry is a fundamental right protected by the United States Constitution. Thus, any restrictions imposed on the right to marry – either by states or by contracts or conditions in agreements by individuals – are treated by the law with disfavor.

State laws that restrict marriage are subject to **strict scrutiny: the restriction must be narrowly tailored to serve a compelling State interest**. In the context of marriage, this means rules and restrictions regarding the formation of marriage cannot exceed the minimum level of restriction, and those restrictions must be absolutely necessary for the State to effectively regulate marital status and the rights and obligations that go along with it. Here are some examples of State laws restricting marriage that have been struck down:

- Banning interracial marriage. *Loving v. Virginia*, 388 U.S. 1 (1967).
- Prohibiting fathers who are behind in their child support obligations from marrying. *Zablocki v. Redhail*, 434 U.S. 374 (1978).
- Limiting the rights of prison inmates to marry. *Turner v. Safley*, 482 U.S. 78 (1987).
- Refusing to allow or recognize same-sex marriage. *Obergefell v. Hodges*, 576 U.S. 644 (2015).

States can, however, impose other requirements on the right to marry without violating the US Constitution. Thus, each State has basic and procedural regulations that persons desiring to enter into marriage within that State must follow. These regulations relate to the age, intent, and capacity of persons to marry, as well as requirements for the marriage ceremony itself.

As you might expect, the difference between legal requirements for marriage in each of the 50 states may potentially cause issues for people who marry in one state and then move to another state – especially if their new home state has stricter requirements for marriage. The US Constitution has an answer to this problem as well. Article IV Section 1 of the US Constitution is known as the **Full Faith and Credit Clause**, which states: **“Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State.”** In the context of marriage, this means that a marriage that was validly entered into in one State must be recognized and treated as valid in every other State (with a few exceptions, discussed later).

Essential Requirements for Marriage

Although State technical regulations for marriage may differ, there are certain essential requirements that apply to all marriages. Interestingly, these requirements very closely mirror the requirements for valid contracts. They are intent to marry, capacity to marry, and legality.

Intent to marry requires that both parties, at the time of the marriage, actually and specifically intended to enter into a marriage voluntarily, with full knowledge of the rights and obligations that marriage entails.

Capacity to marry requires that both parties possess the legal power to enter into marriage. Mental competence (the ability to understand the nature, rights, and obligations of marriage) is a major component of this requirement. Capacity not only requires that both parties be free of mental health conditions and the influence of alcohol, drugs, or medications that could impact mental competence; it also requires both parties to be a certain age (the actual minimum age varies by State).

Legality in the context of marriage has its foundation in both Federal and State law. The Federal Edmunds Anti-Polygamy Act of 1882 prohibits anyone in the United States and its territories from being married to more than one person. State law requirements for legal marriages usually relate to restrictions based on the parties' existing family or blood relationships. Which family or blood relationships are “too close” for a valid marriage varies by State.

Procedural/Technical Requirements for Ceremonial Marriage

In addition to the essential requirement for marriage, each State imposes its own procedural or “technical” requirements for entering into a valid marriage in that State (also known as **solemnization of marriage**). **Ceremonial marriages are those entered into under State statutes**, though an actual ceremony as we commonly envision it may not be required. Typical statutory requirements include:

- Marriage license issued by the State
- Waiting period between the date the license is obtained/applied for and the date of the wedding (typically between 1 and 5 days, if one is required)
- Authorized officiant to perform the ceremony (members of the clergy, judicial officials, certain ranks of the military, or others specifically authorized by State law)
- Witnesses to the ceremony
- Declaration by the parties of intent to marry, in the presence of the officiant and the witnesses
- Recording of the marriage license in official State records

Access [an overview of ceremonial marriage requirements in different states](#).

Requirements for Common Law Marriage

A **common law marriage** is an informal marriage where couples do not have a marriage license, marriage ceremony, or marriage certificate. In addition to the **essential requirements for marriage** described above, all that is required for common law marriage is that the couple actually **cohabitate** (live together) as spouses and **publicly hold themselves out as spouses**. In other words, the couple needs to behave the way our culture expects married persons to behave: for example, by introducing themselves as spouses and sharing income, property, debts, and liabilities. While there is no specific period of time required, the longer the couple behaves in this way, the more likely it is that they will be considered to have entered into a common law marriage. If the status of common law marriage is challenged, in most states the couple must prove they meet these requirements by **clear and convincing evidence**. This is the middle burden of proof between preponderance of the evidence (which is slightly more likely than not) and beyond a reasonable doubt (the highest burden of proof, used in criminal cases).

As of 2024, only a handful of States still allow persons to enter into common law marriages (Colorado, Iowa, Kansas, Montana, Oklahoma, Rhode Island, Texas, and the District of Columbia). Other States recognize common law marriages that couples entered into within their borders prior to a specific date (Alabama, Florida, Georgia, Idaho, Indiana, New Hampshire, Ohio, Pennsylvania, and South Carolina). Most States, however, prohibit persons from entering common law marriages within the State (however, pursuant to the Full Faith and Credit Clause, these States must recognize common law marriages legally entered into in other states, with some exceptions).

I Thought I was Married, But ...

Sometimes people honestly believe they are legally married and have behaved as a married couple for a period of time, but they actually are not. This person is known as a **putative spouse**.

Definition: Putative Spouse

Putative spouse: A person who believes in good faith that they have entered into a valid marriage when the marriage is actually unlawful due to a legal impediment.

Legal impediment: A requirement that has not been met or some other legal obstacle that makes the marriage unlawful.

The law provides a few ways to rectify this problem, depending on the reason the marriage is invalid.

In Wisconsin, “immaterial irregularities” with respect to the authority of the officiant will not render a marriage void if all of the other requirements for a lawful marriage have been met. [Section 765.21, Wis. Stats.](#) Similarly, “immaterial irregularities” with

respect to the marriage license will not render a marriage void if all of the other requirements for a lawful marriage have been met. [Section 765.22, Wis. Stats.](#)

One of the most common impediments to a lawful marriage is that, at the time they entered into the current marriage, one party believed in good faith (incorrectly) that their prior marriage was legally terminated by annulment, divorce, or death of the other spouse. The subsequent marriage will be considered lawful once the impediment is removed as long as the parties continue to live together as spouses. [Section 765.24, Wis. Stats.](#) This is known as **putative marriage**.

But what if one of the putative spouses now wants to use the impediment against the other spouse? For example, suppose that Spouse A was previously married, and obtained an invalid divorce from Spouse A's first spouse prior to marrying Spouse B. Years later, Spouse B files for divorce from Spouse A and requests property division and spousal support. Spouse A now claims the marriage to Spouse B was void because Spouse A was still legally married to Spouse A's first spouse. Because it is Spouse A's "fault" that the first divorce was invalid, Spouse A will not be allowed to now use that invalid divorce against Spouse B. **Marriage by estoppel** prevents the "guilty party" from taking advantage of circumstances that the party wrongfully created in the first place.

Definition: Marriage by estoppel

Marriage by estoppel: An equitable doctrine of law that treats parties as married because fairness prevents the party with "dirty hands" from asserting the marriage is invalid (even though it actually is invalid).

"Clean hands doctrine": An equitable doctrine that is intended to prohibit someone from obtaining judicial relief when that person is also guilty of behaving in bad faith, unethically, or illegally.

Dirty hands: Wrongdoing or other inappropriate behavior that would make it unfair or inequitable to allow a person to assert a right or defense otherwise available to that person.

When the claimed valid marriage is a common law marriage, it's a bit trickier. In states that recognize common law marriage, a few states will recognize as a valid marriage a relationship in which a couple lived together in a marriage-like relationship but did not otherwise meet the requirements of a common law marriage – even if the parties did not believe that they had met those requirements – **as a *de facto marriage*** (marriage in fact). Typically, it will only be for limited purposes, such as allowing a cohabitating survivor to receive death benefits even though there was no putative marriage. Most states, however, do not recognize *de facto* marriages.

Definition: De Facto Marriage

De facto marriage: An equitable doctrine of law that allows a court to recognize as a valid marriage a relationship in which a couple lived together in a marriage-like relationship but did not otherwise meet the requirements of a common law marriage – even if the parties did not believe that they had met those requirements.

Full Faith and Credit and Conflicts of Laws

The validity of a marriage is determined by the laws of the **state in which the marriage was entered into, also known as the State of Celebration**. Although the Full Faith and Credit Clause requires states to recognize marriages legally entered into in other states, there are some limited exceptions to this requirement. The most important limitation applies when a couple gets married in another State for the sole purpose of avoiding their home State's marriage requirements. The **Conflict-of-Law rule** allows a State to refuse to recognize the validity of a marriage performed by another State when recognizing that marriage would violate a strong public policy of the State being asked to recognize the out-of-state marriage.

When confronted with a conflict of laws question, the first question that must be answered is in which State the couple was domiciled at the time of the marriage.

Definition: Domicile

Domicile: The place where a person intends to make their legal, permanent home. A person can have only one domicile.

 Definition: Residence

Residence: A place where a person is living at any given time.

A person can have many residences, but only one domicile. A person's intended domiciliary state is demonstrated by:

- Voter registration (a person can be registered to vote in only one State)
- Driver's license and motor vehicle registration
- Income tax filings (address on the forms, State to which the person pays State income tax)
- Address listed on the person's estate planning documents (wills, trusts, powers of attorney, etc.)
- Objective evidence of the person's intent to make the State the person's permanent home
- To a lesser extent: billing address for credit cards and other bills, location of the party's employment, where the person does their banking, goes to church or school, where the person owns or rents real property

The key to determining domicile is weighing indicators of permanence vs. temporariness. Vacations, visits, and "seasonal" dwellings are residences. Living in a state for the purpose of attending school or for limited-term employment does not make that state the person's domicile, even if the person has lived there for several years. If the person intends to return to another state after finishing school or when the employment terminates, the State to which the person intends to return is that person's domicile.

If a couple is married outside of their domiciliary State, the next question that must be answered is whether the parties' sole reason for marrying out of state was to avoid a marriage requirement imposed by their home State based on that State's strong public policy. For example, some states do not allow a person under the age of 18 to marry in any circumstances. Other states allow persons under the age of 18 to marry, but only with parental consent and/or other restrictions (usually based on age difference between the spouses). One of the "strong public policies" behind the prohibition of marrying under the age of 18 is the desire to protect minors from exploitation. Suppose a 16-year-old person is domiciled in State A, which prohibits that person from marrying. The 16-year-old person, the 16-year-old person's parents, and the spouse-to-be all drive to State B, which allows 16-year-olds to marry when there is parental consent. The 16-year-old and the spouse-to-be enter into a ceremonial marriage, fully intending to return to State A afterward. State A would be allowed to refuse to recognize the marriage performed in State B because State B was not the couple's domicile and the only reason the couple married in State B was to avoid State A's marriage requirements.

Individuals' Attempts to Restrict Marriage of Other Individuals

Sometimes it isn't the State that is attempting to restrict someone's right to marry; parents or other persons sometimes attempt to use conditional gifts or contracts to do so. While the intent behind such conditions may be benevolent, the law still treats these attempts to limit marriage with disfavor.

General restraint of marriage, defined as a **total or near total prohibition of marriage**, is unenforceable because it prohibits the exercise of the fundamental right to marry. Examples of unenforceable restraints on marriage include:

- A person agrees never to marry, in exchange for a large sum of money to be given to that person by someone else
- Money will be paid out of a trust to a person as long as the person remains unmarried. If the person marries, the person must repay any money that was previously paid

Reasonable limitations of marriage, defined as **limits that are partial, useful, and not otherwise illegal**, may be enforceable. Even if the partial limits are fairly broad, as long as they don't totally prohibit marriage, they are considered partial. A limit is "useful" if it is intended to provide a benefit to someone, to protect someone, or to preserve a valuable tradition or culture. Finally, a limit is legal as long as its impact and/or purpose does not violate any other laws. Examples of reasonable limitations that might be enforced include:

- A person promises not to marry someone who is of a different religious faith
- Money will be paid out of a trust to a person as long as the person remains unmarried until the person earns a college degree
- A person agrees not to marry between the ages of 18 and 21 without the consent of the person's parents.
- A person agrees not to marry someone with a criminal conviction
- A person's parent agrees to pay the entire cost for the person's medical education if the person marries a doctor or a medical student
- A workplace policy does not allow employees to be married to one another; if two employees marry, one or both of them must be terminated. (This is a type of anti-nepotism policy)

Marriage in Wisconsin

Wisconsin's statutes governing the formation of marriage are contained in [Chapter 765 of the Wisconsin Statutes](#). Wisconsin permits otherwise competent persons who are 18 years of age and older to marry; if a person is between 16 and 18 years old, written consent from the person's parents, guardian, or custodian is required. Wisconsin further regulates marriage as follows:

- Restrictions on marital, family, and blood relationships of persons wanting to marry. [Section 765.03](#), Wis. Stats. (persons more closely related than 2nd cousins cannot marry)
- Marriage license requirements. [Section 765.08](#), Wis. Stats., (3-day waiting period), and [Section 765.12\(2\)](#), Wis. Stats. (60-day expiration date)
- Authorized officiants. [Section 765.16](#), Wis. Stats. (only certain types of persons may perform marriage ceremonies)
- 3-day deadline for filing of the marriage license, marriage certificate, and other required information with the Register of Deeds. [Section 765.19](#), Wis. Stats.

Wisconsin's Marital Property Law

Wisconsin's Marital Property Law ([Chapter 766 of the Wisconsin Statutes](#)) recognizes that both spouses contribute to supporting a marriage – regardless of their actual incomes earned. The law says that, with limited exceptions, whatever the couple acquires during their marriage should belong to both of them equally.

Definition: Marital Property

Marital property: All income and property that comes into a marriage while the couple lives in Wisconsin.

Unless otherwise stated in the statutes, each person “owns” 50% of all income and possessions earned or acquired during the marriage (**marital property**). Even if only one spouse's name is on the title or other document showing ownership, if it was acquired during the marriage or purchased with marital funds, it is presumed to be marital property (although the spouse whose name is on the title has the right to manage and control the property).

Definition: Individual Property

Individual property: Personal gifts or inheritance to one spouse, and property owned prior to the marriage.

Individual property includes personal gifts or inheritance to one spouse, and property owned prior to the marriage. If the property meets these requirements, it belongs solely to one spouse and the other spouse has no right to own, manage, or control that property. Great care must be taken to keep individual property separate from marital property during the marriage. If individual property is mixed or combined (**commingled**) with marital property, it becomes marital property (with some exceptions based on proof of sources of individual property).

Credit and Debts

In Wisconsin, when making decisions about whether and under what terms to issue loans or credit, creditors (such as banks, loan institutions and credit cards) must consider the value of all marital property, even if only one spouse earns income. The downside of this, of course, is that debts and obligations incurred during a marriage are presumed to be marital debts. As a result, if one spouse owes credit card debt, the creditor can go after not just that spouse's individual property, but also all marital property – including the other spouse's income.

Testamentary Impact

A married person's estate at death includes all of that person's individual property, plus half of all marital property. One spouse can't completely give away in a will any item of property that is classified as marital property, even if only that spouse's name is on the title to the property. An attempt to do so may result in co-ownership between the person receiving the gift and the surviving spouse.

If a married person dies without a will, the surviving spouse will receive all of the deceased spouse's individual and marital property, unless the deceased spouse has children from outside the marriage to the surviving spouse. If the deceased spouse has children who were not born during the marriage to the current surviving spouse, those children will receive half of the deceased spouse's marital property and half of the deceased spouse's individual property; the surviving spouse receives the rest.

“Opting out” of Wisconsin’s Marital Property Law

Spouses can also enter into a [marital property agreement](#) to avoid the application of Wisconsin’s marital property law. The agreement can be included as part of a marital contract as described above, or the parties can use the [Wisconsin Statutory Individual Property classification agreement](#).

Promises to Marry and the Law

As you know, promises to marry can be sufficient consideration to support a prenuptial agreement. Unfortunately, promises to marry are like pie crusts – easily made, easily broken. The consequences of those broken promises, however, are not easily borne and can be financially and emotionally significant. What is the remedy when an engagement is broken?

Breach of Promise to Marry

When parties agree to marry one another, costly circumstances typically arise. One or both parties may receive an engagement ring or other gifts from the other party in contemplation of the upcoming marriage, as a symbol of their commitment to the promise to marry. Significant non-refundable expenses may be incurred relating to the wedding celebration itself (wedding gown, reservation of the reception venue, caterers, wedding cake designers, floral and other decorations, wedding invitations, etc.) by the parties or by third parties. Third parties might incur travel and lodging costs to attend the wedding celebration and may purchase gifts for the soon-to-be spouses. State laws vary in terms of whether and to what extent these losses can be recovered.

Heart balm actions, where the **jilted person sues the other person to recover damages based on a broken heart due to a breach of promise to marry**, are allowed by only a few states. States that allow heart balm actions typically allow the jilted party to recover compensatory damages – the costs incurred by that party in anticipation of the wedding celebration. Some states also allow damages for humiliation and mental anguish. In very rare cases, punitive damages can be awarded if the breaching party acted with the intent to humiliate or harm the jilted party out of animosity, ill will, or malice. However, no states allow the aggrieved party to be compensated for the “loss of lifestyle” the person would have enjoyed if the marriage had occurred.

Many states have enacted statutes that prohibit heart balm actions between parties who promised to marry each other. Wisconsin is one of those states (see [Section 768.01](#), Wis. Stats.). The legislature believed that heart balm actions do “not encourage stable marriages, and ... sanction conduct that borders on extortion.” General Report, Wisconsin Legislative Council, 1959, Bill No. 151A, at 70.

Return of gifts

Claims for the return of gifts are separate from heart balm actions. There are several factors impacting whether someone can successfully force the return of gifts or money given to one or both would-be spouses.

Definition: Terms Related to Gifts

Irrevocable: Gifts that are not capable of being altered, canceled, rescinded, or recalled.

Revocable: Gifts that are able to be altered, canceled, rescinded, or recalled.

Whether a gift is irrevocable or revocable depends on the circumstances surrounding the giving of the gift.

For a gift to be **irrevocable**, there must be a voluntary delivery of something from one person to another. The **giver** (also known as a **donor**) must intend, at the time the item is delivered to the other person, to immediately transfer title, ownership, and control of the item to the **recipient** (also known as a **donee**). There must be no payment or other consideration provided by the recipient to the giver in exchange for the item, and the recipient must accept the gift. A statement of intent to give a gift in the future, or only if certain circumstances occur, is not an irrevocable gift. Loaning something to someone with the expectation that it will be returned also is not an irrevocable gift.

Revocable gifts are also sometimes called **conditional** gifts. The gift is not complete unless or until something occurs (or does not occur) in the future. There were some examples of conditional gifts provided in the discussion of partial restraints on marriage earlier in this chapter.

Most states (including Wisconsin) agree that gifts given to a person in contemplation of marriage are conditional gifts that must be returned if the marriage does not occur, regardless of the reason it does not occur (or who is “at fault”). Engagement rings and other engagement gifts exchanged between the parties promising to marry are classic examples of conditional gifts. The deciding factor is the intent of the party giving the gift to a would-be spouse, as evidenced by that party’s words and actions at the time the gift was

given. If there are circumstances demonstrating reasons other than contemplation of marriage for the giving of the gift (for example, a person gives their soon-to-be spouse a birthday gift), a court could determine the gift is irrevocable.

In most states, it is even easier for third parties (families and friends of the betrothed) to force the return of their gifts as being conditioned on the future occurrence of the marriage. With respect to payments of money, many of these states also allow compensation pursuant to a claim for unjust enrichment.

Paralegal Roles

In Wisconsin, legal practitioners typically aren't involved in assisting people with entering into the actual marriage itself. Questions regarding marriage validity typically come up in the context of annulment or divorce, which are covered in later chapters.

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6: Introduction to Legal Actions Impacting Marriage

Unfortunately, not everyone who marries stays married. Sometimes marriages deteriorate beyond repair or weren't properly entered into in the first place. Other times, married persons know something is wrong in their marriage but they aren't yet sure they want to terminate the marriage. Because there are multiple circumstances that can lead to marital troubles, there are multiple legal actions the parties can take that will impact their marriages in different ways. These legal actions are annulment, divorce, and legal separation.

Definition: Terms Relating to Legal Actions Impacting Marriage

Annulment: A court declaration that a valid marriage never existed, despite the fact that the parties may have completed most or all of the steps required to enter into a marriage. This is not the same as a religious or "church" annulment; it is a court order obtained pursuant to state law. It is based on a determination that either the essential requirements of marriage were not met, or that there were significant irregularities that resulted in the procedural/technical requirements of marriage not being met

Divorce: A court declaration terminating an existing valid marriage. There is no question whether the parties entered into a valid marriage; however, when a divorce judgment is entered, the parties are no longer married to each other.

Legal separation: A court declaration that allows the parties to live apart from one another without terminating their marriage. Similar to a divorce, there is no question whether the parties entered into a valid marriage; however, unlike a divorce, a judgment of legal separation does not terminate the parties' marriage.

Aside from the impact on the parties' marital status, annulments, divorces, and legal separations look very similar to one another. The table below shows a side-by-side comparison.

Legal Action	Definition	Impact on Marital Status	Potential Court Orders
Annulment	A court declaration that a valid marriage never existed	"Like it never even happened" The parties were never married	• Marriage is dissolved • Property division • Spousal support • Child custody, placement and visitation • Child support
Divorce	A court declaration terminating an existing valid marriage	"It's over now" The parties used to be married and now they are no longer married	• Marriage is terminated • Property division • Spousal support • Child custody, placement and visitation • Child support
Legal Separation	A court declaration that allows the parties to live apart from one another without terminating their marriage	"It's complicated" The parties are still married, but they don't live together anymore	• Property division • Spousal support • Child custody, placement and visitation • Child support

Annulment

Annulment is fairly rare, due to the limited **reasons that are legally sufficient (grounds)** required to obtain an annulment. Historically, the grounds for annulment have been divided into two categories: (1) grounds that render the marriage void and (2) grounds that render the marriage voidable. Though both categories are comprised of serious problems with the marriage, problems that render a marriage void are far more serious.

Definition: Terms Relating to Annulment

Void marriage: A marriage that is invalid from the beginning, even if there is never a court judgment of annulment.

Voidable marriage: A marriage that is invalid only if a court enters a judgment of annulment.

Legal standing: The right to file a claim or bring an action seeking that judgment.

A **void marriage** is invalid from the beginning, even if there is never a court judgment of annulment. That being said, in reality, the courts are often asked to enter judgments of annulment for void marriages so that there is a public record.

In contrast, a **voidable marriage** is invalid only if a court enters a judgment of annulment. That means the marriage can continue and will be treated by the law as if it were valid unless and until someone files a court action to have the marriage declared invalid. Voidable marriages can be **ratified (or approved retroactively) through action, inaction, or other conduct or agreement by the parties that can be reasonably interpreted as an approval**. For example, suppose that Spouse A was underage when the marriage occurred, and Spouse B was not aware that Spouse A was underage. If Spouse B continues to live with Spouse A after discovering that Spouse A is underage, this would be interpreted as a ratification or approval of the marriage by Spouse B.

When a marriage is voidable, a person seeking a judgment of annulment must demonstrate **legal standing**. Generally speaking, only the “innocent party” has standing to seek an annulment. The equitable “clean hands doctrine” (which you learned about in previous chapters) provides that it would be unfair to allow a person to profit from their own wrongdoing or other inappropriate behavior. As a result, if a marriage is voidable due to deceitful, coercive, or other wrong behavior by one of the parties, that party is estopped (legally prevented) from asserting a right, a cause of action, or a defense.

At this point, it may be helpful to review [Chapter 5](#) with respect to the requirements for marriage, as well as for an explanation of marriage by estoppel. The Tables below summarize the different grounds for annulment.

Void Marriages

Grounds	Definition	Marriage requirement impacted	Can the marriage be ratified by the parties?	Who can seek annulment?
Prior existing marriage	At the time of the current marriage, one or both parties was still legally married to someone else.	Legality of marriage	No However, the marriage can be validated if the prior spouse is “presumed dead”	Either party
Improper relationship by blood or marriage	The parties are too closely related by blood (may include adoption) or through marriage of other family members (may include step-family relations)	Legality of marriage	No	Either party
Sham marriage	One or both parties never had actual intent to marry and live as spouses. Instead, they married for improper reasons (for example, to avoid deportation or gain financial benefits)	Intent to marry	No	Either party

Voidable Marriages

Grounds	Definition	Marriage requirement impacted	Can the marriage be ratified by the parties?	Who can seek annulment?
Underage	One or both parties did not meet statutory age requirements	Capacity to marry	Yes, by cohabiting as married persons after reaching the minimum required age and/or after discovering that the other person was underage	Either party, unless one party lied about their age. A parent or legal guardian may also have standing, but must bring action within 1 year of obtaining knowledge of the marriage
Mental disability	One or both parties suffered from a mental health condition (capacity) or influence of drugs, alcohol, or medication that prevented the person from understanding the rights and obligations of marriage	Capacity and/or intent to marry	Yes, during a “lucid interval” of the affected person (mental health condition). Yes, by cohabiting as married persons after the influence no longer impairs the person’s understanding	The “innocent” or impaired party. A parent or legal guardian of a person lacking capacity to consent may also have standing Action must be started within 1 year of obtaining knowledge of the condition
Duress	A party was coerced to marry by unlawful force or threat	Intent to marry	Yes, by cohabiting as married persons after the condition causing the duress no longer exists	Only the “innocent party” Action must be started within 1 year of obtaining knowledge
Fraud	A party’s intent to marry was based on the other party’s intentional misrepresentation or concealment of an essential fact	Intent to marry	Yes, by cohabiting as married persons after discovery of the fraud	Only the “innocent party” Action must be started within 1 year of obtaining knowledge
Physical disability	One or both parties has a physical condition preventing consummation of the marriage through sexual intercourse	Capacity to marry	Yes, by cohabiting as married persons after discovery of the physical disability	Only the “innocent party” who lacked knowledge of the other’s condition. Action must be started within 1 year of obtaining knowledge

Once a judgment of annulment is entered, the parties are free to marry other persons (after a 6-month waiting period, in Wisconsin). Parties wishing to “reconcile” must complete the process to enter into a valid marriage according to Wisconsin statutes (in other words, they must remarry each other).

Divorce

In many respects, divorce is much simpler than annulment. Most states have adopted statutes that provide for **no-fault divorce**, meaning that a divorce will be granted without the need to prove any type of marital misconduct wrongdoing. In fact, allegations of marital misconduct (other than physical or mental abuse) are irrelevant in no-fault divorce states and have no impact on any court orders that may be entered as part of a divorce judgment.

In Wisconsin, a court may enter a **judgment of divorce** based on *any one* of the following **grounds**:

- Both parties state under oath that the marriage is “**irretrievably broken.**”
- Only one party states oath that the marriage is “irretrievably broken.” (The other party denies that the marriage is irretrievably broken) and the parties have voluntarily lived apart continuously for at least 12 months
- Only one party states an oath that the marriage is “irretrievably broken.” (The other party denies that the marriage is irretrievably broken) and the court determines there is no reasonable prospect of reconciliation

In other words, Wisconsin does not allow one spouse to prevent the entry of a judgment of divorce by objecting to the termination of the marriage or denying that the marriage is irretrievably broken. Although the court may delay the matter for up to 60 days and suggest the parties undergo marital counseling, if after that time one of the parties continues to state under oath that the marriage is irretrievably broken, a divorce judgment may be entered.

Wisconsin does allow the parties to seek a court order suspending the divorce proceedings for up to 90 days if they want to attempt to reconcile. If the parties are unsuccessful and the suspension is revoked by either party or the court, the action continues as if there had been no attempt to reconcile.

Once a judgment of divorce is entered, the parties are free to marry other persons (after a 6-month waiting period, in Wisconsin). Parties wishing to “reconcile” must complete the process to enter into a valid marriage according to Wisconsin statutes (in other words, they must remarry each other).

Legal Separation

Sometimes one or both parties simply are not ready to terminate their marriage. The parties may not be emotionally ready to accept the finality of a divorce or may have spiritual or religious reasons for being opposed to divorce. Financial or other practical circumstances might also make divorce unappealing. For these people, legal separation is seen as a “trial divorce” that gives the parties physical and emotional space to consider whether they wish to seek a “full and final” divorce.

In Wisconsin, the grounds for **legal separation** are similar to the grounds for divorce, except that a party only needs to state that the marriage is “**broken**” rather than stating that it is irretrievably broken. If, prior to judgment, the parties change their minds, they can request that the action for legal separation be dismissed. Once a judgment of legal separation is entered, parties wishing to “reconcile” can request a revocation of the judgment.

An action for legal separation can also be converted to an action for divorce. Prior to entry of a judgment for legal separation, if one or both of the parties in a legal separation action state under oath that the marriage is irretrievably broken, the action will be converted to an action for divorce. If the judgment for legal separation has been entered, the parties must wait at least one year before seeking to convert the judgment to a judgment of divorce.

Impact of Annulment, Divorce, and Legal Separation

Because of the different ways each type of judgment affects marriage, the impact of each judgment on involved parties’ other relationships, rights, obligations, and benefits differs as well. The table below summarizes those impacts under Wisconsin law.

Impact	Annulment	Divorce	Legal Separation
Right to inherit from the other party	Terminated	Terminated	Continues
Provisions in a will signed prior to judgment giving gifts or powers to the “former spouse” or to the “former in-laws”	Void	Treated as if the “former spouse” or “former in-laws” pre-deceased	No impact, as the parties are still legally married
Spousal privilege (prevents spouses from being forced to testify against their spouses)	Destroyed	Terminates for actions or circumstances that happened <i>after</i> the judgment	Continues

Impact	Annulment	Divorce	Legal Separation
Interspousal tort immunity (prevents spouses from suing one another based on certain types of claims)	Terminates for actions or circumstances that happened <i>after</i> the judgment	Terminates for actions or circumstances that happened <i>after</i> the judgment	Continues
Government benefits (for example, social security payments)	Individual benefits may be reinstated No qualification for spousal benefits	Individual benefits may be reinstated Qualification for spousal benefits for marriages that lasted at least 10 years	Benefits may be reduced
Health insurance coverage	Coverage for ex-spouse terminated when judgment is entered	Coverage for ex-spouse terminated when judgment is entered	Coverage for spouse <i>may</i> be terminated when judgment is entered, depending on the policy language
Beneficiary designations under life insurance, retirement benefits, annuities, etc.	Unclear; depends on the insurance policy or plan documentation	Likely terminated; retirement benefits and annuities may be divisible	Unclear; depends on the insurance policy or plan documentation

Children born of annulled marriages are not impacted. The law continues to treat them as “marital children” with rights to support, inheritance, and other benefits from both parents.

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7: Jurisdiction Over Divorce, Spousal Support, Property Division

A marriage can only be terminated by the state, and then only if the state has power over the marriage. **Jurisdiction** is the general power a court has to act and enter orders or judgments. There are three types of jurisdiction involved in family law matters: (1) subject-matter jurisdiction, (2) *in-rem* jurisdiction, and personal jurisdiction.

Definition: Terms Relating to Jurisdiction

Jurisdiction: The general power a court has to act and enter orders or judgments.

Subject-matter jurisdiction: The power of a court over certain types of disputes or legal actions.

In-rem jurisdiction: The power of a court over a thing that is located within the State.

Personal jurisdiction: The power of a court over a person, such that the court has the authority to make someone appear in the court and obey its orders.

Venue: The particular place, County, or Court in which the legal matter can/should be heard.

Subject-Matter jurisdiction

Subject-matter jurisdiction over divorce is exclusive to the states and is governed by state statutes. In many states, including Wisconsin, all trial courts within the state have subject-matter jurisdiction over all types of civil or criminal actions, including divorce actions. Challenges to a court's subject-matter jurisdiction in divorce are rare.

In-Rem jurisdiction

In the context of divorce, the “thing” over which the court must have power is the marriage. A court will have *in-rem* jurisdiction as long as one of the parties is **domiciled** in the State. Because *in-rem* jurisdiction only requires that one of the parties be domiciled within the state, parties can easily demonstrate that the court has power to terminate their marriage. Remember, a **domicile** is a person's permanent, “legal” home, and a person can have only one (Review how domicile is established and how domicile is different from residence in [Chapter 5](#)).

✓ Example 7.1

Anatoly lives in Arkansas. After he hears about a high-paying job in Oregon, he decides he no longer wants to live in Arkansas; he sells everything he owns, moves to Oregon, and signs a 1-year apartment lease. The cost of living is high and he decides that if he doesn't find a job paying at least \$100,000 by November, he makes plans to move to his cousin's house in Arizona. In October Anatoly dies without having found steady employment. In this scenario, Anatoly was domiciled in Arkansas until he moved to Oregon. When he moved, he clearly intended to establish his domicile in Oregon. Although he had a potential future intent to leave Oregon and establish a domicile in Arizona, he had not yet taken definitive steps to do so when he died; in fact, his plan was not to do so until November, and then only if he didn't have the type of employment he wanted. As a result, Anatoly was domiciled in Oregon when he died.

Personal jurisdiction

In the context of divorce, personal jurisdiction is required over both parties, and particularly the person who is being asked to pay something, or whose rights or duties are being impacted by the order. In addition, to enter orders regarding the parties' income, property, or children, the court must have power over the parties being impacted by those orders. If there are challenges to a court's power in a divorce action, therefore, they most often relate to personal jurisdiction.

There are several ways a court can obtain personal jurisdiction over the spouses in a divorce:

- **Consent:** If a party starts a divorce action by filing a petition for divorce, that party (the petitioner) is agreeing that the court has personal jurisdiction over them. If the other party (the respondent) is domiciled in the state and appears in court to contest any part of the divorce action, that constitutes an agreement by the respondent that the court has personal jurisdiction over them. If both parties sign and file a joint petition for divorce, then both parties have agreed to personal jurisdiction over themselves.
- **Personal Service of Process:** After the petitioner starts the divorce action, the respondent must be given **official notice of the legal action** by hand-delivery of the petition to the respondent while the respondent is within the **state where the action was**

filed (the forum state). This is true even if the respondent is domiciled in a different state and is within the forum state only temporarily.

- **Long-arm Jurisdiction:** If the respondent has at least some contact with the forum state, personal jurisdiction can be acquired through official notice even if the respondent is not present in the forum state. Long arm jurisdiction requires that the respondent have **minimum contacts** with the forum state, such as:
 - Respondent was previously domiciled in the forum state
 - Respondent cohabited with the petitioner in the forum state (even if only temporarily)
 - Respondent has visited the forum state

✓ Example 7.2

Ted and Helen are married in Texas. After five years of a tumultuous marriage, Helen moves to California. Several months later, Helen filed a divorce action in California. Ted has never lived in nor visited California. The California court enters a judgment of divorce and orders Ted to pay spousal support (alimony) to Helen. In this scenario, because Helen is domiciled in California, the California court had the power to dissolve the marriage (*in-rem* jurisdiction). However, unless the California court had personal jurisdiction over Ted, the alimony order is not enforceable. If Ted has not lived in, visited, or done business in California, there are no minimum contacts with California sufficient for long-arm jurisdiction. Thus, the only way California could obtain personal jurisdiction over Ted is through his voluntary appearance in the court action and consent to the court's personal jurisdiction.

Jurisdiction: Judgment of Divorce or Annulment

As you have seen, to enter a valid judgment of divorce terminating a marriage, a court only needs subject-matter jurisdiction over divorce actions and *in-rem* jurisdiction over the marriage. As long as one spouse is domiciled within the state, these requirements have been met.

Once it has been established that a particular state has jurisdiction, we must determine the proper **venue** for the divorce or annulment action. In most states, including Wisconsin, the venue is determined by the residence of the spouses. In Wisconsin, at least one of the spouses must have resided in the County for at least 30 days, and in the State of Wisconsin for at least 6 months, prior to starting the divorce or annulment action. [Section 767.301](#), Wis. Stats.

If one of the spouses is not domiciled in the state in which a judgment of divorce is entered, that spouse might attempt to challenge the validity of the dissolution of the marriage. There are two types of attacks against the validity of a divorce judgment: a **direct attack** and a **collateral attack**.

Definition: Attacks Against Divorce Judgment

Direct attack: An attack raised in an appeal of the original divorce proceeding in the forum state.

Collateral attack: An attack raised in a different, later proceeding, sometimes in a different state.

Whether the spouse will be successful in attacking the portion of a divorce judgment that dissolves the marriage depends on the spouse's role in the original proceeding.

A person will not be allowed to attack the validity of the judgment dissolving the marriage if that person

- Is the person who started the initial divorce action
- Appeared in court during the initial divorce action and did not raise jurisdictional challenges at that time
- Accepted other benefits (such as spousal support) based on the initial judgment
- Married someone else after entry of the initial judgment dissolving the person's first marriage, and is now seeking to invalidate the second marriage based on jurisdictional challenges to the dissolution of the person's first marriage
- Married someone who was previously divorced, and is now seeking to invalidate their marriage to that spouse by claiming the spouse's initial judgment of divorce dissolving the spouse's first marriage was invalid

This discussion applies only to jurisdiction over the portion of the judgment that dissolves the marriage. There are different requirements for the portions of the judgment ordering property division (discussed below), spousal support (discussed below), child custody and placement (discussed in later chapters), and child support (discussed in later chapters).

Order for Property Division or Spousal Support

There are two times when a jurisdictional analysis can become necessary. The first instance is when a party is starting a new legal action for divorce or annulment that seeks an initial judgment or order. The table below summarizes the types of jurisdiction necessary (in addition to subject-matter jurisdiction) for the different orders that can be a part of an action for divorce or annulment.

Initial Orders	Jurisdiction Required	How this Jurisdiction is Acquired
Property division	Personal jurisdiction over both spouses	• Personal service of process (or) • Consent to personal jurisdiction (or) • Long-arm jurisdiction over out-of-state respondent
Spousal support	Personal jurisdiction over both spouses	• Personal service of process (or) • Consent to personal jurisdiction (or) • Long-arm jurisdiction over out-of-state respondent

As long as the court entering the initial judgment of divorce had proper jurisdiction to enter these types of orders, the Full Faith and Credit Clause of the United States Constitution requires other states to enforce them.

✓ Example 7.3

The spouses marry in Virginia, where they are both domiciled. A few years later, Spouse A files for divorce in Virginia, and completes proper service of process on Spouse B in Virginia. A judgment of divorce is granted and Spouse B, over Spouse B's objections, is ordered to pay spousal support to Spouse A. Spouse B moves to Nevada, establishes domicile there, and stops paying the ordered spousal support. Spouse A sues Spouse B in Nevada to enforce the Virginia spousal support order. In this scenario, Virginia had personal jurisdiction over Spouse B when the original order was entered; therefore, Nevada must enforce the spousal support order.

✓ Example 7.4

The spouses marry in Colorado, where they are both domiciled. A few years later, Spouse A moves to Florida and establishes domicile in Florida. Spouse B remains in Colorado. Spouse A files for divorce in Florida. Spouse B receives notice of the divorce action in the mail; however, Spouse A does not complete proper service of process on Spouse B and Spouse B does not appear in the Florida court. Spouse B has never been to Florida. The Florida court grants a judgment of divorce and orders Spouse B to pay spousal support to Spouse A. Spouse B refuses to pay spousal support. Spouse A files an action in Colorado to enforce the Florida spousal support order. In this scenario, the Florida court had *in-rem* jurisdiction to dissolve the marriage. However, there was no personal jurisdiction over Spouse B when the original order was entered; therefore, Colorado does not have to enforce the spousal support order.

Modification of Spousal Support Order

What if a party wants a court to modify an existing order for spousal support that was entered as part of a judgment for annulment or divorce? This is the second scenario requiring a jurisdictional analysis. If the original order was entered after a trial in a contested divorce, a court may be willing to consider a party's request for a modification. The party seeking the modification must demonstrate that the modifying court has power over the original order for spousal support. Courts in the same state as the court that entered the original order (the **initiating state**) have *in-rem* jurisdiction over the original order. Courts from other states will only have jurisdiction over the original order if the spouse seeking the modification is domiciled in the new state and takes steps to certify the order to the new state.

Regardless of where the modifying court is located, it must also have personal jurisdiction over the responding party (the one who is not seeking modification). Thus, a similar jurisdictional analysis to what we saw above becomes necessary.

If the order for spousal support was entered based on the parties' separation agreement, the terms of that agreement may prevent its modification. If, in the agreement, the parties agreed to waive their right to seek modification of property division or spousal support, most courts will enforce that waiver unless to do so would be unconscionable under the "second look" doctrine.

Impact of Other Circumstances on Property Division or Spousal Support

Circumstances outside of attempts to enforce, attack, or modify spousal support or property division orders can also impact those orders. The impacts can differ depending on if they affect the **payee (the recipient of property division or spousal support)** or the **payor (the person obligated to provide property or payment)**. The table below summarizes some of them.

Circumstance	Spousal Support	Property Division
Bankruptcy	No impact on payee or payor; spousal support order continues	• Chapter 7: no impact on payor • Chapter 13: payor's obligation can be discharged if all outstanding spousal and child support obligations have been met
Remarriage	• Payee's remarriage terminates spousal support payments • Payor's remarriage does not terminate spousal support payments	No impact on payee or payor; property division order continues
Cohabitation	• Payee's cohabitation may terminate spousal support payments • Payor's cohabitation does not terminate spousal support payments	No impact on payee or payor; property division order continues
Death	• Payee's death terminates spousal support payments • Payor's death terminates spousal support payments unless a separation agreement provides otherwise	No impact on payee or payor; property division order continues

Next, we will explore the differences between spousal support and property division.

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8: Introduction to Spousal Support

Married couples often make financial decisions about their careers and education based on an expectation that they will support one another financially, and also make decisions to share property (unless they have agreed otherwise in a marital contract). These decisions can sometimes result in a disparity in income and property ownership in the event of a divorce. When this occurs, the court is often asked to enter orders addressing the potentially unfair economic impact a divorce may have on a spouse's income-earning potential. The following discussion assumes that the parties have not entered into a marital contract or separation agreement that covers these issues in the event of a divorce.

What is Spousal Support/Maintenance?

Spousal support (also known as maintenance, spousal maintenance, or alimony) is defined as money paid by one spouse to another spouse as financial support during legal separation or after a divorce. In the past, orders for long-term spousal support were fairly common, especially after long-term marriages; however, such orders are not automatic and are becoming rarer.

Definition: Spousal Support

Spousal support: Money paid by one spouse to another spouse as financial support during a legal separation or after a divorce.

When spousal support is ordered, it is typically either based on spousal rehabilitation or reimbursement.

- **Rehabilitative spousal support** is awarded to provide financial stability to the lower-earning spouse to allow the spouse to go back to school or undergo career training that will increase their earning capacity. The spouse may have stayed home to raise the family and care for the home instead of pursuing a career. This is short-term support until the spouse becomes self-sufficient and meets their financial needs.
- **Reimbursement spousal support** is intended to repay one spouse for their contributions to the marriage. For example, one spouse may have financially supported the other while they attended school or training to increase the other spouse's income. This spouse may have even paid for the other spouse's training and higher education costs. This form of spousal support helps to balance the benefits the other spouse receives from that support.

Investigation Relating to Spousal Support/Maintenance.

Information relating to spousal support is obtained from many sources. Although the client should be the starting point of information gathering (see [Chapter 3](#)), legal practitioners also should plan to investigate

- Public employment, education, and business records for both spouses
- Income tax records for both spouses
- Court records (including judgments, bankruptcy, and pending claims) for both spouses
- Credit reports
- Social media

Once a divorce action has been filed, discovery tools such as **interrogatories**, and **depositions** can be used. The parties can also use **Requests for Production** to obtain information.

Definition: Terms Relating to Discovery

Interrogatories: Written questions that must be answered in writing and signed under oath.

Depositions: Oral questions that must be answered under oath.

Requests for Production: Written requests for copies of documents or to inspect computers or premises.

Suggested topics and document requests include

- Employment information for the past 10 years, including
 - employer contact information
 - job title and job description
 - salary and other compensation, deferred compensation, benefits (including insurance, retirement, profit sharing, etc.)

- expectations of future promotions, raises, bonuses, etc.
- pre- and post-tax deductions from paychecks of current employer
- copies of employment contracts
- Business information (especially if self-employed), including
 - description of ownership (including purchase and sale of business)
 - contact information for all financial and legal advisors consulted regarding the business
- Other income information including
 - copies of federal, state, and local income tax returns and supporting schedules and documentation for the individual and any business in which the spouse has an ownership interest
 - names of all banks and other financial institutions where the spouse makes deposits has investments, or receives money; include account numbers and copies of statements
 - detailed description of government benefits such as social security, unemployment compensation, workers' compensation
 - information regarding current or potential litigation
 - information regarding any other source of income, including trusts, contracts, and previous court orders
- Health and disability insurance policies
- Education, training, licensing, and certification information
 - describe each credential, including when and from which entity it was earned/received
 - state who paid the costs associated with obtaining each credential, including by providing indirect or direct financial or other support/assistance
- Physical and mental health status (past, present, anticipated future)
- Description of any past or present disabilities that limit the ability to perform work, including details regarding treatment, treatment providers, etc.

Initial Order for Spousal Support/Maintenance

The amount of spousal support is based on many factors, which vary by state, and courts have a lot of discretion with respect to whether to order spousal support and if so, how much and for how long. Most state statutes require the court to consider the following factors:

- Length of the marriage
- Age, physical condition, emotional state, and financial situation of both spouses
- Earning capacity of both spouses, based on education, training, skill, and experience
- Length of time the payee spouse would need to acquire education or training to become self-sufficient
- The ability of the payer spouse to support themselves while paying spousal support
- Standard of living established during the marriage

Wisconsin's statutory factors for granting spousal support (maintenance) are located in [Section 767.56](#). Wis. Stats.

Payment of spousal support can take many forms, which can be negotiated by the parties. The most common form of spousal support is expressed as a fixed amount of monthly payments. Payments are usually required to be made pursuant to the payer spouse's regular pay schedule, which might be weekly (52 paychecks per year), bi-weekly (26 paychecks per year), or bi-monthly (24 paychecks per year). This means that the monthly amount must be converted to the correct periodic payment. In Wisconsin, the amount of monthly spousal support ordered is multiplied by .23 for weekly payers, by .46 for bi-weekly payers, and by .5 for bi-monthly payers. Additionally, in Wisconsin, spousal support is required to be paid by income assignment directly from the payer's employer to the Wisconsin Support Collections Trust Fund (WI SCTF). The payer is only allowed to make direct payments to the WI SCTF if the payer is self-employed.

Other, less common ways of calculating the amount of spousal support include

- Payment of a lump sum of the entire obligation, or larger sums based on an agreed-upon schedule. For example, suppose the total support obligation would be \$120,000. The parties could agree that the payer would make a single payment of \$120,000. The parties could also agree that the payer would pay \$60,000 when the divorce is granted, with the remaining payments being made in equal payments (\$10,000 per month for the next six months).
- Payment of a lower lump sum or "stepped-up" payments. For example, if the payee is concerned that the payer may fall behind or stop making periodic payments, this would require the payee to take expensive and time-consuming court action to collect

delinquent payments. A lower, yet guaranteed and quicker payment might be a more acceptable alternative to a higher total payment that may end up requiring the payee to expend time, money, and mental/emotional strain to collect.

- Payment of a fixed percentage of the payer spouse's earnings. This method might be used when the payer spouse's income fluctuates seasonally or due to earnings being based primarily on commission.
- Payment amounts that gradually decrease over a specified period of time ("Step-Down" support). This method might be used to "front load" support payments if the payer is nearing retirement, or as an extra incentive to the payee to become self-sufficient more quickly.
- Spousal support can also include payment toward the payee spouse's medical and dental insurance premiums or other payments as negotiated by the parties.

Additionally, spousal support orders in Wisconsin must include the requirements that, within 10 business days

- Payer and payee must notify the county child support agency of any change of address
- Payer must notify both the payee and the county child support agency of any change in employer and any substantial change in the amount of income (including bonuses)
- Payee must notify the court and the payer of the payee's remarriage.

Modifications of Orders for Spousal Support/Maintenance

Many times, a separation agreement will include a waiver by both parties of a right to seek modification of the agreed-upon spousal support. Such a provision, if incorporated into the original judgment of divorce, often results in courts refusing to modify a spousal support order unless to do so would be unconscionable pursuant to the "second look" rule. As with entering an initial spousal support order, a court must have personal jurisdiction over both parties before it can modify an existing order.

Once the court has determined it has personal jurisdiction to modify a spousal support order, the court will not do so unless there is a substantial change in circumstances justifying the modification. The change must be significant and unforeseeable at the time of the original order. Additionally, the change cannot be the result of intentional unreasonable actions by the person seeking the change, or actions taken by the payer with the intent to avoid paying spousal support. Examples of **substantial change in circumstances** may include

- Decreased earning capacity due to long-term serious illness or disability
- Bankruptcy of the payer
- Payer's reasonable decision to change jobs, retire, or go back to school
- Payer dies
- Payee cohabits, remarries, or dies
- Substantial change in the cost of living as measured by the Federal Bureau of Labor Statistics

Generally, the following **are not** considered substantial changes in circumstances that would justify a modification

- Payer's income has increased
- Payer cohabits or remarries
- Payer's decision to change jobs, retire, or go back to school is unreasonable or designed to avoid paying spousal support
- Payer is incarcerated
- Bankruptcy of payee
- Payee decides to quit work, change jobs, retire, or go back to school
- Either party violates orders regarding child custody, child placement/visitation, or child support

Enforcement of Orders for Spousal Support/Maintenance

Unfortunately, as previously alluded to in this chapter, spouses sometimes attempt to avoid paying ordered spousal support. If a person has not paid spousal support when it is due, the obligation is in **arrears**.

Definition: Arrears

Arrears: Payments that are due but have not been paid.

When this occurs, there are several options available to the payee to attempt to force payment:

- **Garnishment:** a court proceeding that forces a third party, such as an employer or a financial institution, to pay money owed to or owned by the debtor (the non-paying spouse) to the creditor (the payee spouse).
- **Execution:** a writ issued to an officer (usually the sheriff) to seize the debtor's property/asset (such as a boat or a car), sell it, and turn over the sale proceeds to the creditor
- **Contempt action:** a complaint to the court that the debtor has violated the court's order to pay and should be punished by imposing interest on the outstanding amount, imposing a fine, or incarceration

Some states also provide assistance to spouses seeking to enforce spousal support orders through agencies established under the Uniform Interstate Family Support Act (called IV-D agencies).

Tax Impact of Spousal Support/Maintenance

Previously, amounts paid as spousal support were considered taxable income for the payee and were deductible from the payer's gross income. As of January 1, 2019, this taxation/deduction was eliminated for new orders or agreements regarding spousal support. If the order modifies an agreement or order entered into before January 1, 2019, the pre-existing taxation/deduction continues unless the new order or agreement expressly states that the new law applies. This change in the law eliminated the incentive for some couples to disguise spousal support as property division (or property division as spousal support) as a way to gain tax advantages (property division is a non-taxable event that does not result in tax deductions or increases to taxable income).

Paralegal Roles

With respect to spousal support, the paralegal's primary roles are investigation, coordination, documentation, and management of information relating to income. The paralegal will assist the client in gathering information about the client's income and earning potential. Investigation of the other party's income and earning potential may also be necessary. Paralegals may work with investigators, accountants, and other vocational or financial experts. Once the information and supporting documentation are obtained, the paralegal will index and organize the information in preparation for negotiating the terms of the separation agreement and/or for presenting evidence during a contested divorce hearing.

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9: Introduction to Property Division

When a marriage is terminated, the property owned by the couple (as well as their debts), must be divided. Most of a couple's property, including assets such as retirement interests, can be divided in a divorce. **Property** includes real property, personal property, pensions/retirement assets, and business interests. The following discussion assumes that the parties have not entered into a marital contract or separation agreement that covers property division in the event of a divorce.

The Process of Property Division

The process of dividing property between the spouses can be complex. Generally, there are four steps:

1. Identifying and locating all property owned by the spouses
2. Determining the value of each item of property
3. Classifying each item of property as divisible or non-divisible
4. Applying equitable distribution factors

1. Identifying and Locating Property

Helping a client identify all the property owned by the client and by the client's spouse is one of the most difficult and time-consuming tasks in a divorce matter. The existence of physical property is sometimes “forgotten” and/or concealed by one or both spouses. Although the client should be the starting point of information gathering (see [Chapter 3](#)), legal practitioners also should plan to investigate

- Public real property, personal property, and business records for both spouses
- Income tax records for both spouses
- Social media

Using interrogatories, depositions, and requests for production (written requests for copies of documents or to inspect computers or premises) is essential to locating property owned by the other spouse. Suggested topics and document requests include

- Copies of federal, state, and local income tax returns and supporting schedules and documentation for the individual and any business in which the spouse has an ownership interest
- Detailed description of any residences or other real property, including
 - Location, address, and legal description
 - Description of interest, including nature (ownership, possession, lease, etc.), when, from whom, how, and why it was acquired
 - Source and amount of funds or other consideration used to acquire the interest
 - Description of improvements made (new or renovated structures, repairs, etc.) including when, by whom, and how they were made, as well as source and amount of funds or other consideration expended
 - Liens or loans associated with the property, including lienholder, amount owed, and source of payment toward principal
 - Value, including market value at the time of acquisition, tax-assessed value, and current value
 - Income generated by the property
 - Current condition of the property, including repairs or other improvements needed
 - Documentation relating to all of the above, including titles, loan applications, loan statements, tax records, etc.
- Detailed description of interests in personal property (similar questions and documentation to that for real property) including
 - Vehicles of any kind
 - Bank accounts, annuities, mutual funds, securities, stocks, retirement accounts, educational accounts, or financial investments of any kind (include monthly statements)
 - Personal property such as jewelry, art, collectibles, furnishings, appliances, tools, etc.
 - Intellectual property, including licensing and royalties
 - Trusts created by the other spouse or in which the spouse has an interest of any kind
- Detailed description of all debts, liabilities, or other obligations under contracts, promissory notes, and loans of any type (including purchase, private, or government loans), using questions and documentation requests similar to those above
- Detailed description of outstanding judgments and pending or potential lawsuits against the other spouse. Include all case information and documentation

- Insurance policies (life, property, disability, annuity, etc.), including copies of policies and descriptions of claims made in the past 5 years

2. Determining Value of Property

The value of a property needs to be determined at several points in time: the date on which the property was purchased/acquired, the date of the spouses' separation, and the date of the divorce. Purchase documents, account statements, and the like are a good starting point. Some types of property can **appreciate (increase in value)**, or **depreciate (decrease in value)**, or are subject to fluctuations in market value. In those circumstances, hiring a financial expert such as an accountant, appraiser, or other advisor is recommended.

Definition: Terms Relating to Property Value

Appreciate: Increase in value

Passive appreciation: Increase in value due to inflation or other market conditions

Active appreciation: Increase in value due to efforts of the owner, such as capital improvements

Depreciate: Decrease in value

Dissipation: Intentional and improper reduction or waste of property or property value

Classifying Each Item of Property

In other classes, you may have learned about different classifications of property, such as real property (land, permanent buildings, permanent fixtures, permanent plants/trees) and personal property (all other items of property including tangible things, money, and intellectual property). In the context of divorce, property is classified as either divisible or non-divisible. Whether an item of property is divisible or non-divisible depends on a variety of factors relating to how and when the property was acquired and what happened to the property during the marriage.

Under Wisconsin's Marital Property Law (Chapter 766 of the Wisconsin Statutes), **all property owned or acquired by a couple during their marriage** is presumed to be **marital property**. Marital property is generally divisible.

Individual property is defined as

- Property a spouse owned before the marriage
- Property given by a third party to only that spouse during the third party's life or as a disposition at the third party's death (for example, under a will, trust, or a life insurance policy)
- Any increase in value (appreciation) of individual property (unless it became mixed with marital property)
- Money received as a result of injury claims unless the recovery relates to repair or replacement of marital property or marital income/earnings
- Property removed from the marital property law pursuant to an "opt-out" agreement that the couple signed

Individual property generally is not divisible unless it has been commingled (mixed or combined) with marital property. There are several ways individual property can become commingled with marital property. For example, suppose one spouse had a financial investment prior to the marriage, like a mutual fund, that the spouse inherited from the spouse's parent. It remains the individual property of that spouse unless it becomes mixed with marital property. This can happen if, after the marriage, the spouse makes additional contributions to the mutual fund out of the spouse's paycheck; the same is true if the spouse receives money from the mutual fund to pay family expenses. Another example would be a spouse who owned real property with a small cottage on it prior to the marriage (and there was no lien or mortgage on the property). After the marriage, if marital funds or labor are used to significantly upgrade or build an addition to the cottage, the increased value would be marital property (though the value of the land and cottage prior to this activity would remain individual property).

In Wisconsin, all property in possession of the spouses is presumed to be divisible (in the absence of a marital contract to the contrary). If a spouse wants to claim any item of property as non-divisible property, that spouse must be prepared to provide detailed information regarding

- Date the property was acquired
- The manner in which the property was acquired (gift from a third party, purchase, exchange for other property interest, etc.)
- Source of funds used to purchase the property

- The market value of the property when acquired
- Appreciation of the property's value, and whether the appreciation was **passive or active**
- Source of funds used for capital improvements

If marital property of any kind (including income, other property, or even labor of one of the spouses) was used to purchase, maintain, or improve individual property, there is a possibility that the individual property may have become commingled with marital property and thus be treated as marital property to some extent. A spouse wanting to claim commingled property as non-divisible will need documentation allowing all or part of the property to be traced to individual property.

Applying Equitable Distribution Factors

The goal of property division is **equitable distribution: the fair and just – but not necessarily equal – distribution of property between the spouses**. Similar to spousal support, the equitable distribution of property depends on many factors, such as:

- Length of the marriage
- Contribution of each spouse to the acquisition, preservation, or increase/decrease in value of all assets (including contributions of stay-at-home spouses)
- Contribution of each spouse to the other spouse's education, training, or increased earning power
- Income and property of each spouse at the time the marriage was entered
- Current and future sources of income (including ordered spousal support) for each spouse, including employability and vocational skills, as well as retirement, insurance, and other benefits
- The amount of spousal support awarded to either spouse
- The desirability of keeping any asset (for example, a business) intact and undivided
- The importance of allowing one spouse to keep the marital home, especially if there are minor children
- Intentional and improper reduction or waste of marital assets (**dissipation**) by a spouse
- Age, physical condition, mental/emotional state, and financial situation of both spouses
- Standard of living established during the marriage

In Wisconsin, the court is required to presume that all divisible property should be divided equally between the spouses. Also, Wisconsin Statutes allow the court to consider the following factors in addition to those listed above:

- Whether one of the spouses has substantial non-divisible assets
- Whether refusal to divide a spouse's non-divisible property would create a hardship for the other spouse or for the children of the marriage.

Thus, it is possible that even individual property may be divided in some circumstances.

What About Debts?

In most cases, when it comes to division at divorce, debts are treated the same as property. Debts existing at the time of separation are presumed to be marital debts and can be assigned to either spouse (or both) upon divorce. Courts will apply the same classification rules and equitable distribution factors to debts. One important caveat: **assignment of debt pursuant to a property division order or judgment of divorce is not binding on creditors**. Thus, if one spouse is ordered to pay off debt owed on a credit card issued jointly to both spouses, the creditor can choose to take action against either or both spouses if the debt is not paid. If a spouse ends up paying a debt that was assigned to the other spouse, the remedy is to seek reimbursement through court action against the spouse to whom the debt was assigned.

Modification and Enforcement of Orders for Property Division

Because property division is usually "one and done" and is not an order for ongoing payment, orders for property division are almost never modified unless the payor/payee demonstrates that the original order was the result of fraud. Similarly, the enforcement of property division orders also looks different from the enforcement of spousal support orders.

Enforcing, or more accurately, putting into effect, a property division order usually involves the following steps:

- Physical transfer of possession of property between the spouses
- Changing the title to real property and any personal property that has ownership documentation (such as a title for a vehicle)
- For property that is subject to an existing lien (such as a mortgage or vehicle financing agreement), the recipient spouse must pay off the existing lien, or release the other spouse from the lien by refinancing the remaining balance of the existing lien
- Payment of a lump sum designed to "equalize" unequal total value of property actually distributed to the spouses

- Close all joint bank, credit card, and other financial accounts (and open individual accounts)
- Execute and implement a **Qualified Domestic Relations Order (QDRO)**, which orders a spouse's company or plan administrator for a pension, 401k or similar retirement plan to divide the value of the plan and provide it to the other spouse.

Paralegal Roles

With respect to property division, the paralegal's primary roles are investigation, coordination, documentation, and management of information. The paralegal will assist the client in gathering information about the client's property and its value. Substantial investigation of the other party's property and its value may also be necessary. Paralegals may work with investigators, appraisers, accountants, and other financial experts. Once the information and supporting documentation is obtained, the paralegal will index and organize the information in preparation for negotiating the terms of the separation agreement and/or for presenting evidence during a contested divorce hearing.

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10: Overview of Commencing a WI Divorce

Commencing a Wisconsin Divorce

Although each county in Wisconsin has its own procedures, there are procedures and considerations common to all counties. Below is an overview of those procedures, with links to Wisconsin's Circuit Court Forms for divorce.

10 Basic Steps for Getting a Divorce or Legal Separation

Even though each county may do things a little differently, or call various hearings by different names, there is a basic structure to how a divorce or legal separation will proceed in Wisconsin.

1. **Decide How You Will File.** You need to decide if you and your spouse will be signing the Petition together (filing jointly) ([FA-4110V](#) with Minor Children or [FA-4111V](#) without Minor Children) or if only one of you will be completing the forms to start the action (filing alone) ([FA-4108V](#) with Minor Children or [FA-4109V](#) without Minor Children).
2. **Decide If You Need a Temporary Hearing.** You may request a temporary hearing before the Family Court Commissioner by completing an Order to Show Cause and Affidavit for Temporary Order ([FA-4128VB](#) & [FA-4128VA](#) with Minor Children or [FA-4129VB](#) & [FA-4129VA](#) without Minor Children) if you and your spouse cannot agree on any of the following issues:
 - Child Custody
 - Use of automobiles or other personal property
 - Child Placement
 - Payment of bills
 - Child Support
 - Payment of maintenance or spousal support
 - Use of the family residence
3. **File the Action.** The summons and petition (or joint petition) for divorce or legal separation and confidential petition addendum must be filed and a fee paid to the Clerk of Circuit Court. (Note: There is a mandatory 120-day waiting period before the court can hear the final hearing.)
4. **Deliver (or serve) copies of the documents to those who must receive them.** In order for the court to hear the case, your spouse must be provided with copies of the summons, petition, confidential petition addendum, and proposed parenting plan. Proof of that service must be filed with the Clerk of Circuit Court.
5. **Obtain a Temporary Order (if needed).** If you completed the Order to Show Cause and Affidavit for Temporary Order (see #2) you must attend the Temporary Hearing you requested to have a temporary order issued. If you and your spouse reach an agreement, you can complete and file a Stipulation for Temporary Order ([FA-4126VA](#) & [FA-4126VB](#) with Minor Children or [FA-4127VA](#) & [FA-4127VB](#) without Minor Children). If you and your spouse don't believe it is necessary to have a formal temporary order, you may ignore this step at this time. If the situation changes before the final hearing, either spouse may seek a temporary order.
6. **If there are minor children, complete any required parenting programs. If you do not reach an agreement in mediation, you must file a proposed parenting plan ([FA-4147V](#)) within 60 days of finishing mediation or as ordered by the court.**
7. **Obtain a date and time for the next hearing.** In some counties, the court automatically schedules the next hearing. In other counties, you may have to contact the court to schedule the next hearing. This next hearing, depending on the county, may be the final hearing.
8. **Complete your paperwork for the final hearing:**
 1. Marital Settlement ([FA-4150](#) with Minor Children or [FA-4151V](#) without Minor Children)
 2. Financial Disclosure Statements ([FA-4139V](#))
 3. Findings of Fact, Conclusions of Law, and Judgment of Divorce ([FA-4160VA](#) with Minor Children or [FA-4161VA](#) without Minor Children)
 4. Vital Statistics Form (from the Clerk of Circuit Court office)
 5. Any other forms required by the Court
9. **Attend your final hearing.** Arrive early, be prepared, bring your paperwork, and be polite.
10. **Complete any other documents required after the final hearing.** Sign car titles and real estate deeds; complete documents to divide pension plans (QDRO); change beneficiaries on life insurance policies; revise your will, and other matters when appropriate.

Legal Issues to Consider

Jurisdiction: Where should you file?

Divorces and legal separations are filed in the county you currently reside, not where you were married.

To file for divorce in a County in Wisconsin, at least one of the parties must:

- Be a **resident of the State of Wisconsin** for at least **6 months** immediately before the date the action is filed, and
- Be a **resident of the County in which you are filing for divorce** for at least the **30 days** immediately before the date the action is filed.

To file for legal separation in a County in Wisconsin, at least one of the parties must:

- Be a **resident of the State of Wisconsin** for at least the **30 days** immediately before the date the action is filed, and
- Be a **resident of the County in which you are filing for legal separation** for at least the **30 days** immediately before the date the action is filed.

Divorce, Legal Separation, or Annulment?

Divorce

Divorce **ends** a marriage. The court rules on such issues as the division of property, maintenance (spousal support), and if necessary, arrangements for child support, legal custody, and physical placement. There is a 120-day waiting period to get divorced. Once the divorce is granted, the parties cannot remarry anywhere in the world for at least six months.

Spouses do not have to give reasons for wanting a divorce. Wisconsin is a "no-fault" divorce state, which means neither spouse must prove that the other has done anything wrong, and only one spouse must testify under oath that he or she believes that the marriage is irretrievably broken. A marriage is irretrievably broken when there is no chance for reconciliation.

Legal Separation

Legal separation **does not end** a marriage. The court rules on the same issues as for divorce. The forms, instructions, procedural information, and waiting period (120 days) for obtaining a legal separation are also the same as those for divorce. Spouses are free to reconcile at any time. Spouses cannot marry another person while they are legally separated. If the spouses agree, they may convert the legal separation to a divorce at any time. If they do not agree, either spouse may convert the legal separation into a divorce by filing a motion to do so after one year from the date the legal separation was granted. The parties may not remarry anywhere in the world for at least six months from the day the legal separation is converted to a divorce.

Spouses do have to give a reason why they are requesting a legal separation and not a divorce. Both of the spouses will have to give testimony under oath that the marital relationship is broken.

Annulment

An annulment is a court procedure that declares that a marriage never existed. However, a court may annul a marriage only under limited circumstances. A short term marriage IS NOT a legal reason for annulment. See Wisconsin Statute 767.313 for the acceptable reasons to request an annulment. The forms, instructions, and procedural information provided by the Wisconsin Court System **are not** designed to be used to request an annulment. You should seek legal assistance if you feel you qualify and would like to file an annulment.

Other Issues to Consider

Legal Custody

Legal custody refers to the major decision-making authority for a minor child, including but not limited to decisions regarding consent to marry, enter military service, obtain a driver's license, authorization for non-emergency healthcare, and choice of school and religion. Wisconsin law presumes that it is in the best interest of the minor child that the parents be granted joint legal custody. Joint legal custody means that **neither** parent's legal custody rights are superior, except as ordered by the court or agreed to by the parents. A court may find that awarding joint legal custody would be harmful to the minor child and order sole legal custody to one parent.

Physical Placement (Visitation)

Physical placement refers to the right to have a minor child physically placed with a parent. It gives that parent the right and responsibility to make, during that placement, routine daily decisions regarding the child's care. One parent may be awarded physical placement with the other parent having periods of physical placement (visitation), or the parents may be awarded shared physical placement. If either parent is awarded less than 25% placement, specific reasons must be given explaining why more placement with that parent is not in the child's best interest.

Mediation

It is recommended that the parents come to an agreement as to the legal custody and physical placement of their children. If they cannot, and a dispute arises, the court will order that the parents attend a mediation session. Parents must submit parenting plans (FA-4147V) to the mediator 10 days before the initial mediation session. If the parents are still unable to come to an agreement, the court may make other orders, including the appointment of an attorney to represent the interests of a minor child (Guardian ad Litem), and the filing of a Proposed Parenting Plan with the court. In making a final decision on legal custody or physical placement, the court will consider all factors related to the best interest of the child, including those listed in WI Statute 767.41, which is available at the following website: <https://docs.legis.wisconsin.gov/statutes/statutes/767/v/41>

Personal Safety Issues

If your case involves minor children, and you have serious reason to believe that your health, safety, or liberty or that of a minor child would be jeopardized by the disclosure of certain identifying information both in paper and electronic records, you may request that identifying information be sealed from the public or the other party until a hearing is held. Once you have completed the forms (GF-177 and GF-178), the court will schedule a hearing. At that hearing, you will have to convince the judge that it is in the interest of justice for the information to continue to be sealed.

Child Support

The court may order either or both parents to pay child support for a child who is:

- Under the age of 18, or
- Age 18, but less than 19, and pursuing an accredited course of instruction leading to a high school diploma or its equivalent.

Payments for **child support** are generally intended to include basic support costs including food, shelter, clothing, transportation, personal care, and incidental recreational costs. Under a shared placement circumstance, parents may also be required to pay **variable costs** (reasonable expenses above basic support costs) in addition to child support, including child care, tuition, a child's special needs, or other activities that involve substantial costs.

Child support is calculated based on the percentage standard guidelines established by the State of Wisconsin Department of Children and Families (DCF). **Not every family situation is the same, so the approach that applies to a specific situation may be somewhat different from the guidelines.** The court may order an alternative that is greater or less than the guidelines if the use of the guidelines is unfair to one of the parents or children based on the circumstances, including but not limited to shared-placement, split-placement, low-income, high-income, or serial-family payer circumstances. The child support standard guidelines are based on the "gross" (pre-tax) income of the payer or both parties and the number of children they have in common. The designated percentage amounts are:

- 17% for one child
- 25% for two children
- 29% for three children
- 31% for four children
- 34% for five children

Maintenance (Spousal Support)

A spouse seeking support from the other spouse may request maintenance in the divorce or legal separation. The court may order maintenance for a limited or indefinite length of time. When considering whether to award maintenance, the court will look at all of the circumstances of the parties, including but not limited to, the factors listed in WI Statute 767.56. This statute is available at the following website: <https://docs.legis.wisconsin.gov/statutes/statutes/767/vi/56>

Property Division

Wisconsin presumes that all property, other than property that a party receives as a gift or through inheritance, will be divided equally (after considering all debts). To achieve an equal division of property, the judge may award property to one party and a cash payment to the other party. The judge may divide property unequally after considering the factors described in WI Statute 767.61, which is available at the following website: <https://docs.legis.wisconsin.gov/statutes/statutes/767/vii/61>

If the spouses agree on how to divide all their property, they must provide a description of which spouse will receive which property. This also applies to the property that may have already been divided. **If the spouses have already divided the property, or it is only in one spouse's name, they must still tell the court which spouse will get what property and the value of that property.**

Debts and Obligations

The spouses must disclose all debts, regardless of who they believe will be responsible for them. The judge will determine which spouse is responsible to pay the debts and other obligations after considering any agreements between the parties. Even if the judge orders one spouse to pay certain debts after divorce/legal separation, creditors are not bound by the court order established in Family Court and may seek payment from the other party if the party ordered to make the payments doesn't pay or files for bankruptcy. If this occurs, the party may request relief from the Family Court, but only if a specific order was established for payment of the debt or obligation.

(FA-4100; Basic Guide to Divorce - wicourts.gov)

As you can see, the process to begin the divorce action differs depending on whether both parties sign a Joint Petition for Divorce, or one party starts the action by filing a Summons and Petition for Divorce. The main differences are shown in the table below:

Type	Joint Petition	Summons & Petition
Service of Process	Not necessary; by signing the Joint Petition both parties are agreeing to the court having personal jurisdiction over them	Personal service on the respondent is required within 90 days after the Summons & Petition are filed. Proof of service must be filed with the court Respondent may also sign and file an Admission of Service form.
Waiting Period for Final Divorce Hearing	120 days after the date on which the Joint Petition is filed	120 days after the date on which Respondent is served with the Summons and Petition

Service

“Service” or “service of process” are the legal terms used to describe the act of giving notice of a lawsuit or court hearing to another person. There are several different methods and very specific time limits by which you must have the other party served. The type of service you are required to use depends on the type of forms you are filing. If you do not have the other party served properly (within the correct time limits and using the correct method), the court cannot hear or decide your case.

Notice: This section describes only the most common methods of service available for use. Please seek legal assistance if you would like to explore additional/alternative methods or if the forms you are filing are not listed.

NOTE: If you are unable to serve the other party within the required time limits, you may write a letter to the court requesting a different court date.

Warning

Copies, NOT original documents, should only be given to the other party. The originals (if in your possession) and proof of service need to be returned to court after the other party has been served.

Personal Service

There are **five** basic ways to have the other party personally served:

Admission of Service by the State of Wisconsin / Child Support Agency

If the **State of Wisconsin** is a party to the action, you must serve your local Child Support Agency using the following steps below.

- Take a copy of the forms to be served and an **Admission of Service** form (FA-4119V) to the Child Support Agency.
- Give the papers to a representative from the Child Support Agency and ask him/her to “admit service”. He/she will complete the bottom portion of the **Admission of Service** form.
- Return the **Admission of Service** form to the Clerk of Courts Office as proof of service (keep a copy for your records).

Admission of Service for the other party

You may give the documents to the other party and **ask** that he/she voluntarily accept the papers from you. If the other party agrees to accept the documents, you need to:

- Complete the caption of the **Admission of Service** form (FA-4119V).
- Have him/her complete and sign the bottom.
- Return the **Admission of Service** form and a set of the documents served, as soon as possible to the Clerk of Courts. Remember to keep a copy for your records.

If the other party will not voluntarily accept the papers from you, or you do not wish to have contact with the other party, you must have the other party served using one of the other methods described below.

Sheriff's Department

The **Sheriff's Department**, of the County in which the individual to be served resides, may serve the other party. Proof of service and a set of documents that were served must be returned to court as soon as possible. Remember to keep a copy for your records.

Private Process Server

You may make arrangements with a **private process server** to have the other party personally served. Contact individual companies for fees and procedural information. To find a private process server in your or the other party's area, you may look under “Process Service” using a phone or internet directory or by going to <http://www.iprocessservers.com>. Proof of service and a set of documents that were served must be returned to court as soon as possible. Remember to keep a copy for your records.

Service by a Friend or Relative

A friend or relative who is over 18, is a resident of Wisconsin and is not a party to the action can also serve the other party.

- **You:** complete the caption of the **Affidavit of Service** form (FA-4120V).
- **Friend or Relative:** Gives a copy of the paperwork to the other party.
- **Friend or Relative:** Completes the bottom portion of the **Affidavit of Service** and signs it.
- **You:** Return the **Affidavit of Service** form and a set of the documents served, as soon as possible to the Clerk of Courts. Remember to keep a copy for your records.

Service by Publication

Before attempting this last resort, you should consider seeking legal assistance. There are specific and complicated rules that must be followed to successfully serve a party by publication.

Service by Publication is a **last resort** and can only be used if you failed to have the other party served by one of the methods above. You have a responsibility to make every effort to make personal service if possible, which includes gathering reasonably available information from family and friends to try and determine the other party's location.

The option of **Service by Publication** is only available to you if you can answer yes to all of the following:

- You have tried personal service through the Sheriff's Department or a private process server.
- You have given them as much information as possible to help them find the other person.
- The Sheriff's Department or private process server cannot find the other person after a diligent search.
- You have been given an **Affidavit of Due Diligence/Not Found/Attempted Service** by the Sheriff's Department or private process server stating that the other party could not be found. Keep this affidavit.

The Service by Publication Packet (FA-5001V) is available to assist individuals who are filing an action for divorce/legal separation.

Service by Mail

Serving documents to the other party by mail is allowed for certain types of forms. If service by mail is allowed, you must:

- Mail copies of the documents to the other party.
- Sign a sworn affidavit called the **Affidavit of Mailing** (FA-4121V).
- Return the **Affidavit of Mailing** and a set of the documents that were mailed to the Court as soon as possible. Remember to keep a copy for your records.

(https://www.wicourts.gov/formdisplay/FA-5000V_instructions.pdf?formNumber=FA-5000V&formType=Instructions&formatId=2&language=en)

✓ Who's Who in the Court System

Judge: An elected public official with authority to hear and decide cases in a court of law. Municipal court judges preside over cases originating in their own city involving only local laws and traffic offenses. Circuit court judges are trial court judges with jurisdiction over all kinds of cases. There is a circuit court in each county. Appellate judges review the records of trial court proceedings to interpret the law and correct errors made by the trial courts.

Court commissioner: A lawyer appointed by the circuit judges of a county who, as a judicial officer, exercises many of the functions of a judge, by conducting hearings and making findings and recommendations. Commissioner duties vary from county to county but may include small claims, preliminary criminal proceedings, and other cases. Commissioners who hear family cases such as divorce, paternity, and child support are sometimes referred to as family court commissioners.

Court reporter: A person who makes a word-for-word record of what is said in court and produces a written transcript of the proceedings upon request.

Clerk of court: An elected county official who receives legal pleadings, issues subpoenas and warrants, enters judgments, collects fines, and keeps records of court proceedings.

Clerk: A member of the clerk of courts staff, who provides in-court assistance to the judge. The clerk keeps track of documents, exhibits, and scheduling, and keeps an abbreviated record of court proceedings.

Bailiff: A court officer who keeps order in the courtroom and has custody of the jury. The bailiff may be from the county sheriff's department.

Judicial Assistant: An administrative assistant to a judge who provides clerical support.

Interpreter: An officer of the court who interprets court proceedings between English and another language. Interpreters may work on contract with the court or as county employees.

Register in probate: A county official appointed by the circuit judges who keeps records of court proceedings in probate cases and oversees the administration of estates. Probate cases include wills, trusts, guardianships, and mental health commitment hearings. This position is similar to the clerk of court and sometimes part of the clerk of court's office.

Juvenile clerk: A county official appointed by the circuit judges who keeps records of court proceedings in juvenile cases, including juvenile delinquency, juveniles in need of protective services, and CHIPS (child abuse and neglect.) This position is usually combined with the Register in Probate, but sometimes is an employee of the clerk of court's office. Not all counties have a separately appointed juvenile clerk.

Sheriff: An elected county official responsible for law enforcement and public safety. The sheriff serves complaints, subpoenas, and warrants.

Attorney: A trained and licensed advocate, counsel, or agent who handles cases in the courts or manages the legal affairs of a client. Attorneys may be in private practice, work for the government, or work for a business or nonprofit group.

Prosecutor: A trial attorney representing the government in criminal cases and forfeiture cases. The prosecutor decides who and when to prosecute. Depending on the offense, cases may be prosecuted by an assistant attorney general who works for the state, by a district attorney elected at the county level, by a municipal attorney for violations of city or county ordinances, or by a corporation counsel who works for the county.

Defense attorney: An attorney who represents the defendant, usually in a criminal case. A public defender is an attorney employed by the state whose work consists primarily of defending people who cannot afford a lawyer. Defense attorneys may

also be private attorneys appointed by the court or paid by the defendant.

Probation officer: A state official who supervises a criminal defendant placed on probation. The probation officer monitors the progress of a probationer and takes action if the probationer violates the conditions of release.

Guardian ad litem (GAL): An attorney appointed by the court to represent the best interests of a party or someone affected by the matter. A GAL is often appointed to represent the best interests of a child in child abuse and neglect, juvenile delinquency, and divorce cases. A GAL may also be appointed to represent the best interests of adults and children in guardianships, protective placements, and other matters.

Coroner: An elected county official who inquires into the causes of any death that occurs under unusual circumstances.

Chief judge: A circuit court judge appointed by the Supreme Court to oversee the administrative activities of a judicial district and provide judicial leadership within the district.

District court administrator: A professional court administrator hired by the state to oversee the administrative, and non-judicial activities of the courts in each judicial district. The DCA may be the person responsible for coordinating interpreter services within the district.

[Wisconsin Court System - Court services - For the public - Self-help law center \(wicourts.gov\)](https://wicourts.gov)

Paralegal Roles

When a client comes to the law office requesting a divorce, the paralegal's role is to support the supervising attorney in providing legal services and acting as liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, conducting factual investigation and/or legal research, drafting documents as directed by the supervising attorney, facilitating the signing of documents, and filing documents with the court or other state agency.

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11: Introduction to Child Custody and Placement

Generally, child custody and placement laws assume that children are healthiest and happiest when they have good relationships with both parents. Tragically, it is the children who suffer most when their parents' relationship ends and the parents are unable to agree regarding what is best for their children. When this occurs, whether in divorce or paternity cases, the courts are called upon to make difficult decisions concerning who has the authority to make decisions about the children's well-being and where the children will live until they reach the age of majority. In these cases, the two issues to be addressed are legal custody and physical placement of the children.

Legal Custody

When a child is born, both parents have the right to direct the care, custody, and control of the child. Child custody is a fundamental right of the parents, protected by the Due Process clause of the United States Constitution, as stated in the United States Supreme Court case of *Troxel v. Granville*, 530 U.S. 57 (2000). As a result, Wisconsin and many other states presume that the parents should have legal custody over their children, regardless of whether the parents are or were ever married.

Definition: Legal Custody

Legal custody: The right to make major decisions regarding a child's life relating to the child's health, education, religion, and general welfare.

In Wisconsin, this "includes but is not limited to, decisions regarding consent to marry, consent to enter military service, consent to obtain a motor vehicle operator's license, authorization for nonemergency health care and choice of school and religion." [Section 767.001\(2m\), Wis. Stats.](#) What is a "major" decision isn't specifically defined by the law. However, "major" decisions are generally considered to be those that impact the child's life as a whole over the long term, as opposed to "day-to-day" decisions. The table below provides some comparisons:

Child's Life Categories	Major decisions	Day-to-day decision
Health	Which doctor will provide regular health care	Whether to take the child to urgent care for symptoms of an ear infection
Education	Which school the child will attend	Transportation to school or extra-curricular activities Whether to sign a permission slip for a field trip
Religion	Will the child practice a religion, and if so, which one?	When and where to attend religious services (within the religious practice chosen by the parents)
General welfare	Consent for the child to marry or enter military service	Bedtime, study time, diet, extracurricular activities, social activities, and discipline

In Wisconsin, a parent has the right to access the child's records relating to education, physical and mental health care, and other official records regardless of whether the parent has legal custody (unless the court orders otherwise). Wisconsin statutes require schools and health care providers to give both parents school, medical, and dental records (including report cards, notices of parent/teacher conferences, health notices, prescription information, etc.). [Section 767.41\(7\), Wis. Stats.](#)

Wisconsin's statutory requirements for parenting plans (which must be filed in any action involving issues relating to legal custody or physical placement) also shed some light on what are considered to be "major decisions." Among other topics, the parenting plan must provide information about

- Who will provide any necessary child care when the parent cannot, and who will pay for the child care
- Where the child will go to school
- What doctor or healthcare facility will provide medical care for the child
- What the child's religious commitment will be, if any

There are two types of legal custody that can be ordered: (1) joint legal custody and (2) sole legal custody.

Definition: Types of Legal Custody

Joint legal custody: Both parents have equal (though not necessarily simultaneous) decision-making rights. This means that the parents should make these decisions together; neither parent has “veto power” over the decisions or desires of the other parent. While collaboration is not required for day-to-day ordinary or routine decisions made while the child is with the parent, those decisions should be consistent with major decisions that should be jointly made by the parents.

Sole legal custody: Only one parent has decision-making rights. This means that the parent not having legal custody must abide by the other parent’s decisions and does not have a right to provide input or otherwise control major aspects of the child’s life. Sole legal custody is rare.

Physical Placement/Custody and Visitation

Definition: Physical Placement

Physical Placement: The right of an adult to have a child residing with the adult.

In Wisconsin, the right to have physical placement also includes “the right and responsibility to make, during that placement, routine daily decisions regarding the child’s care, consistent with major decisions made by a person having legal custody.” [Section 767.001\(5\)](#), Wis. Stats. Physical placement has also been referred to as physical custody; however, to avoid confusion between this right and legal custody, this textbook will refer to this right as physical placement.

In Wisconsin, there are four types of physical placement that can be ordered: (1) shared physical placement, (2) primary/secondary physical placement; (3) sole physical placement, and (4) split physical placement. Other states have similar types of physical placement, though they may use slightly different terminology. Some states previously referred to the parent with fewer overnights as having “visitation” with the children; however, this term is no longer preferred because it tends to diminish the importance of the parent’s time and relationship with the child.

Definition: Types of Physical Custody in Wisconsin

Shared physical placement: The child’s placement with one parent is at least 25% of the time. If a placement schedule dictates that the child spends at least 25% of the overnights with a parent (92 overnights in a 365-day period), it is considered shared placement. Notice that “shared” doesn’t necessarily mean “50/50” or “exactly equal.”

Primary/secondary physical placement: The child’s placement with one parent is at least 76% of the time. This means that the child has fewer than 92 overnights with the other parent.

Sole physical placement: The child has placement with only one parent. The child may “visit” with the other parent under controlled or supervised circumstances and that parent has very little control over the interactions with the child. Sole physical placement is rare.

Split physical placement: When two or more children of the same parents have different physical placement allocations and/or physical placement schedules. Split physical placement can occur as a combination of shared placement and primary/secondary placement. For example, one child might have shared placement with the parents, and that child’s sibling may be placed with one parent 80% of the time and the other parent 20% of the time. Split physical placement can also occur as a combination of shared placement and sole placement, where one child has shared placement with both parents and that child’s sibling is placed with one parent all of the time. Because it is generally preferred to keep siblings together, split placement is not very common.

Definition: Visitation

Visitation: Access to the child. An order for visitation gives a person permission to spend time with the child, perhaps even for one or more overnights, but *it is not the same as physical placement*. Visitation is **generally granted to persons other than parents** (such as grandparents or other close relatives) who share an especially close relationship with the child. Visitation may

also be granted to a parent who is otherwise unfit to receive physical placement. A more in-depth discussion of visitation occurs later in this chapter.

Jurisdiction Over Orders Regarding Legal Custody and Physical Placement

Before a court can enter an enforceable order regarding legal custody or physical placement, the court must have subject-matter jurisdiction and also personal jurisdiction. Prior to the 1960s, a state court could assert jurisdiction over a child if it had a "significant relationship with the child." This meant that a parent could move the child to another state in an attempt to take advantage of what the parent perceived to be legal custody and placement laws favorable to that parent, and then seek entry of an order or modification of an existing order. To discourage this type of behavior, the National Conference of Commissioners on Uniform State Laws (now the Uniform Law Commission) drafted uniform state laws, the most recent of which is the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA). As of March 2025, every state except Massachusetts has adopted the UCCJEA.

Because these orders impact primarily the child, it is the child's domicile (sometimes called "home state") and/or the child's presence in the state that dictates whether a state has the power to enter an initial legal custody or physical placement order or to modify an existing order under the UCCJEA. The table below summarizes the types of jurisdiction, in order of priority, under the UCCJEA:

Jurisdiction	Power to enter initial orders	Power to modify existing orders
Home State Jurisdiction	The home state has priority jurisdiction to enter the initial order if either of the following exists - The child has lived with a parent (or other adult acting as a parent) for at least six consecutive months immediately before a child custody proceeding was filed (or since birth if the child is less than six months old). OR - The state was the home state of the child within six months before the court proceedings were filed, and a parent continues to live in the state, but the child is now absent from the state	The home state has exclusive continuing jurisdiction to modify the initial order unless no one – neither parent nor the child – resides in the state
Significant Connections or Substantial Evidence Jurisdiction	This state is next in priority and has jurisdiction if all three of the following exist - There is no home state (or the home state declines to exercise its jurisdiction), AND - The child and at least one parent have significant connection to the state, other than merely being present in the state, AND - There is substantial evidence relating to the child's care, protection, training and personal relationships in the state.	This state cannot modify existing orders unless the home state no longer has jurisdiction or declines to exercise jurisdiction

Jurisdiction	Power to enter initial orders	Power to modify existing orders
Temporary Emergency Jurisdiction	This state can make temporary orders if both of the following exist • The child is present in the state AND • The child has been abandoned or there is an emergency requiring protection of the child due to mistreatment, abuse, or domestic violence (or threats of any of those) against the child, a sibling, or a parent.	This state can enter only temporary emergency orders that will be in effect only until a state with home state or significant connection/substantial evidence jurisdiction intervenes and enters a permanent order
Last Resort Jurisdiction	This state has jurisdiction to enter the initial order if either of the following exists • No other state has a home state or significant connection/substantial evidence jurisdiction OR • Every other state that has jurisdiction has declined to exercise jurisdiction	This state cannot modify orders unless the home state no longer has jurisdiction or declines to exercise jurisdiction, and the state with significant connection/substantial evidence of jurisdiction to modify has declined to do so

It may seem odd that a court that appears to have either a home state or significant connection/substantial evidence jurisdiction would decline to exercise that jurisdiction. However, as mentioned previously in other contexts, the **“clean hands doctrine”** may be grounds for a court to decline to exercise jurisdiction over an action brought by the parent with **dirty hands**. Thus, if a parent removes a child to another state for the sole purpose of trying to find a “friendly” court that is likely to enter an order in favor of that parent (also known as **forum shopping**), the court can refuse to exercise its jurisdiction as long as doing so would not harm the child.

Definitions:

“Clean hands doctrine”: An equitable doctrine that is intended to prohibit someone from obtaining judicial relief when that person is also guilty of behaving in bad faith, unethically, or illegally.

Dirty hands: Wrongdoing or other inappropriate behavior that would make it unfair or inequitable to allow a person to assert a right or defense otherwise available to that person.

Forum-shopping: The practice of choosing a court in which to bring an action for the sole purpose of trying to find a “friendly” court that is likely to enter an order in favor of that person.

The Full Faith and Credit Clause of the United States Constitution, along with the federal **Parental Kidnapping Prevention Act (PKPA)**, apply to the enforcement and modification of existing legal custody and physical placement orders. In addition to precluding states other than the home state from modifying existing orders (regardless of whether the case involves child kidnapping), the PKPA created the Federal Parent Locator Service, which can help locate an absent parent or child.

In the case of unauthorized removal or kidnapping of a child out of the United States, there are some remedies depending on the country to which the child is taken. The first step is for the U.S. State Department to open an International Parental Child Abduction case, in addition to the concerned parent requesting that the child’s name be entered into the databases for the National Crime Information Center (NCIC) and the Federal Bureau of Investigation (FBI). If the child has been removed to a country that is a member of the Hague Convention on the Civil Aspects of International Child Abduction, action may be taken through the country’s central authority designated to address questions of where the ensuing custody dispute should be heard. While convention countries have agreed that children wrongfully removed to their countries should be promptly returned to the place having jurisdiction to determine the parents’ rights, those countries do not directly enforce orders from other convention countries. Similarly, the US Department of State’s Office of Children’s Issues does not provide legal representation, but it can provide information and assistance with coordinating the aggrieved parent’s concerns.

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12: Considerations in Child Custody Orders

The ultimate goal with respect to orders impacting children is to foster and encourage the child's well-being, health (mental, emotional, physical), security, and emotional development into young adulthood, while at the same time preserving the Constitutional rights of the parents. Fortunately, in most cases, the parents are able to agree regarding legal custody and physical placement of their children. Most states have established procedures that encourage the parties to agree, based on the theory that the parties are more likely to abide by orders based on their agreement. When legal custody is disputed, however, the courts must intervene.

Initial Order for Legal Custody and Physical Placement

Legal custody and physical placement laws are fairly similar across all 50 states, with the overriding factor being the **best interest of the child**. How the best interest of the child is defined varies by state, and courts have a lot of discretion with respect to what is in a specific child's best interest.

In Wisconsin, joint legal custody is presumed to be in the child's best interest. Similarly, courts are directed to "set a placement schedule that allows the child to have regularly occurring, meaningful periods of physical placement with each parent and that maximizes the amount of time the child may spend with each parent, taking into account geographic separation and accommodations for different households."

In addition to those presumptions, Wisconsin statutes require the court to consider the following factors when determining what is in the child's best interest:

- The wishes of the child's parents as contained in a proposed parenting plan or stipulation
- The wishes of the child, as communicated by the child or through the child's guardian ad litem or other appropriate professional
- The cooperation and communication between the parents, and whether either parent unreasonably refuses to cooperate or communicate with the other parent.
- Whether each parent can support the other parent's relationship with the child, including encouraging and facilitating frequent and continuing contact with the child, or whether one parent is likely to unreasonably interfere with the child's continuing relationship with the other parent.
- The interaction and interrelationship of the child with his or her siblings, and any other person who may significantly affect the child's best interest.
- The interaction and interrelationship of the child with his or her parent or parents and the amount and quality of time that each parent has spent with the child in the past, any necessary changes to the parents' custodial roles, and any reasonable lifestyle changes that a parent proposes to make to maximize placement with the child.
- Whether a parent, someone who resides in the parent's household, or someone in a dating relationship with a parent has or had a significant problem with alcohol or drug abuse.
- The child's adjustment to the home, school, religion, and community.
- The age of the child and the child's developmental and educational needs at different ages.
- Whether the mental or physical health of a parent, minor child, or other person living in a proposed custodial household negatively affects the child's intellectual, physical, or emotional well-being.
- Whether a parent, someone who resides in the parent's household, or someone in a dating relationship with a parent has a criminal record or has engaged in abuse of the child or any other child or neglected the child or any other child.
- Whether there is evidence of interspousal battery or domestic abuse
- The reports of the appropriate professionals, if admitted into evidence.

Some courts also consider the "stability" and "continuity" of the parent's household, as well as the parent's "availability" to respond to the child's day-to-day needs. These courts look at the proportion of time each parent spent performing caretaking functions (for example, taking the child to appointments, helping with homework, changing diapers, etc.) prior to the divorce or paternity action.

Unfit Parents

Unless a person is deemed "unfit," the law cannot interfere with that person's fundamental rights to be a parent. Although there is no specific definition of what makes a parent "unfit," again there is some language in the Wisconsin statutes that provides some insight:

- The “court shall presume that joint legal custody is in the best interest of the child.” However, there is “a rebuttable presumption that it is detrimental to the child and contrary to the best interest of the child to award joint or sole legal custody to that party” if the court “finds by the preponderance of the evidence that a party has engaged in a ***pattern or serious incident of interspousal battery or domestic abuse.***” [Section 767.41\(2\)\(d\), Wis. Stats.](#) (emphasis added). Click on the link and read the statute for details about what needs to be proven and how the rebuttable presumption may be overcome.
- “A child is entitled to periods of physical placement with both parents unless, after a hearing, the court finds that physical placement with a parent would ***endanger the child’s physical, mental or emotional health.***” [Section 767.41\(4\)\(b\), Wis. Stats.](#) (emphasis added),
- A party “is not capable of performing parental duties and responsibilities or does not wish to have an active role in raising the child.” [Section 767.41\(2\)\(b\)2.a., Wis. Stats.](#)
- A party unreasonably refuses to cooperate with the other party. [Section 767.41\(2\)\(b\)2.c. and 767.41\(2\)\(c\), Wis. Stats.](#)

The following circumstances **do not** make a parent “unfit” and thus are not grounds for denying legal custody or, at a minimum, visitation:

- Failure to pay court-ordered child support, family support, or spousal support. [767.41\(4\)\(c\), Wis. Stats.](#)
- A party is (or is not) a certain gender or race. [767.41\(5\)\(am\), Wis. Stats.](#) Gender or race also cannot be a ground of “preference” regarding granting legal custody and/or physical placement
- With respect to legal custody, military service of a parent, including whether the service member has been or may be called to active duty and consequently is, or in the future will be or may be, absent from the service member’s home. [767.41\(5\)\(c\), Wis. Stats.](#)
- With respect to legal custody, a parent’s incarceration. Also, a court may order the child to visit the parent while the parent is incarcerated.

Generally speaking, a parent (or the parent’s circumstances) will not be seen as “unfit” unless there is evidence of harm to the child’s best interest that would justify restricting a parent’s right to legal custody or physical placement. While domestic violence, child abuse (physical or sexual), or other crimes committed against the child or the other parent, and threats to kidnap the child present fairly clear justifications for restrictions (such as supervised placement and exchange/transfer of the child), they do not always justify outright denial of legal custody or physical placement. Similarly, other issues such as parental substance abuse or the parent’s sexual conduct (hetero- or homosexual) may justify restrictions against engaging in specific conduct while the child is placed with that parent, but they do not always justify greater restrictions such as supervised placement.

Grounds for Modifications of Orders for Legal Custody and Physical Placement

[Chapter 11](#) discussed the court’s jurisdiction to modify an existing legal custody or physical placement order. Once the court has determined it has jurisdiction, a modification must be determined to be in the best interest of the child and also justified by one of the following factors:

- A substantial change in circumstances has occurred since the original order, OR
- Relevant facts have come to light that were not available to the Court at the time the original order was entered

What constitutes a **substantial change in circumstances** is not specifically defined in the statutes. Some examples may include

- Significant changes in the child’s health, education, or other needs
- Relocation by one parent may impact time with the child
- Evidence of substance abuse or other criminal behavior by a parent
- A change in a parent’s work hours
- Adjustment to home or school
- Other circumstances that make it impractical to continue the current placement order
- Failure to effectively communicate or co-parent with the other party regarding the child(ren)
- A parent’s repeated unreasonable refusal to allow the other parent to exercise court-ordered physical placement

Wisconsin imposes additional requirements on courts determining whether to modify an existing order:

- There is a rebuttable presumption that continuing the current order regarding legal custody and physical placement is in the best interest of the child. [Section 767.451\(1\)\(b\), Wis. Stats.](#)
- A change in the economic circumstances or marital status of either party is not sufficient to meet the standards for modification

Moreover, in Wisconsin modification of existing legal custody and physical placement orders **is not allowed before 2 years** have passed after the initial order **unless** the requesting party shows by **substantial evidence** that the **modification is necessary** because the **current** custodial conditions are **physically or emotionally harmful** to the best interest of the child. [Section 767.451\(1\)\(a\), Wis. Stats.](#) (emphasis added). This restriction imposes higher evidentiary standards with respect to the burden/amount of proof required (substantial evidence rather than a preponderance of the evidence) as well as the justification (a change must be necessary – there is no other alternative available to protect the child). The reason for this restriction is to provide for a transition or “cooling off” period during which the child(ren) and the parents can adjust to life under the existing order without the parents continually going back to court seeking changes.

Failure to exercise ordered physical placement.

There can be numerous reasons why a parent does not exercise their right to physical placement as ordered by the court. In Wisconsin, if a parent “has repeatedly and unreasonably failed to exercise periods of physical placement awarded under an order of physical placement that allocates specific times for the exercise of periods of physical placement” the court is allowed to modify the order. [Section 767.451\(2m\), Wis. Stats.](#) This is sometimes referred to as Wisconsin’s “use it or lose it” law. Additionally, an unreasonable failure to exercise court-ordered physical placement can also result in the party being required to reimburse the other parent for financial losses and expenses resulting from that failure. [Section 767.471\(5\)\(c\), Wis. Stats.](#)

Relocation of the child.

In our mobile society, it’s not uncommon for issues concerning relocation to arise in the context of a parent’s job change/reassignment or a parent’s to move closer to other family members. When one parent’s desire to relocate impacts the child’s ability to enjoy an ongoing relationship with the other parent through meaningful and regular physical placement, the courts are often asked to intervene.

Like many states, Wisconsin places restrictions on parents desiring to relocate with the child. [Section 767.481, Wis. Stats.](#) The procedural requirements are designed to ensure adequate notice and opportunity to object to the child’s relocation. Specifically, prior to relocating, a parent intending to relocate with the child 100 miles or more from the other parent is required to file a motion with the court requesting permission to relocate. Once the motion is filed, the court must hold an initial hearing on the motion within 30 days. The parent is not allowed to relocate the child before the initial hearing occurs.

Once the initial hearing is scheduled, the motion must be mailed immediately to the other parent and is required to include all of the following:

1. A relocation plan including date, municipality, and state of relocation, and the reason for the relocation
2. A proposed new physical placement schedule, including allocation between the parents for the cost of transporting the child between the parents
3. A notice to the other parent of the initial hearing date and time, the parent’s right to object, the procedure for objecting, and a court-provided Objection to Relocation form.

Once the motion is filed, if the other parent wishes to object to the relocation, that parent must file and serve the Objection to Relocation form on the other parent, at least 5 days prior to the date on which the hearing is scheduled. If the objecting party does not attend the hearing, the court must approve the relocation plan unless it is not in the best interest of the child. If the objecting party appears at the initial hearing, the court must enter an order

- Requiring the objecting party to explain, in writing, the basis for the objection, and to submit an alternative proposal for physical placement with cost allocations
- Referring the parties to mediation (unless it would cause undue hardship or endanger the health or safety of a party)
- Appointing a guardian ad litem for the child to investigate, in the event mediation is not successful
- Setting a final hearing date to be held within 60 days
- Allowing temporary relocation pending the outcome of the final hearing, if the relocation is in the child’s “immediate” best interest.

In determining whether to approve the proposed relocation plan, the court is to apply the same factors used to determine the child’s best interest for an initial legal custody and physical placement order. Additionally, presumptions in favor of approval are applied if the objecting parent has not significantly exercised existing court-ordered physical placement, or if the objecting parent has engaged in abuse of the child or the other parent.

If the parents already live more than 100 miles apart when one of them desires to relocate with the child, court permission to relocate is not required. However, written notice of the intent to relocate (including the date of the move and new address) must still be served on the other parent at least 60 days before the relocation.

Enforcement of Legal Custody and Physical Placement Orders

As you have already learned in [Chapter 11](#), the Full Faith and Credit Clause, the PKPA, and the UCCJEA require states to enforce legal custody and physical placement orders properly entered in other states. As a practical matter, however, enforcement of these orders – even in the home state – can present challenges. Law enforcement agencies are often reluctant to assist in the enforcement of physical placement orders, and often outright refuse to do so. Thus, the primary method of enforcing these orders is through the civil contempt of court process or, in extreme cases, the criminal contempt of court process. Essentially, an aggrieved parent files an action with the court requesting that the other party be found in contempt of court for disobeying its orders. If a parent is found to be in contempt, sanctions may include unfavorable modification of orders, orders for restitution/payments to the other party, fines, or even jail time.

Denial of or interference with physical placement.

In Wisconsin, the aggrieved party would file a motion to enforce the physical placement order. If, after a hearing, the court determines that the other parent intentionally and unreasonably denied physical placement or intentionally and unreasonably interfered with physical placement, the court is required to order additional periods of physical placement to replace those that were denied or interfered with. Depending on the circumstances, the court can also find the other party to be in contempt of court, punishable by fines or imprisonment. The court can also issue an **injunction** ordering the other parent to strictly comply with the physical placement order, which can also include an order to the sheriff to assist with serving or executing the injunction. [Section 767.471](#), Wis. Stats. Repeated denial or interference can also become grounds for the aggrieved party to seek a modification of the initial physical placement order.

Psychological or emotional interference.

Sadly, hostility between parents can sometimes spill over onto the children. One parent may attempt to manipulate the child's wishes to spend more time with that parent through "bribery" or lax rules or may engage in undermining or badmouthing the other parent. The child suffers the most from this type of conduct, and the courts have had difficulty coming up with ways to rectify these situations. The following case from the Florida Supreme Court is one example of a court's attempt to do so.

✓ Case in Point: *Schutz v. Schutz*, 581 So. 2d 1290 (Fl. 1991).

Synopsis

The parties were divorced in 1978, with custody awarded to the father. In 1979, custody was modified and the mother was granted sole custody, with visitation rights granted to the father. In 1981, the mother moved to Georgia, without notifying the father. The father traveled to Georgia three times to visit the children, only to find an empty house. After seven months, the mother moved back to Florida and did not notify the father. When the father finally discovered the children's whereabouts in 1985, the father visited the children and learned that they "hated, despised, and feared" him due to his failure to support or visit them. After a hearing, the trial court concluded that the mother had "brainwashed" the children into "bigoted belligerence" toward the father. The court then ordered the mother "to do everything in her power to create in the minds of [the children] a loving, caring feeling toward the father . . . [and] to convince the children that it is the mother's desire that they see their father and love their father." The court further ordered that if the mother breached this order "either in words, actions, demeanor, implication or otherwise" would result in the "severest penalties . . . , including contempt, imprisonment, [or] loss of residential custody...."

Excerpts

Following are excerpts from the opinion approving of the trial court's order: (citations and references to other authorities within the opinion are omitted)

[A] custodial parent has an affirmative obligation to encourage and nurture the relationship between the child and the noncustodial parent. . . . This duty is owed to both the noncustodial parent and the child. This obligation may be met by encouraging the child to interact with the noncustodial parent, taking good faith measures to ensure that the child visits and

otherwise has frequent and continuing contact with the noncustodial parent, and refraining from doing anything likely to undermine the relationship naturally fostered by such interaction.

Consistent with this obligation, we read the challenged portion of the order at issue to require nothing more of the mother than a good faith effort to take those measures necessary to restore and promote the frequent and continuing positive interaction (e.g., visitation, phone calls, letters) between the children and their father and to refrain from doing or saying anything likely to defeat that end. There is no requirement that the petitioner express opinions that she does not hold, a practice disallowed by the First Amendment. ... Under this construction of the order, any burden on the mother's First Amendment rights is merely "incidental."

Accordingly, we must balance the mother's right of free expression against the state's ... interest in assuring the well-being of the parties' minor children. However, as with all matters involving custody of minor children, the interests of the father and of the children, which here happen to parallel those of the state, must also factor into the equation.

In this case, the court ... sought to resolve the dispute between the parties in accordance with the best interests of their children by attempting to restore a meaningful relationship between the children and their father by assuring them unhampered, frequent and continuing contact with him. In resolving the matter, the court also properly considered the father's constitutionally protected "inherent right" to a meaningful relationship with his children, a personal interest which in this case is consistent with the state's interest in promoting meaningful family relationships.

There is no question that the state's interest in restoring a meaningful relationship between the parties' children and their father, thereby promoting the best interests of the children, is at the very least substantial. Likewise, any restriction placed on the mother's freedom of expression is essential to the furtherance of the state's interests because affirmative measures taken by the mother to encourage meaningful interaction between the children and their father would be for naught if she were allowed to contradict those measures by word or deed.

Think About It ...

1. Do you agree with the court's opinion and its outcome? Why or why not?
2. If you disagree with the trial court's order, what would you have ordered instead?
3. Would the mother violate the court order if she simply never mentioned the father in the children's presence and refused to respond in any way to the children's questions or statements about their father?
4. What if the court ordered the mother to tell the children "Your father loves you" or "Your father is a good man" – would this violate her First Amendment rights?

Third-Party Visitation and Other Special Issues

Up to this point, we've been discussing the rights of parents who are divorcing or who were never married in the context of legal issues regarding children born to those parents. Issues can also arise with respect to other adults who have a special relationship with those children, and who want to continue to have regular interactions and relationships with the children. Additionally, there may be as yet unborn children whose future must be determined.

Third Party/Grandparent Visitation.

When parents are unmarried, or about to become unmarried, grandparents and other adults may be concerned about whether they will be able to maintain their relationships with the children. The United States Supreme Court has established that actions for grandparent or third-party visitation cannot be brought when the children are from an **intact marriage**. *Troxel v. Granville*, 530 U.S. 57 (2000).

Definition: Intact Marriage/family

Intact marriage: The parents are married and there is no pending action for divorce or legal separation.

Although state laws vary as to the rights, procedure, and factors involved in a petition for grandparent or third-party visitation, the best interest of the child is still consistently used as the overriding standard. Some states require proof that a person seeking visitation is either a **psychological parent** or **fictive kin**.

 Definition: "Parents"

Psychological parent: An adult other than a biological or adoptive parent who, in a substantial and continuing way, has provided for the physical and emotional needs of a child.

Fictive kin: A person who is not related by birth or marriage to a child, but who has an emotionally significant and family-like relationship with the child.

Wisconsin provides for non-parent visitation in limited circumstances.

Visitation by Grandparents and Other Third Parties

Wisconsin statutes permit a court to order visitation with a child by a third party, such as a grandparent, in specific circumstances. These circumstances include visitation during the course of a divorce proceeding, visitation if one or both of the child's parents are deceased, and visitation if the child's parents never marry each other. Who may petition for visitation and the type of relationship that person must have with the child varies under each statute. In addition, the Wisconsin Supreme Court has recognized that courts have equitable powers to protect the best interests of a child by ordering visitation even in specified circumstances that do not meet the criteria of any statute governing third-party visitation.

Background

Parents have a constitutionally protected right to raise their children without government interference. This right is based on the privacy protections of the U.S. Constitution. Privacy rights are derived from the Fourteenth Amendment, which generally prohibits government interference with a person's liberty without due process. Awarding visitation to a third party over a parent's objection interferes with the parent's constitutionally protected right to make decisions regarding the "care, custody, and control" of his or her children. [Troxel v. Granville, 530 U.S. 57, 67 (2000).]

In determining whether to order third-party visitation, a court must analyze the visitation request based on the child's best interest, giving special deference to a fit parent's determinations as to what visitation is appropriate. Current law presumes that a fit parent's decision regarding nonparental visitation is in the child's best interest. A court may read this requirement into a nonparental visitation statute, even when the statute is silent on the topic.

Wisconsin law gives courts the authority to order visitation of children by certain persons who are not a child's parent in several specific situations, but the person seeking visitation must overcome the presumption in favor of a fit parent's visitation decision with clear and convincing evidence that the parent's decision is not in the child's best interest. The Wisconsin Supreme Court has cautioned judges not to substitute their judgment for a fit parent's judgment, even if the judge disagrees with the parent's decision. A court may consider the nature and extent of third-party visitation only if the person seeking visitation has overcome the presumption in favor of a fit parent's visitation decision. [Michels v. Lyons, 2019 WI 57.]¹ These case law principles apply in cases involving third-party visitation, in addition to any statutory requirements discussed later in this information memorandum.

Visitation Rights in Actions Affecting the Family

A grandparent, great-grandparent, stepparent, or person who has maintained a relationship similar to a parent-child relationship with a child may petition the court for visitation with the child subsequent to, or during, an action affecting the family (such as divorce, legal separation, and paternity actions). The Wisconsin Supreme Court has held that the statutory requirement to prove a "parent-child relationship" applies only to the "person" category listed in the statute, and not to grandparents, great-grandparents, or stepparents. [S.A.M. v. Meister, 2016 WI 22.]

Under this statute, the court may grant reasonable visitation rights to the grandparent, great-grandparent, stepparent, or other person who has standing to seek visitation if: (1) the parents have notice of the hearing; and (2) the court determines that visitation is in the best interests of the child. Whenever possible, in making its determination, the court must consider the wishes of the child. [Section 767.43 (1), Wis. Stats.]

The Wisconsin Supreme Court has further held that a person has standing to seek visitation under the provision above if an underlying action affecting the family unit has been filed, and the child's family is not intact so that it may be in the child's best interests to order visitation. [Cox v. Williams, 177 Wis. 2d 433 (1993).] Generally, a child's family is considered to be "intact" if the child's parents are married to each other.

Wisconsin law includes a special grandparent visitation provision involving a child whose parents have not married each other and who has not been adopted (non-marital child). The grandparent of such a non-marital child must petition for visitation with the child under the special provision, described next below. [[Section 767.43 \(2m\), Wis. Stats.](#)]

Grandparent Visitation with a Non-marital Child

The court may grant reasonable visitation to the grandparents of a non-marital child whose parents have not subsequently married if the court determines all of the following:

- The paternity of the child has been determined if the grandparent filing the petition is a parent of the child's father.²
- The child has not been adopted.
- The grandparent has maintained a relationship with the child or has attempted to maintain a relationship with the child but has been prevented from doing so by a parent with legal custody of the child.
- The grandparent is not likely to act in a manner that is contrary to decisions that are made by a parent with legal custody of the child and that are related to the child's physical, emotional, educational, or spiritual welfare.
- The visitation is in the child's best interest.

[[Section 767.43 \(3\), Wis. Stats.](#)]

Visitation if One or Both Parents of a Child Are Deceased

A court may grant periods of visitation to a grandparent or stepparent if one or both of a child's parents are deceased and the child is in the custody of the surviving parent or any other person. The person seeking visitation may file a petition as an independent action or within an existing minor guardianship or temporary guardianship proceeding. In order for the court to grant visitation, the surviving parent or other person who has custody of the child must have notice of the hearing, and the court must determine that visitation is in the child's best interest. Also, whenever possible, the court must consider the child's wishes. [Sections 48.9795 (12), Wis. Stats., and 54.56, Wis. Stats.]

A court may grant visitation to a grandparent or stepparent in these circumstances, regardless of whether or not the person with custody of the child is married. Moreover, a trial court's authority to grant visitation under this statute continues even after a subsequent adoption of the child. [Sections 48.9795 (12), Wis. Stats., and 54.56, Wis. Stats.; *In re C.G.F.*, 168 Wis. 2d 62 (1992).]

Visitation Rights of Relatives After a Child's Adoption

If a child is adopted, the parent-child relationship between the adopted child and his or her birth parents is extinguished, unless the adoption is by the birth parent's spouse who is a stepparent to the child. However, even if all parental rights have been extinguished by the adoption, the court is still permitted to order reasonable visitation rights in certain circumstances to a birth relative³ who has maintained a relationship similar to a parent-child relationship with the child.

A relative may be granted visitation with a child following adoption if the child was adopted by either a stepparent or a relative. The visitation action may be filed at any time, regardless of the date of the adoption. Upon a petition for visitation by a relative, the court must consider the wishes of the adopted child whenever possible and may grant reasonable visitation rights if the court determines all of the following:

- The relative has maintained a parent-child relationship within the two years prior to the filing of the petition for visitation rights.
- The adoptive parent or parents or, if a birth parent is the spouse of an adoptive parent, the adoptive parent and the birth parent have notice of the hearing.
- Visitation is in the child's best interest.
- The relative will not undermine the adoptive parent's or parents' relationship with the child or, if a birth parent is the spouse of an adoptive parent, the adoptive parent and birth parent's relationship with the child.
- The relative will not act in a manner that is contrary to parenting decisions that are related to the child's physical, emotional, educational, or spiritual welfare and that are made by the adoptive parent or parents or, if a birth parent is the spouse of an adoptive parent, by the adoptive parent and birth parent.

[s. 48.925, Stats.]

Other Third-Party Visitation Rights

Wisconsin courts may grant third-party visitation under certain circumstances when the statutory procedures do not apply. However, grandparents are not currently eligible to petition a court for visitation with grandchildren under these circumstances. Grandparents must rely upon the statutory procedures described above.

In 1995, the Wisconsin Supreme Court decided a case involving the visitation rights of a third party when no action affecting the family had taken place or was pending. In *Holtzman v Knott*, the Court held that the former live-in female partner of the biological mother of a minor child could bring an action for visitation with the child. [193 Wis. 2d 649 (1995).] The Court held that a court's powers to order visitation with a child are not solely governed by statute. The Court stated that courts have equitable powers to protect the best interests of a child by ordering visitation under circumstances not included in the statutes and that those equitable powers come into play when the petitioner has a parent-like relationship with the child and a triggering event occurs that justifies state intervention.

The Court created a four-part test to apply when a third party seeks visitation rights with respect to a minor child, absent an underlying action affecting the family, to establish that the petitioner has a parent-like relationship with the child. The test requires a showing of all of the following:

- The biological or adoptive parent consented to, and fostered, the petitioner's formation and establishment of a parent-like relationship with the child.
- The petitioner and the child lived together in the same household.
- The petitioner assumed obligations of parenthood by taking significant responsibility for the child's care, education, and development, including contributing towards the child's support without expectation of financial compensation.
- The petitioner has been in a parental role for a length of time sufficient to have established a bonded, dependent relationship that is parental in nature.

To establish a significant triggering event justifying state intervention in the child's relationship with the biological or adoptive parent, the petitioner is required to prove that the parent has interfered substantially with the petitioner's parent-like relationship with the child, and the petitioner sought court-ordered visitation within a reasonable time after the interference. The petitioner must prove all of these elements before a court may consider whether visitation is in the child's best interest.

The *Holtzman* case could have a broad impact on those seeking visitation privileges with a child. However, Wisconsin courts have, so far, declined to apply the principles in the *Holtzman* case in circumstances to which a current statute applies. [See *Rogers v. Rogers*, 2007 WI App 50; *Wohlers v. Broughton*, 2011 WI App 122.]

Enforcement of Visitation Orders

Any person who interferes with visitation rights granted under an action affecting the family, following the adoption of a child, or to the grandparents of a non-marital child may be held in contempt of court under ch. 785, Stats. [ss. 48.925 (4) and 767.43 (5), Stats.]

In a contempt proceeding, the court may impose only the following remedial sanctions:

- Payment of a sum of money sufficient to compensate a party for a loss or injury suffered by the party as a result of the contempt of court.
- A forfeiture not to exceed \$2,000 for each day the contempt of court continues.

[s. 785.04 (1) (a) and (c), Stats.]

With respect to visitation rights granted to grandparents and stepparents when one or both of the child's parents are deceased, the court may issue any order to enforce the visitation order and may modify such visitation privileges or enforcement order upon a showing of good cause. [s. 48.9795 (12) (d), Stats.]

This information memorandum was prepared by Amber Otis, Staff Attorney, on February 26, 2021.

([Wisconsin Legislative Council information memorandum](#))

Embryos

Assistive reproductive technology (ART) has helped many people become parents through pregnancy which previously may have been impossible. As with any innovation, however, scientific advancements bring new challenges.

Definitions relating to pre-born children

Embryo: An egg that has been fertilized by a sperm and is in the early stages of development, up to about the 8th week of pregnancy.

Fetus: An embryo (pre-born child) from the 8th week of pregnancy through birth.

Couples struggling with infertility may utilize in vitro fertilization, which results in embryos that have been frozen with the intent that they be implanted into the woman's uterus at a later time. When couples divorce, there may be a dispute over who has custody of the embryos. Unfortunately, there are few, if any, statutes that provide guidance as to how to answer this question.

Usually, a couple signs a consent agreement through the clinic that assists with in vitro fertilization, which provides a starting point for sorting out a dispute over custody of the embryos. Such agreements usually require mutual consent of the parties regarding the embryos' future. Many of these agreements also include provisions specifically addressing the embryos' future, and most courts enforce those provisions as legally binding. When the agreement is silent and the parties cannot agree, or when one party seeks to avoid enforcement of the agreement, the courts are left to balance each party's constitutional rights to procreate – or not procreate – against one another. In many cases, the court has ruled in favor of the party who does not want to procreate. The law in this area continues to develop.

Notes

¹ Generally, a court may not grant a third-party visitation with a child if the third party has been convicted of intentional homicide of the child's parent, unless the court finds by clear and convincing evidence that visitation is in the child's best interest, after considering the child's wishes. If visitation rights had already been granted, the court must modify the order to prohibit visitation. [ss. 48.925 (1m), 48.9795 (12) (cm) and (dm), and 767.43 (1m) and (6), Stats.]

² If a paternity action is pending, that action must first be completed before visitation rights may be determined.

³ "Relative" means a stepparent, brother, sister, stepbrother, stepsister, half-brother, half-sister, brother-in-law, sister-in-law, first cousin, second cousin, nephew, niece, uncle, aunt, step-uncle, step-aunt, or any person of a preceding generation as denoted by the prefix of grand, great, or great-great, whether by blood, marriage, or legal adoption, or the spouse of any "relative," even if the marriage is terminated by death or divorce. [s. 48.02 (15), Stats.]

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13: Overview of Custody and Placement Orders in WI

When the parents are able to reach an agreement concerning legal custody and physical placement, the outcome for everyone is generally more positive than when a court order is entered after a contested hearing. When negotiating an agreement, the parties must view their individual circumstances in the context of state laws, and with the best interest of the child (not the self-interest of the parents) as the paramount concern.

Co-Parenting: State Law Standards for Legal Custody and Physical Placement

When a minor child is involved in an action for divorce, legal separation, annulment, or paternity, a court must determine the legal custody and physical placement arrangements for the child. This chapter briefly describes the general standards a court uses in determining those arrangements. The principles governing a court also guide the parties and their attorneys when reaching an agreement for the court's approval.

Legal Custody

A court must presume that joint legal custody is in the best interests of a child. Joint legal custody means both parents equally share the right to make major decisions, and neither parent has a superior right over the other for such decisions.² If the presumption for joint legal custody is challenged, a court must consider the best interests of the child using a number of specific factors that are identified in the statutes, described below. A parent may challenge the presumption for joint legal custody in the following limited circumstances:

- A parent is not capable of performing parental duties and responsibilities.
- A parent does not wish to have an active role in raising the child.
- Conditions exist that would substantially interfere with exercising joint legal custody.
- The parents will not be able to cooperate in the future.

The presumption for joint legal custody is reversed if a case involves domestic abuse. If a court finds that a parent has engaged in a pattern or serious incident of interspousal battery or domestic abuse, the court must presume that joint or sole legal custody to that parent is detrimental to the child and cannot be awarded to that parent.³ In determining legal custody for the child of a military service member, a court cannot consider the service member's absence from the home for a call to active duty in the U.S. armed forces.⁴

Physical Placement

Physical placement is the actual time a child is in a parent's care. A parent may make routine daily decisions regarding the child's care while the child is physically with that parent. Physical placement does not authorize decision-making on major issues such as choice of school, religion, or health care.⁵

A court must consider the best interests of the child when determining a physical placement schedule. Unless physical placement with a parent would endanger a child's physical, mental, or emotional health, a child is entitled to periods of physical placement with both parents. The statutes do not provide a standard placement schedule, but, instead, specify that a schedule must allow a child to have regular, meaningful periods of physical placement that maximize the amount of time a child may spend with each parent. If a court grants physical placement to one parent for less than 25 percent of the time, the court must enter specific findings of fact as to why a greater allocation is not in the best interests of the child.⁶

A court may not prefer one parent over the other on the basis of the parent's sex or race. A court also may not deny physical placement for a child based on a parent's failure to provide financial support.⁷ If a court finds that a parent has engaged in a pattern or serious incident of interspousal battery or domestic abuse, the safety and well-being of the child and the safety of the parent who was the victim of abuse are the paramount concerns in determining periods of physical placement.⁸ Also, as with legal custody, in determining periods of physical placement, a court cannot consider a service member's absence from the home for a call to active duty in the U.S. armed forces.⁹

Factors in Determining the Best Interests of a Child

When determining the best interests of a child for purposes of both legal custody and physical placement, a court must consider the following factors:¹⁰

- The wishes of the parents.

- The wishes of the child.
- The cooperation and communication between the parents.
- Whether a parent can support the other parent's relationship with the child.
- The interaction and interrelationship of the child with siblings and other significant persons.
- The interaction and interrelationship of the child with the parents, including the parents' history of amount and quality of time with the child, and any proposed reasonable lifestyle changes.
- Whether a parent, a person in a dating relationship with a parent, or another person in the household has a significant problem with alcohol or drug abuse.
- The child's adjustment to the home, school, religion, and community.
- The child's age and developmental and educational needs.
- The mental or physical health of a parent or other person in the household may affect the child's well-being.
- A criminal record, or abuse or neglect of the child or of any other child, by a parent, person in a dating relationship with a parent, or other person in the household.
- Whether there is evidence of interspousal battery or domestic abuse.
- Reports of appropriate professionals admitted into evidence.
- Any other relevant factor.

([ib_legal_custody_physical_placement_msk_2023_01_06 - wisconsin.gov](#))

Content of Orders/Agreements

Court orders and agreements regarding legal custody and physical placement are often very detailed and sometimes complex. A myriad of topics should be covered, including decision-making, placement schedules, and transportation of children. [Wisconsin's Proposed Parenting Plan](#) form includes these topics and more.

Legal Custody

The parties should state who will have decision-making power with respect to the children's non-emergency health care, school activities, child care providers, and other enrichment or recreational activities. It is also helpful to indicate how disputes regarding these decisions will be resolved. Remember, in Wisconsin joint legal custody is presumed to be in the best interest of the child.

Physical Placement Schedules

Physical placement can be ordered without a specific schedule (typically expressed as reasonable times or reasonable periods as agreed by the parties, or similar language). However, most of the time a specific placement schedule is included in the agreement and/or court order; specific schedules provide predictability and consistency and are generally easier to enforce when necessary. Remember, equal physical placement with both parents is presumed to be in the best interest of the child in Wisconsin.

In Wisconsin, if a placement schedule will result in a parent receiving less than 25% physical placement, the specific reasons supporting this placement must be stated in writing. Placement schedules should be specific as to days and times of regular placement, and should also include a schedule for summer, holidays, and other special days.

This website provides several [example placement schedules](#)

A Special Note About Virtual Visitation

With the advent of virtual meeting platforms such as Zoom, FaceTime and others, maintaining contact with family members living outside the household has become easier than ever. In Wisconsin, courts are permitted to grant "either or both parents a reasonable amount of electronic communication at reasonable hours during the other parent's periods of physical placement with the child." [Section 767.41\(4\)\(e\)](#), Wis. Stats. If the parent receiving the right to electronic communication is restricted to supervised physical placement, then the electronic communication must also be supervised.

Assuming equipment needed for electronic communication is reasonably available, as with any other issue regarding physical placement, the decision whether to grant a parent electronic communication with the child during the other parent's periods of physical placement must be in the child's best interest. However, Wisconsin does not allow electronic communication to be used as a replacement or as a substitute for actual "in-person" physical placement.

Wisconsin court procedure

Whenever legal custody or physical placement is at issue in an action affecting the family (legal separation, divorce, paternity, or post-judgment disputes), the typical procedure in Wisconsin is as follows:

1. Court orders the parties to complete an educational program regarding the impact of the legal action on the child, as well as parenting and co-parenting skills under section 767.401.
2. If legal custody or physical placement are contested, the parties are ordered to mediation by an entity approved by the County or State, frequently through Family Court Services under section 767.405.
3. The court may appoint a **Court Appointed Special Advocate (CASA)**.
4. If the parties are still unable to agree and/or the mediator declares an impasse, a guardian ad litem is appointed to investigate, represent, and make recommendations concerning the best interest of the child under section 767.407.
5. The court may also order a psychological evaluation of either or both parents and/or the child.
6. If the parties are still unable to agree, the court will schedule a contested hearing at which the parties and the guardian ad litem are allowed to present evidence, including documents, lay witness testimony, and expert witness testimony regarding the best interest of the child.

Definition: Court Appointed Special Advocate

Court Appointed Special Advocate (CASA): A volunteer appointed by the court to act as fact-finder, interviewer and investigator in cases involving child welfare.

The Guardian Ad Litem

In Wisconsin, if parents have disagreements regarding legal custody or physical placement, they must participate in mediation to help them resolve issues. If parents still don't agree, the court will appoint a guardian ad litem (GAL) to assist the court in making custody, placement, and support decisions.

Definition: Guardian ad Litem

Guardian ad Litem (GAL): An attorney, licensed to practice law in Wisconsin, whose role is to represent the best interests of the children as determined by the GAL through an investigation.

The GAL will investigate the facts, participate in negotiations, and take a position in court on legal custody and placement. The GAL is also involved in the financial issues of a case when those issues affect the children, such as child support and child expenses. The GAL does not have any of the rights or duties of a parent or general guardian. Although the GAL may be incorrectly referred to as the children's attorney, the GAL's role is to advocate for the best interests of the children. This may not be the same as advocating for what the children want.

In representing the best interests of the children, the GAL may negotiate settlements, conduct formal and informal discovery, hire experts, interview witnesses, investigate whether there has been violence or abuse between parents, comment on proposed parenting plans or any stipulation or mediation agreement reached by the parties, and participate in all court proceedings. The GAL investigates facts that are relevant to the legal custody, physical placement, and child support issues in the case. Much of the investigation is conducted through interviews with each parent, the child, or other people with significant information. Parents may also be asked to sign a release authorizing the GAL to review relevant records, such as school, medical, or mental health records. The GAL may ask other experts, such as a social worker or a psychologist, to provide input and possible future testimony regarding the case. If there are problems with alcohol or drugs, the GAL may ask a parent to participate in screening tests or ask the judge to order such tests. The GAL also may use formal discovery to assist in the investigation, including interrogatories, requests for document production, or conducting depositions.

In investigating and developing input for the court's consideration, the GAL must consider the following legal factors:

- the wishes of the child as expressed by the child through the GAL or another appropriate professional and the wishes of the parents; the child's input will be only one factor for the GAL to consider. It gives the child a voice, not a choice, in the outcome;
- whether a parent has engaged in a pattern or serious incident of violence between parents;
- the safety and well-being of the child and the safety of the parent who was the victim of the battery or abuse;
- the child's interaction and relationship with each parent and other family members;

- the amount and quality of time each parent has spent with the child in the past;
- any necessary and reasonable custodial and lifestyle changes each parent proposes to make to spend time with the child in the future;
- the child's adjustment to home, school, religion, and community;
- the child's age and developmental and educational needs at various ages;
- the mental or physical health of a parent, the child, or other person living in each parent's household;
- the need for regularly occurring and meaningful placement to provide predictability and stability for the child;
- the availability of childcare services;
- the cooperation and communication between parents, and whether either one unreasonably refuses to cooperate or communicate with the other;
- each parent's ability to support the other parent's relationship with the child and the likelihood a parent will interfere in the other parent's continuing relationship with the child;
- any physical abuse or problems with alcohol or drugs;
- the reports of appropriate professionals; and
- other significant factors that would affect the child's well-being.

The GAL generally will give the parents and/or attorneys a preliminary summary of what the GAL will present to the judge. The input could change depending on additional evidence or facts that are uncovered. Generally, the parents' attorneys will discuss the GAL's preliminary recommendations with their clients. Most often, settlement proposals are exchanged, and the case is resolved by agreement. If the parents cannot agree, the case is prepared for trial before the judge, who will consider the evidence presented and make the final decision.

The judge decides who pays for the GAL's services. The requirements vary from county to county. Generally, each parent is responsible for one-half of the GAL's total costs, including the GAL's legal fees and investigation costs, such as tests and experts. The court also may require the parents to pay an initial deposit and periodic payments to the GAL during the case. If the judge decides that both parents are unable to pay for the GAL's services immediately, the judge may have the county pay the GAL bill. However, the parents still are responsible for the GAL fees and the county may require the parents to reimburse the county.

By statute, the GAL serves in a case until either the parents reach a written agreement resolving the issues and the judge approves it, or there is a hearing and the judge decides the case. The judge can discharge the GAL if one is no longer necessary. If the case is appealed, the GAL is involved in the appeal process unless the court orders otherwise. If a new motion is filed in the case in the future, the judge may reappoint the same or a different GAL.

[https://www.wisbar.org/forPublic/INeedInformation/pages/guardians-ad-litem.aspx#:~:text=What%20is%20a%20guardian%20ad%20litem%20\(GAL\)?,for%20what%20the%20children%20want](https://www.wisbar.org/forPublic/INeedInformation/pages/guardians-ad-litem.aspx#:~:text=What%20is%20a%20guardian%20ad%20litem%20(GAL)?,for%20what%20the%20children%20want).

Paralegal Roles

When a client's family law matter involves issues of legal custody, physical placement, or visitation of children, the paralegal's role is to support the supervising attorney in providing legal services and acting as a liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, conducting factual investigation and/or legal research, drafting documents as directed by the supervising attorney, facilitating the signing of documents, and filing documents with the court or other state agency. Paralegals may also be asked to help locate appropriate psychological or other experts to provide evidence regarding parental fitness and the best interest of the child. Sometimes paralegals can also refer parents to a **parenting coordinator**.

Definition: Parenting Coordinator

Parenting coordinator: A professional who assists parents in resolving custody disputes that arise under a parenting plan.

Notes

² ss. 767.001 (1s), (2), and (2m) and 767.41 (2) (a), (am), (b), and (c), Stats.

³ s. 767.41 (2) (d), Stats.; Legislative Council, Effect of Domestic Abuse in Child Custody Disputes, Issue Brief (October 2019).

⁴ s. 767.41 (2) (e), Stats.

⁵ s. 767.001 (5), Stats.

⁶ s. 767.41 (4) (a) and (b) and (6) (a), Stats. The Wisconsin Supreme Court has held that "maximizing" does not mean "equal"

placement. [Landwehr v. Landwehr, 2006 WI 64, at par. 11.]

⁷ s. 767.41 (4) (c) and (5) (am) (intro.), Stats.

⁸ s. 767.41 (5) (bm), Stats.; Legislative Council, Effect of Domestic Abuse in Child Custody Disputes, Issue Brief (October 2019).

⁹ s. 767.41 (5) (c), Stats. To address additional issues during a call to active duty, the Legislature enacted 2021 Wisconsin Act 161, the Uniform Deployed Parents Custody and Visitation Act.

¹⁰ s. 767.41 (5) (am), Stats.

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14: Introduction to Child Support

Child support, like other aspects of family law, is governed by state law. However, federal law has increasingly influenced state child support laws, particularly with respect to calculating the amount of child support to be paid, enforcement of child support orders, and collection of unpaid child support. Because states vary in terms of how child support is calculated, this chapter will focus primarily on Wisconsin law.

Jurisdiction Over Order Regarding Child Support

As you know from previous chapters, before a court can enter an enforceable order, the court must have subject-matter jurisdiction and also personal jurisdiction. Although the right to receive financial support from parents belongs to the child, child support orders directly impact the parents' finances, so personal jurisdiction over the parents is required. A parent who files an action in court that seeks an order regarding child support has consented to personal jurisdiction. Personal jurisdiction over the other parent is obtained through proper service of process, appearance in the court action without objecting to personal jurisdiction, or through long-arm jurisdiction. (See the discussion in [Chapter 7](#) regarding personal jurisdiction).

The Full Faith and Credit Clause of the United States Constitution applies to the enforcement and modification of existing child support orders. As such, all states must enforce valid orders entered in other states, and only the state that entered the original order has the power to modify the existing order unless both parents and the child no longer reside in the state.

Overview of Child Support

Issues involving child support involve many questions that must be answered before we get to the actual calculation of child support. These questions involve who is obligated to pay child support for how long, and what financial resources are included for the purposes of determining a person's ability to pay child support (and how much the person will pay).

Who is required to pay?

Both parents, whether married or not, have a duty to support their children. This is true for biological parents and also for parents who have legally adopted the child. This duty is based on the adult being a legal parent of the child, without regard to the parent's marital status, gender identity, socio-economic status, or other circumstances.

These other adults generally **are not obligated to** pay child support:

- **Sperm donors.** This includes men who donate anonymously to a sperm bank and men who provide sperm based on a valid surrogacy contract.
- **Foster parents.** While foster parents are required to support children placed in their care, once the foster placement ends, so does the support obligation.
- **Grandparents.** There may be exceptions for grandchildren born to underage children who live in the grandparents' household.
- **Stepparents.** As long as the stepparent has not legally adopted his/her stepchild, there usually is no duty to support the stepchild. However, there are some circumstances where a stepparent may be ordered to pay child support as an equitable or presumed parent, based on the stepparent's behavior that would justify the stepchild's reliance on support from the stepparent and undue harm that would result from not ordering child support.
- **Cohabiting adults.** Unless there is an express agreement to provide support to the child, or other equitable circumstances justifying an order for support, as with stepparents, there is generally no duty imposed on an adult to support a child simply because the child is living with that adult.

How long must the person pay?

Most states require parents to pay child support until the child reaches the statutory age of majority, which is usually 18 years old, or until the child is **emancipated**. Additionally, in most states, the duty of support will extend beyond the age of majority if the child becomes physically or mentally disabled before reaching the age of majority.

Definition: Emancipated

Emancipated: Declared by court order to be legally independent of the child's parents.

In Wisconsin, the duty to pay child support generally terminates once the child reaches the age of 18. However, the duty extends up until the child turns 19 years old, “if the child is pursuing an accredited course of instruction leading to the acquisition of a high school diploma or its equivalent.” [Section 767.511\(4\), Wis. Stats.](#)

In most states, parents are not obligated to support children attending college or receiving other higher education after high school, nor are parents required to help pay for college/higher education unless they have otherwise agreed to do so.

What financial resources are included as the basis for child support?

Child support is based not only on just the parent’s duty to support but also on the parent’s ability (financially) to do so. The financial resources of a parent that are included in determining the parent’s ability to pay are broadly defined in most states to provide sufficient support for children.

In Wisconsin, the child support obligation is based on each parent’s annual **gross income**.

Definition: Gross Income

Gross income: All income earned from any sources, before deductions for taxes, health insurance premiums, or other expenses.

The Wisconsin Administrative Code section DCF 150.02(13) defines gross income as including the following sources of income:

- Salary, wages, and military (and similar) allowances
- Interest and investment income earned on bank accounts, mutual funds, and other financial investments
- Social Security disability and old-age insurance benefits
- Money received that is intended to replace income, such as unemployment insurance, income continuation benefits, and the portion of workers’ compensation or other personal injury awards intended to replace income
- Voluntary deferred compensation, including employee contributions to any employee benefit plan or profit-sharing, or to any pension or retirement account (such as a 401k)
- Veterans disability compensation benefits and military allowances, including basic allowances for subsistence and housing (but not amounts attributable to area variable housing costs)
- Undistributed business income
- Income from other sources or assets (for example, income from rental properties)

As you can see, almost any source of money actually or potentially coming in counts as gross income for the purpose of determining a parent’s child support obligation. Specifically **excluded** from the definition of gross income are the following:

- Child support received pursuant to another court order
- Foster care and Kinship care payments
- Public assistance benefits, including food stamps, social services, and other government-paid cash benefits
- Supplemental Security Income (state and federal)

Sometimes, unfortunately, a parent will attempt to avoid paying child support through an intentional reduction in income earned or by delaying the payment of income the parent is entitled to receive. In that circumstance, the court may add the amount of income that the parent should reasonably be expected to receive. This is known as **imputed income**.

Definition: Imputed Income

Imputed income: Income that is assumed to be available or is attributed to the parent, even if it is not actually earned or distributed, based on various factors such as the parent’s recent work and earnings history; occupational, educational, and professional qualifications; existing job opportunities and associated earning levels in the community or the local trade area; the parent’s age, literacy, health, criminal record, record of seeking work, and other employment barriers.

Whether to impute income to a parent requires in-depth analysis of many circumstances and can be tricky for the courts to navigate.

✓ Case in Point: *Goldberger v. Goldberger*, 96 Md. App. 313, 624 A.2d 1328 (1993).

Synopsis

At the time of their divorce, Esther and Aron Goldberger had six minor children. A dispute arose regarding child support. Aron was healthy, 32 years old, and had completed many years of higher education. However, Aron had never worked and thus never earned any actual income. Rather, Aron intended to be a permanent Torah/Talmudic student "for the sake of studying, which is a positive commandment to study the Torah for the sake of studying it." During his 3-year custody battle, a network of his family and Orthodox communities in Europe and the United States had provided him with \$180,000 to assist with his claims. Based on that amount, the trial court imputed \$60,000 per year of income to Aron. Noting that "a life devoted to study is viewed by many in the Orthodox community as a true luxury that very few can enjoy" the Maryland Court of Appeals agreed that Aron had voluntarily impoverished himself, and that an appropriate amount of income should be imputed to him.

Excerpts

Following are excerpts from the opinion affirming the trial court's determination that Aron had voluntarily impoverished himself (though requiring the trial court to re-calculate the amount of income to be imputed to him) (citations and references to other authorities within the opinion are omitted)

Throughout his life [Aron] has been supported by others, first, his parents, thereafter, his father-in-law, and most recently, friends in the Orthodox community. Nevertheless, [Aron] fathered six children whom he has refused to support, arguing that he has no means to support and never will have the means to provide support.

[T]here can be no question that [Aron] has a legal obligation to financially support his children until they reach the age of legal majority. The more difficult question is how to calculate the proper amount of that support. [The Maryland family code includes in this calculation the] "potential income of a parent, if the parent is voluntarily impoverished."

The legislature's purpose in including potential income was to implement state and federal policy of requiring adequate support by precluding parents from avoiding their obligation by deliberately not earning what they could earn.

The issue of voluntary impoverishment most often arises in the context of a parent who reduces his or her level of income to avoid paying support by quitting, retiring or changing jobs. The intent of the parent in those cases is often important in determining whether there has been voluntary impoverishment. Was the job changed for the purpose of avoiding the support obligation and, therefore, voluntary, or was it for reasons beyond the control of the parent, and thus involuntary?

A parent who chooses a life of poverty before having children and makes a deliberate choice not to alter that status after having children is also "voluntarily impoverished." Whether the voluntary impoverishment is for the purpose of avoiding child support or because the parent simply has chosen a frugal lifestyle for another reason, doesn't affect that parent's obligation to the child. Although the parent can choose to live in poverty, that parent cannot obligate the child to go without the necessities of life. A parent who brings a child into this world must support that child if he has or reasonably could obtain, the means to do so. The law requires a parent to alter his or her previously chosen lifestyle if necessary to enable the parent to meet his or her support obligation.

Accordingly, we now hold that, for purposes of the child support guidelines, a parent shall be considered "voluntarily impoverished" whenever the parent has made the free and conscious choice, not compelled by factors beyond his or her control, to render himself or herself without adequate resources.

Unfortunately, the court below erred in determining that [Aron]'s potential income was \$60,000 per year, based solely on his ability to raise funds to support and carry on this litigation. Although the court may consider the ability of [Aron] to persuade others to provide him with funds to pay child support in the future, the court cannot assume this will occur merely because [Aron] has been able to convince others to support this litigation up until now. The court needs to hear testimony and make findings regarding the factors relating to potential income previously enunciated. No such findings were made in this case. After calculating the guidelines using [Aron]'s realistic potential income, the court must decide whether the presumptive correctness of the guidelines has been overcome. Accordingly, this matter must be remanded to the trial court for such determinations.

Think About It ...

1. Do you agree with the court's opinion and its outcome? Why or why not?
2. If you disagree with the trial court's order, what would you have ordered instead?
3. Do you agree with the determination that Aron "voluntarily impoverished" himself?
4. Might the Court's determination violate his First Amendment right relating to the exercise of religion?

As you will also see, the issue of whether imputation of income is justified also can arise when the parent ordered to pay child support seeks a reduction in the amount the parent is required to pay.

What are the appropriate uses of child support?

Although the actual child support payments are received by the child's parent, the money and the right to receive it belong to the child and not to the parent. Whether a proposed use of child support money is appropriate must be determined in that context.

Child support payments are intended to pay for the child's care and upbringing, regardless of who actually incurs the expenses. Some practitioners categorize the expenses as follows:

- **General support:** Food, clothing, housing (mortgage/rent)
- **Healthcare support:** Medical expenses, mental health care expenses, dental expenses, vision expenses, prescriptions, insurance (medical, dental, vision), personal care expenses (soap, shampoo, toothpaste, etc.)
- **Childcare support:** Childcare costs, daycare costs

Although many parents consider the child's school expenses, extracurricular activities, hobbies, sports, and driver's education/licensing to be necessary to the child's "care and upbringing," they are not automatically divided between the parents. Wisconsin refers to these expenses as "variable expenses" that are best addressed in the parties' [Proposed Parenting Plan](#) (see section J).

Initial Order for Child Support

Although the parents have an equal duty to support their children, the parents do not necessarily pay equal amounts of support. Each state has specific guidelines that must be followed when calculating child support, and the guidelines and factors allowing deviations from the guidelines vary. Generally, however, in most states the amount of child support is based on each parent's financial resources, the number of children, and the amount of physical placement each parent has with the child(ren). Every state has enacted some sort of child support guidelines to comply with Federal requirements designed to reduce public welfare expenditures by obtaining child support from parents. Pursuant to Federal law, these guidelines operate as rebuttable presumptions of the correct amount of child support in divorce and paternity actions.

Wisconsin statutes require orders, whether based on the parties' agreement or the court's own order, to do the following:

- Require one or both parents to pay an amount reasonable or necessary to support the child.
- Express the support amount as a fixed dollar amount unless the parties have stipulated to expressing the amount as a percentage of the payer's income (but using a percentage is only allowed under certain circumstances; see [section 767.34\(2\)\(am\)](#))
- State which party will claim the child(ren) as a dependent for federal income tax purposes
- Assign responsibility and method for paying the child's health care expenses, including health insurance coverage. [Section 767.511\(1\)](#), Wis. Stats.

Once the parents' financial information has been received, child support is to be calculated using the percentage standards established by the Department of Children and Families as the starting point.

Presumptive Calculation of Child Support in Wisconsin

Wisconsin's Department of Children and Families has established child support calculation guidelines that apply in a myriad of circumstances, based on the number of children subject to the current order, the physical placement of those children, whether the payer is "high income" or "low income," and whether the payer is currently obligated to pay child support under an existing child support order. Following is a summary of those guidelines.

- **General guidelines (primary/secondary placement):** unless other circumstances apply, a parent who has physical placement of less than 92 overnights per year will pay
 - 17% of gross income for 1 child

- 25% of gross income for 2 children
- 29% of gross income for 3 children
- 31% of gross income for 4 children
- 34% of gross income for 5 or more children
- **Shared-placement parents:** if both parents have a physical placement of at least 92 overnights per year (and the schedule is the same for all children), the percentages from the general guidelines are multiplied by 150% (1.5), and then multiplied by the proportion of time the children spend with the other parent. The amounts for each parent are offset, and the parent with the greater amount of support pays the remaining amount
- **Split-placement parents:** if the parents have 2 or more children who have different placement schedules from the parents, a pro-rata percentage is used based on the number of children (for 2 children, 12.5% for each child; for 3 children, 9.67% for each child; for 4 children, 7.75% for each child; for 5 or more children, 6.8% for each child).
- **High-income payers:** if the payer parent under either the general guidelines or the shared-placement guidelines earns monthly gross income greater than \$7,000 (or \$84,000 per year), the percentages used under the general guidelines are reduced.
- **Low-income payers:** if the payer parent's income is less than 150% of the federal poverty guidelines, the percentages used under the general guidelines are reduced.
- **Serial family payers:** if the payer is currently obligated to pay child support under an existing child support order, the subsequent order is calculated based on the payer's monthly income *after* the existing child support obligation is deducted. Once the reduced monthly income has been calculated, whichever circumstances described above are applicable are used to determine the subsequent order.

This sounds somewhat complicated, doesn't it? The good news is that many law firms practicing family law have software to assist with these calculations. Additionally, the Department of Children and Families has provided worksheets to help estimate the amount of child support in various circumstances.

- [Shared-Placement Worksheet \(wisconsin.gov\)](#)
- [Split Placement Worksheet \(wisconsin.gov\)](#)
- [Combination of Split and Shared-placement Worksheet \(wisconsin.gov\)](#)
- [High-Income Payer Worksheet \(wisconsin.gov\)](#)
- [Serial Family Payer Worksheet \(wisconsin.gov\)](#)

Some examples of each type of calculation (as well as the above worksheets) can be viewed [on the Department's website](#).

Special note: Although the “offsetting amounts” of child support assigned to each parent may result in almost no money being paid by one parent to the other, particularly when the parents' incomes and amounts of physical placement are nearly equal, **in Wisconsin the parties cannot agree that there is no child support obligation.**

Judicial Discretion to Deviate from Presumptive Calculation

Once the presumptive amount of child support has been calculated, the judge is allowed discretion to deviate from that calculation if the judge determines the amount is unfair to the child or to either parent. Factors that may allow for deviation include

- The best interests of the child(ren)
- The child's financial resources
- The financial resources of both parents.
- Maintenance (spousal support) received by either party.
- The needs of each party in order to support themselves at a level equal to or greater than that established under federal poverty guidelines.
- The needs of any person, other than the child, whom either party is legally obligated to support.
- If the parties were married, the standard of living the child would have enjoyed had the marriage not ended in annulment, divorce or legal separation.
- The desirability that the parent remain in the home as a full-time parent.
- The cost of childcare if the parent works outside the home, or the value of childcare services performed by the parent if the parent remains in the home.
- Extraordinary travel expenses incurred by the parent in exercising the right to periods of physical placement
- The child's physical, mental, and emotional health needs, including any costs for health insurance
- The child's educational needs.

- The tax consequences to each party.
- The earning capacity of each parent is based on each parent's education, training, and work experience, and the availability of work in or near the parent's community. [Section 767.511\(1m\)](#), [Wis. Stats.](#)

If the court enters an order deviating from the percentage standards, the court is required to state in writing or on the record the amount of support that would be required if the percentage standards were used. The court must also state the amount by which the court's order deviates from that amount. Finally, the court must explain the reasons for the deviation, as well as the reasons and basis for determining the amount of the deviation. [Section 767.511\(1n\)](#), [Wis. Stats.](#)

Similar to spousal support, any ordered child support is required to be paid by income assignment directly from the payor's employer to the Wisconsin Support Collections Trust Fund (WI SCTF). The payor is only allowed to make direct payments to the WI SCTF if the payor is self-employed.

Additionally, as with orders for spousal support, child support orders must include the requirements that, within 10 business days (1) both the payer and the payee must notify the county child support agency of any change of address, and (2) the payer must notify both the payee and the county child support agency of any change in employer and any substantial change in the amount of income (including bonuses).

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15: Modification and Enforcement of Child Support

Depending on the age of the children when the initial order for child support is entered, the duty of support can be in place for up to 18 years or longer. As the child grows, the child's needs invariably change. During that time, the parents' circumstances will likely also change in terms of finances, physical placement with the child, and subsequent family changes. These changes may result in the need to modify the original order and may also result in behaviors requiring extra steps to enforce the order. Because states vary in terms of factors and procedures to modify and enforce child support orders, this chapter will focus primarily on Wisconsin law.

Grounds for Modifications of Orders for Child Support

As noted previously, the state that entered the initial child support order has continuing exclusive jurisdiction to modify that order unless neither of the parents nor the child is residing in the state. Personal jurisdiction must be obtained over any person affected by a proposed modification of the original order.

Similar to orders for spousal support, once the court has determined it has personal jurisdiction to modify a child support order, the court will not do so unless there is a **substantial change in circumstances** justifying the modification. The change must be significant and unforeseeable at the time of the original order. Additionally, the change cannot be the result of intentional unreasonable actions by the person seeking the change, or actions taken by the payer with the intent to avoid paying child support.

Pursuant to Wisconsin statutes, the following events create a rebuttable presumption that there has been a substantial change in circumstances:

- Either parent has begun receiving payments of state aid to families with dependent children
- For orders expressed as a fixed dollar amount, 33 months have passed since the entry of the order
- Failure of the payor to timely disclose financial information as required by section 767.54.

Examples of other events that may constitute a substantial change in circumstances include

- Payor's income or earning capacity has changed (if the order is expressed as a fixed dollar amount)
- The child's needs have changed
- A significant change in physical placement

Generally, the following **are not** considered substantial changes in circumstances that would justify a modification

- Payor or payee cohabits or remarries
- Payor's decision to change jobs, retire, or go back to school is unreasonable or designed to avoid paying child support
- Payee decides to quit work, change jobs, retire, or go back to school
- Either party violates orders regarding child custody or child placement/visitation

Even if a change has occurred, the existing child support order remains in effect unless and until a new order is entered. A payee who reduces payments based on a claimed change in circumstances prior to the entry of a new order is at risk of accumulating an arrearage with penalties and interest added. In general, any revision of a child support order begins on the date a party serves the other party with notice of a request to modify the order.

Enforcement of Child Support Orders

Perhaps the biggest challenge children face with respect to child support is actually receiving the support that is ordered. In many cases, the payee parent may not have the resources to hire a lawyer to go after the payor. In addition, the payee parent may not know where the payor is or the payor may attempt to have the award modified in another state. Finally, the courts may be reluctant to impose stringent penalties such as contempt. In recent years, both the federal government and the states have attempted to address some of these concerns; nevertheless, enforcement of child support awards remains a very difficult issue.

Federal Child Support Enforcement

To a large extent, child support enforcement is governed by Federal law because the federal government provides considerable financial support to states to assist in collecting child support. In addition, there are several regulations that provide for information-sharing between the state and federal governments that are designed to make it easier to locate delinquent payers, track their employment, and seize funds.

One of the most important child support collection efforts was enacted when Congress added Title IV-D to the Social Security Act as part of the Child Support and Establishment of Paternity Act of 1974. Among other things, the Act established a federal Office

of Child Support Enforcement and made the creation of state child support enforcement agencies a condition of receiving certain federal funding. IV-D Agencies are charged with assisting payee parents by

- Establishing a parent locator service and working with various agencies to locate and track parent payers
- Assisting with initiating income withholding for payors
- Providing services relating to collecting past-due child support

Additional federal laws were enacted to facilitate the collection of child support, including

- Withholding federal tax refunds for delinquent child support (tax refund intercept)
- Denial, revocation, or restriction of passports to delinquent payors
- Regulations allowing up to 65% of a payor's disposable income to be withheld to pay child support
- Federal criminal non-support prosecution for an out-of-state payor to willfully fail to pay a past due child support obligation.

All of these services and more are available to all child support payees, regardless of whether the child is a marital or nonmarital child. Additionally, payees do not have to be receiving other public assistance (either federal or state benefits) to receive assistance from IV-D Agencies.

State Child Support Enforcement

Despite the growing federal involvement in establishing requirements for setting and collecting child support, the actual enforcement of the support order takes place at the state level. Some of the enforcement options available to the states include:

- **Civil and criminal contempt of court proceedings:** a complaint to the court that the payer has violated the court's order to pay child support, which can result in imposition of interest on past due amounts (arrearages), fines, and jail time
- **Garnishment:** a court proceeding that forces a third party, such as an employer or a financial institution, to pay money owed to or owned by the debtor (the non-paying spouse) to the creditor (the payee spouse).
- **State tax refund intercept:** The payer's tax refund can be intercepted before it is received and used to pay child support
- **Judgment intercepts:** payments due to a payer pursuant to judgments, settlements, insurance claims, personal injury claims, and the like, can be intercepted before it is received and used to pay child support
- **Child support lien:** placing a legal hold on property such as land and vehicles, requiring past due child support to be paid before the payer can sell the property
- **Execution:** a writ issued to an officer (usually the sheriff) to seize the debtor's property/asset (such as a boat or a car), sell it, and turn over the sale proceeds to the creditor
- **QDRO and QMSO:** court orders issued to administrators of pension/retirement plans (QDRO) and group health insurance plans (Qualified Medical Child Support Order/QMSCO) requiring payment or extension of coverage/benefits to the payer's children
- **License and registration denial, delay, or revocation:** actions against payer's professional or occupational license, driver's license and vehicle registration, hunting and fishing licenses
- **State criminal nonsupport actions:** referral of delinquent payers for prosecution. In Wisconsin, a person who intentionally fails to provide ordered support for 120 consecutive days is guilty of a Class I felony, punishable by a fine up to \$10,000 and imprisonment up to 3 years and 6 months. For less than 120 days it is a Class A misdemeanor punishable by a fine up to \$10,000 and imprisonment up to 9 months
- **"Deadbeat shaming" actions:** these may include publishing the payer's picture on wanted posters, placing a wheel boot on the payer's car (making it impossible to drive), reporting the payer to the credit bureaus

There are limits as to what a state can do to enforce a child support order. For example, a person cannot be criminally prosecuted for failure to pay child support if the person lacks the ability to pay. States also cannot enact laws allowing delinquent payers to be subject to termination of parental rights, restrictions on marriage, or other penalties.

✓ Case in Point: *State v. Oakley*, 2001 WI 103, 245 Wis. 2d 447, 629 N.W.2d 200

Synopsis

David Oakley fathered nine children with four different women and had been ordered to pay child support for all of them. Oakley was charged with intentionally refusing to pay child support as a repeat offender after accumulating over \$25,000 in arrears. Noting Oakley's clear ability to work and "obvious, consistent, and inexcusable" disregard of his obligation to support his children, and lamenting that a prison sentence would result in Oakley not being "in a position to pay any meaningful

support for these children,” the trial court opted to impose a total of 11 years in prison, staying 8 years and imposing 5 years of probation. One condition of probation (which if violated, would result in Oakley’s 8-year imprisonment) was that Oakley was not to father any more children unless he demonstrated that he had the ability to – and actually was – supporting them.

Excerpts

Following are excerpts from the opinion affirming the Court of Appeal's determination that the condition of probation was not overly broad and was appropriate (citations and references to other authorities within the opinion are omitted)

Refusal to pay child support by so-called "deadbeat parents" has fostered a crisis with devastating implications for our children.⁵ Of those single-parent households with established child support awards or orders, approximately one-third did not receive any payment while another one-third received only partial payment.⁶ For example, in 1997, out of \$26,400,000,000 awarded by a court order to custodial mothers, only \$15,800,000,000 was actually paid, amounting to a deficit of \$10,600,000,000. These figures represent only a portion of the child support obligations that could be collected if every custodial parent had a support order established.⁸ Single mothers disproportionately bear the burden of nonpayment as the custodial parent.⁹ On top of the stress of being a single parent, the nonpayment of child support frequently presses single mothers below the poverty line.¹⁰ In fact, 32.1% of custodial mothers were below the poverty line in 1997, in comparison to only 10.7% of custodial fathers.¹¹ Indeed, the payment of child support is widely regarded as an indispensable step in assisting single mothers to scale out of poverty, especially when their welfare benefits have been terminated due to new time limits.

The effects of the nonpayment of child support on our children are particularly troubling. In addition to engendering long-term consequences such as poor health, behavioral problems, delinquency and low educational attainment, inadequate child support is a direct contributor to childhood poverty. And childhood poverty is all too pervasive in our society. Over 12 million or about one out of every six children in our country lives in poverty. In Wisconsin, poverty strikes approximately 200,000 of our children, with 437,000 at or below 200% of the poverty level in 1999. Although payment of child support alone may not end childhood poverty, it could reduce current levels and raise childhood standards of living. Child support—when paid—on average amounts to over one-quarter of a poor child's family income. There is little doubt that the payment of child support benefits poverty-stricken children the most. Enforcing child support orders thus has surfaced as a major policy directive in our society.

In the present case, the record indicates that Judge Hazlewood was familiar with Oakley's abysmal history prior to sentencing. The record reveals that Judge Hazlewood knew that Oakley had a number of support orders entered for his nine children, but he nevertheless continually refused to support them. He was aware that Oakley's probation for intimidating two witnesses in a child abuse case—where one of the witnesses was his own child and the victim—was in the process of being revoked. Judge Hazlewood was also apprised that Oakley had promised in the past to support his children, but those promises had failed to translate into the needed support. Moreover, he knew that Oakley had been employed and had no impediment preventing him from working. As the court of appeals observed in the witness intimidation case against Oakley, "[t]he refusal to pay the fines and the victim intimidation both show Oakley's cavalier attitude toward the justice system. . . . Oakley needs to be rehabilitated from his perception that one may flout valid court orders and the judicial process with impunity and suffer no real consequence." Given his knowledge of Oakley's past conduct, Judge Hazlewood was prepared to fashion a sentence that would address Oakley's ongoing refusal to face his obligations to his nine children as required by law.

In doing so, Judge Hazlewood asserted that some prison time coupled with conditional probation might convince Oakley to stop victimizing his children. With probation, Judge Hazlewood sought to rehabilitate Oakley while protecting society and potential victims—Oakley's own children—from future wrongdoing. The conditions were designed to assist Oakley in conforming his conduct to the law. In Wisconsin, . . . we have condemned unequivocally intentional refusal to pay child support and allow for the severe sanction of prison to be imposed on offenders. Here, the judge fashioned a condition that was tailored to that particular crime but avoided the more severe punitive alternative of the full statutory prison term through the rehabilitative tool of probation. At the same time, Judge Hazlewood sought to protect the victims of Oakley's crimes—Oakley's nine children.

Applying the relevant standard here, we find that the condition is not overly broad because it does not eliminate Oakley's ability to exercise his constitutional right to procreate. He can satisfy the condition of probation by making efforts to support his children as required by law. Judge Hazlewood placed no limit on the number of children Oakley could have. Instead, the requirement is that Oakley acknowledge the requirements of the law and support his present and any future children.²⁹ If Oakley decides to continue his present course of conduct—intentionally refusing to pay child support—he will face eight years in prison regardless of how many children he has. Furthermore, this condition will expire at the end of his term of probation.

He may then decide to have more children, but of course, if he continues to intentionally refuse to support his children, the State could charge him again under § 948.22(2). Rather, because Oakley can satisfy this condition by not intentionally refusing to support his current nine children and any future children as required by the law, we find that the condition is narrowly tailored to serve the State's compelling interest of having parents support their children.³⁰ It is also narrowly tailored to serve the State's compelling interest in rehabilitating Oakley through probation rather than prison. The alternative to probation with conditions—incarceration for eight years—would have further victimized his children. And it is undoubtedly much broader than this conditional impingement on his procreative freedom for it would deprive him of his fundamental right to be free from physical restraint. Simply stated, Judge Hazlewood preserved much of Oakley's liberty by imposing probation with conditions rather than the more punitive option of imprisonment.

Think about it ...

1. Do you think the threat of jail upon fathering additional children violates Oakley's right to procreate? Why or why not?
2. Do you think the rights of Oakley's existing children outweigh his right to procreate?
3. If you disagree with the trial court's order, what would you have ordered instead?

Tax Consequences of Child Support

Child support payments are not tax deductible by the payer, nor are they to be included in the payee's taxable income. However, parents who pay for childcare, healthcare, and college costs may be able to deduct these expenses, if they meet certain financial thresholds.

Many times child support orders include a determination of which parent is allowed to claim the child as a dependent for each tax year. The general rule is that, for a parent to claim the child as a dependent, the child must be under 17 at the end of the tax year, the child must have lived with the parent for the last six months of the tax year, and the parent must provide at least 50% of the child's financial support. For shared-placement parents, the court can require each parent to sign a release form with the IRS that will allow the other parent to claim the child as a dependent in the tax years assigned to that parent in the court order.

Paralegal Roles

When a client's family law matters involve issues relating to child support, the paralegal's role is to support the supervising attorney in providing legal services and acting as a liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, conducting factual investigation and/or legal research, drafting documents as directed by the supervising attorney, facilitating the signing of documents, and filing documents with the court or other state agency. Paralegals may also be asked to assist the client in working with the Wisconsin Department of Children and Families or Wisconsin's IV-D agency. Paralegals employed by a Wisconsin IV-D agency would be directly involved in assisting payee parents, working with payer employers, and working with other state and federal agencies to enforce child support orders.

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16: The Separation Agreement

In previous chapters, you've learned about the matters that are determined in a judgment of annulment, divorce, or legal separation: spousal support, property division, child custody and placement, and child support. Effective marital contracts provide specific terms detailing the parties' agreements regarding these same matters. As you learned in [Chapter 4](#), prenuptial, postnuptial, and cohabitation contracts include provisions governing the parties' intact relationships and also usually include provisions governing what will occur upon the death of one of the parties, as well as provisions triggered by the parties' separation/termination of their relationship. These contracts are entered into by parties intending to enter into a relationship (or who are already in a relationship) and who intend to remain in the relationship.

Separation agreements, in contrast, are entered into by persons who intend to separate and/or terminate their relationship; thus, they cover financial and related matters during the parties' separation and after the termination of the relationship (most frequently in the context of divorce). According to [Forbes.com](https://www.forbes.com), although many divorces start out as contested, 90% of divorcing couples enter into some type of agreement resulting in an uncontested, or at least partially uncontested, divorce. This chapter will discuss effective separation agreements in the context of divorce.

Effective Separation Agreements

Effective separation agreements have the following characteristics:

- **Accurate:** reflects the parties' agreements and intentions precisely and correctly with respect to all matters impacting the parties, their property, and their children.
- **Readable:** uses language that the parties can easily understand without the assistance of attorneys or other legal practitioners. Words should be chosen carefully for clarity, conciseness, and simplicity. Avoiding legalese is preferable.
- **Fair:** balances the rights and obligations of both parties equitably. One-sided contracts or provisions rarely are workable and often result in future litigation that is costly in terms of money, time, and emotions. Legal practitioners who seek to help their clients gain an unfair advantage over the other party, deprive the other party of things to which that party is entitled, or "outsmart" the other party are not providing excellent legal services. Little is accomplished by winning the war in the short term and losing the peace in the long term.
- **Comprehensive:** covers all major matters impacting the parties, their property, and their children. As much as possible, the agreement anticipates future events (particularly with respect to children) and addresses those contingencies.

Most family law practitioners have templates they use for separation agreements, and checklists for information to be obtained from clients in preparation for drafting them. These documents should be reviewed and updated periodically. Suggested information checklists and topics for contract provisions follow.

Preparing to Draft the Separation Agreement

Preparing to draft an effective separation agreement requires not only in-depth and detailed knowledge of the parties' personal and financial information ([Chapter 3](#)), but also an awareness of the laws and regulations governing marital contracts in general ([Chapter 4](#)), spousal support and property division ([Chapters 8 and 9](#)), and if the parties have minor children, child custody ([Chapter 12](#)), and child support ([Chapter 14](#)).

Most likely, when the time has come to negotiate a separation agreement, the parties have previously exchanged financial disclosure statements as part of the divorce proceedings, particularly if one of the parties rested a Temporary Order. Before drafting the final separation agreement (known as a **Marital Settlement Agreement** in Wisconsin), the parties should exchange updated financial information. Not only is this information important to ensuring an accurate, fair, and informed agreement, but also the court will require updated financial information at the final hearing.

Once you have reviewed all of this information, you can begin discussions with the client about the types of provisions and agreements to include in the separation agreement. Even if the parties cannot agree on all of the matters relevant to their divorce, a partial agreement is beneficial.

Checklists for Clauses

As a general matter, the agreement should start by identifying the parties involved, the date of their marriage, the date of their separation, and the date when divorce action was filed. If the parties have children, it will include the children's names (or initials) and ages. It will also provide the reason the parties are divorcing (the marriage is irretrievably broken) and their intent to settle their

divorce. It will then specify the parties' agreements in all relevant categories. Parties will benefit from being as specific as possible. Finally, the agreement will be signed and dated by both parties.

Following are some checklists (in no particular order) for items to consider including in the agreement.

Spousal Support (Maintenance)

- Is either spouse (or are both spouses) waiving the right to spousal support from the other spouse?
- If one spouse will be paying spousal support to the other spouse
 - How much will be paid (fixed amount, percentage, or other provision)?
 - On which date will it start being paid (should be on or after the date the agreement is signed, or the date of the final hearing)?
 - How should payments be scheduled? Include specific payment provisions (day of the month/frequency of payment).
 - How long will it be paid (a number of years, typically)?
 - What types of events will result in payment termination (remarriage, cohabitation, death of payee, or other appropriate conditions)?
 - What is the method of payment? Remember, in Wisconsin, except in certain circumstances payments must be made to the Wisconsin Support Collections Trust Fund through an income assignment from the payer's employer – employer information may also be needed.
 - Do the parties desire the payer to have life insurance or other security for future payments?
- Modification of spousal support
 - Do the parties want to waive a future right to seek modification?
 - Do the parties want to limit the circumstances (beyond just a change in circumstances) under which a modification may be requested?
- If spousal support was previously ordered
 - Has the payor paid all spousal support as ordered?
 - If not, what arrangements are being made to bring the arrearage current?
- Income tax returns
 - What income tax returns will be filed after the separation but before the divorce?
 - Will a tax professional be hired, and if so, how will that person be selected?
 - If previous tax returns have not been filed, is a hold harmless clause necessary?
- Agreement by the parties to exchange financial information (state and federal income tax returns, W-2s, 1099 forms, paycheck stubs, etc.) by a specific date each year (this usually is tied to federal tax filing deadlines and is often May 1 of each year).

Property Division

- List all of the personal property owned by either spouse individually, indicating who is to receive possession of it.
 - Household furnishings, appliances, and other items (general categories are sufficient; each item does not need to be listed separately, unless it has an unusually high value).
 - Automobiles and other motor vehicles, including make, year, and model. Include VIN# as well.
 - Financial accounts, investments, and retirement assets, such as checking and savings accounts; securities such as mutual accounts, stocks, and bonds; pension/retirement accounts such as IRAs, 401k plans, profit sharing, and deferred compensation; life insurance (including name of financial institution/company and other details sufficient to identify particular items).
 - Other high-value items of personal property (antiques, collectibles, art, etc.).
- Do any items of personal property still need to be exchanged by the parties? If so, include details as to when and how the exchange will occur.
- List all of the real property owned by either spouse individually, indicating who is to receive possession of it and details of how the title will be transferred to that individual (if necessary).
- If real property is to be sold
 - Who will occupy or use it until the sale is completed?
 - How will the property be sold (by the owner or through a real estate agent)? If a real estate agent is to be hired, how will that agent be selected, and who will be responsible for decision-making and communication with the agent?

- Who will be responsible for paying taxes, mortgage, and insurance until the sale is completed?
- Who will be responsible for necessary repairs or other sale-related expenses?
- How will the sale proceeds be divided?
- Business interests of each spouse
 - List business assets, including real property and personal property owned by the business
 - Who will make management decisions during the separation and after the divorce?
- Valuation of property other than “ordinary” household items and personal effects, including whether a professional appraiser should be used and how that person would be selected.
- Will any payments be required to equalize the marital property division between the parties?
 - If so, who is to make the payment, when, and how?
 - Will interest be incurred on any payment due but not paid as of the date the separation agreement is to be signed?

Debts and Liabilities

- List all individual and business debts and liabilities owed by either spouse or by both of them, including
 - Name of the creditor
 - Balance owed
 - When and why the debts were incurred
 - Whether the debts are secured (such as by a mortgage or a lien on property)
- Who will be responsible for paying each debt?
- Include hold harmless clauses stating
 - The parties agree that the party assigned a debt will be solely responsible for paying the debt and will not seek payment from the other party
 - The parties agree that if a creditor seeks payment from the party to whom the debt was not assigned, the party to whom the debt was assigned will reimburse and indemnify the other party (remember, creditors are not bound by the terms of a separation agreement or judgment assigning debts)
 - Any party who suffers a loss because of a failure of the other party to pay an assigned debt may enforce that obligation by a motion or an order to show cause for contempt of court.

Child Custody (If Applicable)

- Who will have legal custody (remember, Wisconsin presumes the parents will have joint legal custody)?
 - How will the parties communicate/consult regarding major decisions?
 - How will the parties resolve disagreements with respect to major decisions regarding the children?
- It can be helpful to refer to the parties’ proposed parenting plans, or even to include the final parenting plan agreed to by both parties as an attachment to the separation agreement. (See [Chapter 13](#) and the forms linked in that chapter)

Child Physical Placement (If Applicable)

- Will physical placement be shared or primary/secondary (remember, Wisconsin presumes the parents will have shared physical placement)?
- If a parent receives less than 25% physical placement, what are the specific reasons that this is in the child(ren)’s best interest?
- Specify the schedule of physical placement for the children (or for each child, in the event of split physical placement) including
 - How and where will exchanges take place?
 - Who will pay transportation expenses, if any?
 - Who will have physical placement on “holidays” or “special days” (summer vacation, birthdays, Mother’s Day/Fathers’ Day, etc.)
 - Do the parties have agreements regarding moving the child to a different city or state temporarily or permanently?
 - Does anyone else have visitation with the child(ren), for example, grandparents?
 - How will the child’s communication with the parent, not having physical placement, occur/be facilitated?
- Do the children require regular daycare/child care? If so, how will the parties select a daycare provider, and how will the cost be divided between the parties?

- Again, it can be helpful to refer to the parties' proposed parenting plans, or even to include the final parenting plan agreed to by both parties as an attachment to the separation agreement.

Child Support (If Applicable)

- What is the standard child support calculation applicable to the parties, based on income, number of children, and physical placement?
 - What is the result of applying this calculation to the parties (who will pay how much)?
 - Will there be a deviation from the standard? If so, how much, and what are the reasons supporting the deviation?
- Method of payment (remember, in Wisconsin, except in certain circumstances payments must be made to the Wisconsin Support Collections Trust Fund through an income assignment from the payer's employer – employer information may also be needed).
- Do the parties desire the payor to have life insurance or other security for future payments? If so, do the beneficiaries of existing life insurance policies need to be changed?
- Children's medical and health care expenses
 - Who is responsible for obtaining health care coverage (including medical, dental, vision, orthodontic, psychiatric, prescriptions and other coverages)?
 - Agreement by the parents to provide copies of insurance policy information and insurance cards to each other and to the child support agency.
 - Agreement by the parents to notify each other and the child support agency of any changes in employment and the availability of insurance.
 - If only one parent is providing health care coverage, will the other party reimburse that parent for the difference in cost between single and family coverage? If so, how much contribution shall be paid, and when?
 - If neither party has access to private health insurance for the child(ren) at a reasonable cost, who is responsible for enrolling/applying for public health insurance?
 - How will the parties divide uninsured health care expenses (including amounts applied to deductibles, copays, or other expenses not covered by insurance)?
 - What are the terms for reimbursement between the parties? What notification is required, and what is the deadline for reimbursement (usually requests for reimbursement must be made in writing, and the other party has a certain number of days after that request to make payment)
- How will the parties divide the children's variable expenses (school supplies, extra-curricular activities, etc.)?
 - Include agreement as to how decisions will be made regarding extra-curricular activities, driver's licenses, and how those decisions will relate to who pays the cost of those items.
 - What are the terms for reimbursement between the parties? What notification is required and what is the deadline for reimbursement (usually requests for reimbursement must be made in writing, and the other party has a certain number of days after that request to make payment)
- Do the parties agree to pay child support or other expenses after the child graduates high school or reaches the age of 19 (for example, college expenses, health care expenses)?
- If child support was previously ordered
 - Has the payor paid all child support as ordered?
 - If not, what arrangements are being made to bring the arrearage current?
- Income tax returns
 - Who will be allowed to claim the child(ren) as dependent for income tax purposes?
 - Include an agreement by the parties to cooperate in signing IRS Form 8332 or other appropriate state or federal forms necessary to effectuate their agreement
- Agreement by the parties to exchange financial information (state and federal income tax returns, W-2s, 1099 forms, paycheck stubs, etc.) by a specific date each year (this usually is tied to federal tax filing deadlines and is often May 1 of each year).
- Again, it can be helpful to refer to the parties' proposed parenting plans, or even to include the final parenting plan agreed to by both parties as an attachment to the separation agreement. (See [Chapter 13](#) and the forms linked in that chapter)

Attorney Fees and Court Costs

- Usually, each party is responsible for paying their own attorney fees relating to divorce proceedings.
- How will the parties divide other costs relating to the divorce (for example, psychological evaluations or other appraisal costs not already covered in the agreement, filing fees, deposition fees, etc.)?

Conflict Resolution

- What method(s) (mediation, arbitration, etc.) will be used to resolve disputes after the agreement is signed and approved by the court?
- If a third party is to be used for conflict resolution, how will that party be selected and paid?

Enforceability Clauses

- Similar to prenuptial agreements, separation agreements should contain clauses confirming it was signed voluntarily, after complete and accurate financial disclosure between the parties, and with the opportunity to seek independent legal counsel (see [Chapter 4](#)).
- Typically, the parties also agree that the separation agreement should be incorporated into and merged into the final divorce judgment

The above are just some of the clauses that the parties should consider including in their separation agreement. Below are links to some sample agreements

- [Wisconsin marital settlement agreement with minor children](#)
- [Wisconsin marital settlement agreement without minor children](#)
- [Sample form from eForms.com](#)

Illegal Clauses

While the separation agreement covers nearly all of the issues that are subject to court orders during a legal separation, annulment, or divorce, the separation agreement cannot be a “private divorce” in substitution of a court judgment. In other words, the agreement cannot include a clause that declares the marriage is terminated or annulled, or that the parties are legally separated.

Similarly, a separation agreement cannot contain clauses that are considered “conducive to divorce” or otherwise violate public policy. Thus, clauses in which the parties agree to file an action for annulment, divorce, or legal separation are likely not enforceable. This is why most separation agreements contain a statement that the parties have already separated and/or that an action for annulment, divorce, or legal separation has already been filed. Other potentially problematic clauses involve agreements to participate in, agree, or pay for things if one of the parties files for divorce (for example, the parties agree to appear in an out-of-state divorce; if spouse A files for divorce spouse B agrees to pay in advance all expenses incurred in the divorce action).

Paralegal Roles

When it is time to negotiate a separation agreement, the paralegal’s role is to support the supervising attorney in providing legal services and acting as a liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, and conducting factual investigation and/or legal research. Compiling and organizing all of this information will require a substantial amount of time and effort and painstaking attention to detail. Paralegals may also assist the attorney with locating appraisers and other professionals to assist with the valuation of property or with vocational questions. As the negotiation progresses and/or agreements are reached, the paralegal will assist with drafting documents as directed by the supervising attorney, facilitating the signing of documents, and filing documents with the court.

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17: Introduction to Parentage of Children

Determining the identity of the legal parent(s) of a child is not always as simple as it might seem. Parent-child relationships are created under the law in many different ways. Children born during a marriage are generally presumed to be the children of both parties in the marriage even if the child was conceived through assistive reproductive technology (though, as you will see, there is not always a consistent application of this presumption to same-sex married couples). When children are born to an unmarried woman, legal proceedings (known as paternity, parentage, or legitimacy proceedings) are required to establish the second person's parentage. Sometimes, a legal parent-child relationship can be created for one or two people through adoption after one or more existing parent-child relationships have been terminated, which can be a complex process. Parentage can be further complicated when a child is born to a surrogate mother. The next several chapters will explore issues concerning the parentage of children.

Impact of Parentage

Parentage is the term for the legal relationship between a child and their parent or parents. The distinction between “legitimate” and “illegitimate” children has been an important historical concept in the law. In the past, children's legal rights in relation to their parents were not based on a biological fact but on the parents' marital status. A child born during a marriage was considered “legitimate” and entitled to a full legal relationship with both parents. A child born outside of marriage was considered “illegitimate,” the child of no one (*filius nullius*), and was not entitled to support or inheritance from either parent. Fortunately, this is no longer the case. Now, parentage is based on biological relationships (and also sometimes based on “parental intent”) such that children – and parents – have legal rights and obligations based on those factors.

Definitions Relating to Parentage:

Parentage: The legal relationship between a child and their parent or parents.

***Filius nullius*:** A child born outside of marriage; literally, the child of no one.

As you know from previous chapters, becoming a child's parent confers important rights and obligations on the adult with respect to custody, placement, and support. A child's parentage also has other impacts on the child's legal status and rights, as well as the parent's. Some of those rights include

- **Citizenship.** The genetic or adopted child of a United States citizen is also a citizen. Citizenship also applies to non-marital children whose U.S. citizen parent is established as the child's parent through paternity/legitimation proceedings. ([See child-of-a-us-citizen](#))
- **Insurance coverage.** Children whose parents have health insurance that covers dependents can be added to their parent's insurance plans until they reach the age of 26. (See [Healthcare.gov](#))
- **Death/disability benefits.** Children are entitled to receive monetary and other benefits as a result of their parent's disability or death under [Social Security](#), [Wisconsin Worker's Compensation](#), and other programs.
- **Death/disability claims.** A child whose parent is injured or killed as a result of a third party's wrongful conduct has a right to file civil claims. Parents also have civil claims if their child is injured or killed as a result of a third party's wrongful conduct. ([Wrongful death claims](#) and [loss of society and companionship](#)).
- **Inheritance.** Both children and parents have the right to inherit from one another under [intestacy laws](#). Children also may receive [special allowances](#) from the parent's estate during probate.
- **Access to records.** Up until the child reaches a certain age, parents have the right to access the child's health care and school records and to make decisions on the child's behalf.

In most states, including Wisconsin, these rights are the same regardless of whether the child is genetically related to the parent or was adopted by the parent. Similarly, these rights are the same regardless of whether the child was born or adopted into a marriage -- as you may recall from [Chapter 2](#), non-marital children are a quasi-suspect class under Constitutional law.

Parental Civil Liability for wrongful actions. Parents can be held legally responsible for damages caused by their children's wrongful acts. ([Section 895.035, Wis. Stats.](#)). Specifically, parents can be held responsible for the cost of repairing or replacing property, the cost of removing graffiti from property, or for the replacement value of stolen property that has not been returned (including retail theft). Parents can also be held legally responsible for damages resulting from personal injury attributable to their child's willful, malicious, or wanton acts.

Parental Criminal Liability for wrongful actions. Generally speaking, parents will not be prosecuted directly for crimes committed by their children. However, in at least two cases parents have faced criminal charges for permitting their children to access firearms that were later used to commit crimes. In Virginia, a grand jury indicted a mother with felony and misdemeanor charges for failing to prevent her 6-year-old child from accessing a loaded gun and using it to shoot his teacher at school ([Shooting of Abby Zwerner](#)). In Michigan, the parents of a 17-year-old school shooter were convicted of involuntary manslaughter and sentenced to 10-15 years in prison, based on their failure to prevent their son's access to the father's semi-automatic pistol ([Oxford High School shooting](#)).

Emancipation of Minor Children

These rights, responsibilities, and potential liability extend only until the child reaches the age of majority (18 years old in most states) or is **emancipated**.

Definition: Emancipation

Emancipation: The court process through which minor children can become legally recognized as an adults independent of their parents.

After an emancipation order is entered the minor becomes self-supporting, assumes adult responsibility for their welfare, and is no longer under parental care. Emancipation will not be granted unless it is in the child's best interest and the child has demonstrated the maturity and ability (including financial) to support themselves.

Certain events will result in automatic emancipation, such as marriage or entering the military (both of which require parental consent for minors in Wisconsin). In many states, if the minor seeks emancipation for reasons other than those two events, the minor must prove that emancipation is in their best interest.

Many states have emancipation statutes and procedures for requesting emancipation. Wisconsin, however, does not, although the statutes do provide a definition of "emancipated minor" as "a minor who is or has been married; a minor who has previously given birth; or a minor who has been freed from the care, custody, and control of her parents, with little likelihood of returning to the care, custody and control prior to marriage or prior to reaching the age of majority." The context of this definition lies within statutes regarding the requirement of parental consent for abortions. [Section 48.375, Wis. Stats.](#)

Although emancipation results in the child having the same rights, privileges, and duties in society as adults, it does not override laws setting minimum ages for the purchase and consumption of alcohol, tobacco, or firearms; voting; writing a will; or entering into certain types of contracts.

The following resources provide more information regarding the legal status of teens in Wisconsin:

- [Teens in the Law: A Parent's Resource](#)
- [Your Legal Rights and Responsibilities](#)

Marital Presumption of Parentage

In all 50 states, a child born during a heterosexual marriage is presumed to be the child of both spouses. In Wisconsin, this presumption also applies to children conceived during a marriage. [Section 891.41\(1\)\(a\), Wis. Stats.](#) In some cases, this presumption may extend to non-marital children whose biological parents subsequently marry. [Section 767.803, Wis. Stats.](#)

Whether states apply the marital presumption to children born or brought into same-sex marriages, without the need for additional proceedings or proof, is inconsistent. Some states have modified their statutory language relating to the marital presumption so that it is not gender or biologically specific. In other states, courts have interpreted the U.S. Supreme Court's decision in *Obergefell v. Hodges* to require an extension of the marital presumption of parentage to children in same-sex marriage, even if neither parent is biologically related to the child. Still, other states require adoption or a court order of parentage to establish parental rights and obligations of adults in same-sex marriages. (See, for example, [Matter of Maria-Irene D](#), [Lambdalegal.org](#), [Glad.org](#), and [lgbtqmap.org](#)).

Genetics and Parentage

In most instances, being a genetic participant in a pregnancy (men through sperm and women through ovum) is directly tied to the determination of parentage. However, this is not always the case when a child is conceived through assisted reproductive

technology (ART) or is born to a surrogate mother.

 Definition: Assisted Reproduction

Assisted reproduction (ART): Intervening medical procedures that completely or partially replace sexual intercourse as a means of conception.

Depending on the type of ART used, the genetics tied to the sperm and/or ovum might have no impact on the resulting child's parentage.

Artificial insemination. Sperm provided by a man (often anonymously through a sperm bank) are medically inserted into the intended mother's uterus, where her ovum/egg is fertilized. In most states, an anonymous sperm donor has no rights or responsibilities with respect to the child conceived from his sperm. However, a known sperm donor may still possess the rights and responsibilities of the child's legal father. Also in most states, if the mother's husband consents to the insemination, he is held to be the legal father of the resulting child even though he is not genetically related.

In vitro fertilization (IVF). A woman's ovum/eggs are surgically removed from her ovaries and fertilized with sperm in a laboratory. The resulting embryos are implanted into the intended mother's uterus. If the child is born into a marriage, the married couple are the child's parents, regardless of whether they are genetically related to the child. Adults who may have donated either their eggs or sperm as part of this procedure typically have no rights or responsibilities with respect to the child conceived from their eggs/sperm.

With artificial insemination and in vitro fertilization, the "legal parents" with full rights and responsibilities are fairly easy to identify. However, when a second woman is involved as a surrogate, identifying the child's legal parents can get tricky. Surrogacy will be discussed in the next chapter.

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18: Surrogacy and Parentage of Children

There are many reasons why a person might turn to surrogacy to become a parent. Sometimes the intended mother is unable to conceive due to infertility, is unable to carry a child due to hysterectomy, or is unable to safely carry a child to term due to a medical condition. Same sex male couples desiring a child also may seek a surrogate, especially if one of them wishes to be biologically related to the child. Surrogacy typically involves a contract between the surrogate and the intended parent(s), in which the surrogate agrees to relinquish any and all parental rights and obligations to the intended parent(s) after the child is born.

Definition: Terms Relating to Surrogacy

Genetic mother/father: The person who supplies the egg or the sperm for the conception of a child. A genetic mother may also be the gestational mother (who becomes pregnant) or an egg donor who does not become pregnant. The genetic mother and/or father may also become the child's legal parent(s).

Gestational mother: The woman who becomes pregnant and carries the child to term. The gestational mother might also be the child's intended and/or legal parent.

Intended parent: a person whom the parties involved in the child's conception and/or birth originally intended to be the child's legal parent with full parental rights and responsibilities. The intended parent may or may not be genetically related to the child.

Gestational surrogate: A woman who is not genetically related to the child becomes pregnant through IVF and carries the child to term and intends to relinquish parental rights and responsibilities. The egg and sperm through which the child is conceived may be genetically related to either, both, or neither of the intended parents.

Traditional/Genetic surrogate: A woman who is artificially inseminated resulting in the fertilization of her egg, becomes pregnant and carries the child to term, and intends to relinquish parental rights and responsibilities. The surrogate is genetically related to the conceived child. The intended father may or may not be genetically related to the child.

There is very little consistency among state laws regarding the enforceability of surrogacy contracts in the event the surrogate refuses to relinquish her parental rights. A few states ban or even criminalize all types of surrogacy contracts. Others allow and enforce surrogacy contracts and restrict the amount and type of compensation that can be paid to the surrogate. Other states allow surrogacy contracts and strictly regulate the surrogacy process, including requiring medical and psychological screening, home studies, and other procedural requirements. Still other states have no laws or court decisions regarding the matter. Although the Uniform Law Commission has drafted portions of the Uniform Parentage Act to cover surrogacy agreements (See [Appendix A](#)), not all states have enacted it.

Courts that have grappled with the issue of who should be the legal mother of a child conceived through surrogacy have generally considered the following factors: (1) who is biologically related to the child; (2) who gave birth to the child; and (3) who was intended to be the child's permanent, legal parent. Which of these factors is determinative has varied.

✓ Case in Point: *Johnson v. Calvert*, 5 Cal 4th 84, 851 P.2d 776 (1993).

Synopsis

This case involved a gestational surrogacy, in which the egg and sperm of the intended parents, Mark and Crispina Calvert, were combined using IVF and implanted in the uterus of the surrogate, Anna Johnson. The child was thus genetically related to both intended parents (the Calverts) and not at all genetically related to the surrogate (Johnson). After Johnson became pregnant and before the baby was born, both Johnson and Crispina Calvert filed separate legal actions to be declared the child's legal mother. The lower courts determined that the Calverts were the child's legal parents and that, as a "genetic stranger" to the child, Johnson was not the child's legal mother.

Excerpts

Following are excerpts from the opinion affirming the Court of Appeals' determination and stating that the question of who the child's legal mother is should be based on which woman was intended to be the mother (citations and references to other authorities within the opinion are omitted).

In this case we address several of the legal questions raised by recent advances in reproductive technology [w]hen, pursuant to a surrogacy agreement, [an embryo resulting from the sperm and egg] of a husband and wife is implanted in the uterus of another woman, who carries the resulting fetus to term and gives birth to a child not genetically related to her We conclude that the husband and wife are the child's natural parents, and that this result does not offend the state or federal Constitution or public policy.

Crispina was forced to undergo a hysterectomy in 1984. Her ovaries remained capable of producing eggs, however, and ... Mark, Crispina, and Anna signed a contract providing that an embryo created by the sperm of Mark and the egg of Crispina would be implanted in Anna and the child born would be taken into Mark and Crispina's home "as their child." Anna agreed she would relinquish "all parental rights" to the child in favor of Mark and Crispina. In return, Mark and Crispina would pay Anna \$10,000 in a series of installments, the last to be paid six weeks after the child's birth.

The child was born on September 19, 1990, and blood samples were obtained from both Anna and the child for analysis. The blood test results excluded Anna as the genetic mother. [T]he parties stipulated that Mark and Crispina were the child's genetic parents.

Anna, of course, predicates her claim of maternity on the fact that she gave birth to the child. The Calverts contend that Crispina's genetic relationship to the child establishes that she is his mother.

Because two women each have presented acceptable proof of maternity, we do not believe this case can be decided without enquiring into the parties' intentions as manifested in the surrogacy agreement. Mark and Crispina are a couple who desired to have a child of their own genes but are physically unable to do so without the help of reproductive technology. They affirmatively intended the birth of the child, and took the steps necessary to effect in vitro fertilization. But for their acted-on intention, the child would not exist. Anna agreed to facilitate the procreation of Mark's and Crispina's child. The parties' aim was to bring Mark's and Crispina's child into the world, not for Mark and Crispina to donate a zygote to Anna. Crispina from the outset intended to be the child's mother. Although the gestative function Anna performed was necessary to bring about the child's birth, it is safe to say that Anna would not have been given the opportunity to gestate or deliver the child had she, prior to implantation of the zygote, manifested her own intent to be the child's mother. No reason appears why Anna's later change of heart should vitiate the determination that Crispina is the child's natural mother.

We conclude that ... she who intended to procreate the child-that is, she who intended to bring about the birth of a child that she intended to raise as her own-is the natural mother under California law.

Anna urges that surrogacy contracts violate several social policies. Relying on her contention that she is the child's legal, natural mother, she cites the public policy ... prohibiting the payment for consent to the adoption of a child. She argues further that the policies underlying the adoption laws of this state are violated by the surrogacy contract because it in effect constitutes a pre-birth waiver of her parental rights.

We disagree. ... The parties voluntarily agreed to participate in in vitro fertilization and related medical procedures before the child was conceived; at the time when Anna entered into the contract, therefore, she was not vulnerable to financial inducements to part with her own expected offspring. As discussed above, Anna was not the genetic mother of the child. The payments to Anna under the contract were meant to compensate her for her services in gestating the fetus and undergoing labor, rather than for giving up "parental" rights to the child. Payments were due both during the pregnancy and after the child's birth. We are, accordingly, unpersuaded that the contract used in this case violates ... public policies.

It has been suggested that gestational surrogacy may run afoul of prohibitions on involuntary servitude. Involuntary servitude has been recognized in cases of criminal punishment for refusal to work. We see no potential for that evil in the contract at issue here, and extrinsic evidence of coercion or duress is utterly lacking.

Finally, Anna and some commentators have expressed concern that surrogacy contracts tend to exploit or dehumanize women, especially women of lower economic status. Anna's objections center around the psychological harm she asserts may result from the gestator's relinquishing the child to whom she has given birth. Some have also cautioned that the practice of surrogacy may encourage society to view children as commodities, subject to trade at their parents' will.

We are all too aware that the proper forum for resolution of this issue is the Legislature, where empirical data, largely lacking from this record, can be studied and rules of general applicability developed. However, in light of our responsibility to decide this case, we have considered as best we can its possible consequences.

We are unpersuaded that gestational surrogacy arrangements are so likely to cause the untoward results Anna cites as to demand their invalidation on public policy grounds. Although common sense suggests that women of lesser means serve as surrogate mothers more often than wealthy women, there has been no proof that surrogacy contracts exploit poor women to any greater degree than an economic necessity, in general, exploits them by inducing them to accept lower-paid or otherwise undesirable employment. We are likewise unpersuaded by the claim that surrogacy will foster the attitude that children are mere commodities; no evidence is offered to support it. The limited data available seem to reflect an absence of significant adverse effects of surrogacy on all participants.

The argument that a woman cannot knowingly and intelligently agree to gestate and deliver a baby for intending parents carries overtones of the reasoning that for centuries prevented women from attaining equal economic rights and professional status under the law. To resurrect this view is both to foreclose a personal and economic choice on the part of the surrogate mother and to deny intending parents what may be their only means of procreating a child of their own genes. Certainly, in the present case, it cannot seriously be argued that Anna, a licensed vocational nurse who had done well in school and who had previously borne a child, lacked the intellectual wherewithal or life experience necessary to make an informed decision to enter into the surrogacy contract.

Essentially, the *Johnson* Court determined that the crucial factor was the **intent** of the parties at the time they entered into the surrogacy contract – the woman who was the intended mother would be the legal mother. A later case declined to use intent as the determining factor, instead using **genetics** to determine the identity of the child's legal parents:

✓ Case in Point: *Belsito v. Clark*, 644 N.E.2d 760 (Ohio C.P. 1994).

Synopsis

This case involved a gestational surrogacy, in which the egg and sperm of the intended parents, Anthony and Shelly Belsito, were combined using IVF and implanted in the uterus of the surrogate, Carol Clark (Shelly's younger sister). The child was thus genetically related to both intended parents (the Belsitos). After Clark became pregnant and before the baby was born, the Belsitos filed a legal action to be declared the child's legal parents, without the requirement that they adopt the child being carried by Clark; the child otherwise would have been treated as the non-marital child of Anthony Belsito and Clark under Ohio law.

Excerpts

Following are excerpts from the opinion that the determination of who is the child's legal parents is based on who provided the genetics (the egg and sperm) of the child (citations and references to other authorities within the opinion are omitted)

... Clark is the gestational surrogate, and the genetic makeup of the child she carries has been determined by the egg and the sperm of Shelly Belsito and Anthony Belsito. The court is of the opinion that the law requires that, because Shelly Belsito and Anthony Belsito provided the child with its genetics, they must be designated as the legal and natural parents.

Since plaintiffs, Anthony Belsito and Shelly Belsito, have alleged that they are the natural parents and not subject to the adoption laws of this state, the analysis of the law must be confined to the question of what constitutes or identifies a "natural parent."

While various terms are used to identify a natural parent, a review of case law leads to the conclusion that "natural parent" refers to the child and parent being of the same blood or related by blood.

In *Johnson v. Calvert*, the facts are very similar to this case The court in *Johnson* looked for the intent to procreate and to raise the child, in order to identify the natural mother. Since the genetic mother in *Johnson* intended to procreate, she was the natural parent. The *Johnson* court discarded both genetics and birth as the primary means of identifying the natural maternal parent and replaced both with a test that involves the intent of the parties.

Intent can be difficult to prove. Even when the parties have a written agreement, disagreements as to intent can arise. In addition, in certain fact patterns when intent is clear, the *Johnson* test of intent to procreate and raise the child may bring about unacceptable results. As an example, who is the natural parent if both a nongenetic-providing surrogate and the female genetic provider agree that they both intend to procreate and raise the child? It is apparent that the *Johnson* test presents problems when applied.

The first area of conflict is the surrender of parental rights by agreement. It has long been recognized that, as a matter of public policy, the state will not enforce or encourage private agreements or contracts to give up parental rights. Through the intent to procreate, the Johnson case allows the nongenetic carrier/surrogate to be designated as the natural mother. The possibility of recognition as a parent means that a potential right is implicit in any agreement or contract to act as a gestational surrogate. A surrogate who chooses not to be the natural parent forfeits her right to be considered the natural and legal parent. Because a fee is often involved in a surrogacy service, that assent amounts to selling a parental right and is in contradiction to the public policy against private contracts to surrender parental rights.

The second area of conflict involves several aspects of the underlying public policy of adoption law. Adoption laws of Ohio have long required that a relinquishing natural mother be given an unpressured opportunity before a disinterested magistrate to surrender her parental rights. Considering the substantial rights involved, the possible financial pressures, and the value our society places on procreation, the need for such procedures is evident.

Due to the surrogate's similarity to an adopting parent, the same concerns that brought about the foregoing adoption procedure and public policy exist in surrogacy births in which the surrogate retains the child. The Johnson court's formulation of the intent-to-procreate test does not address those underlying concerns. It does not allow for the unpressured surrender of potential parental rights, nor does it provide a means to review and ensure the suitability of the gestational surrogate or her spouse as parents. In addition, because it is based on a private agreement or intent that has not been sanctioned by a court proceeding, it raises the question of future legal challenges and thus undermines the stability of the child-parent relationship. The Johnson intent formulation ignores those concerns and relies on the whims of private intent and agreement. It is, in effect, a private adoption process that is readily subject to all the defects and pressures of such a process.

The final objection this court has to the Johnson intent-to-procreate test is its failure to fully recognize the genetic provider as having the right to choose or to consent. By subordinating the consent of the genetic-providing individual to the intent to procreate of the surrogate who intends to keep and raise the child, the Johnson court has deemphasized what should be considered a basic right. The procreation of a child, that is, the replication of the unique genes of an individual, should occur only with the consent of that individual. The decision to allow the implantation of another's egg and sperm with the understanding that the surrogate will raise the resulting child also involves the surrendering of parental rights. The consent to procreation and the surrender of the right to raise a child of one's own genes must be considered the surrender of basic rights.

As has been stated, there is abundant precedent for using the genetics test to identify a natural parent. For the best interest of the child and society, there are strong arguments to recognize the genetic parent as the natural parent. The genetic parent can guide the child from experience through the strengths and weaknesses of a common ancestry of genetic traits. Because that test has served so well, it should remain the primary test for determining the natural parent, or parents, in nongenetic-providing surrogacy cases.

The test to identify the natural parents should be, "Who are the genetic parents?" When dealing with a nongenetic-providing surrogate, such a rule minimizes or avoids the question of the surrogate selling her right to be determined the natural parent. Since she has not contributed to the genetics of the child, and the genetic parent or parents have not waived their rights, she cannot be determined the natural parent. She cannot sell a right she does not have. In addition, given the relative certainty of DNA blood testing, such a foundation or test for parental identity would be simpler to apply and more certain in results than a Johnson-type intent test.

In conclusion, under Ohio law, when a child is delivered by a gestational surrogate who has been impregnated through the process of in vitro fertilization, the natural parents of the child shall be identified by a determination as to which individuals have provided the genetic imprint for that child. If the individuals who have been identified as the genetic parents have not relinquished or waived their rights to assume the legal status of natural parents, they shall be considered the natural and legal parents of that child.

The first surrogacy case to gain national attention was *In the Matter of Baby M.*, a case out of New Jersey. That case involved a "traditional" or "genetic" surrogacy, in which the surrogate mother was genetically related to the child. Although the court granted legal and physical custody to the intended parents (with visitation for the surrogate), that determination was **based on the child's best interest** and not on the surrogacy agreement, which the court deemed invalid and unenforceable.

✓ Case in Point: *In the Matter of Baby M.*, 109 N.J. 396, 537 A. 2d 1227 (1988)

Synopsis

This case involved a traditional surrogacy, in which the surrogate, Mary Beth Whitehead, was artificially inseminated with the sperm of the intended father, William Stern. As a result, the surrogate, Mary Beth, was genetically related to the child. William Stern's wife, Elizabeth, had Multiple Sclerosis which made pregnancy a serious health risk. William Stern and Mary Beth entered into a contract under which Mary Beth and her husband Richard Whitehead (who was also a party to the contract), agreed that Mary Beth would become pregnant, carry the child to term, and then Mary Beth and Richard would undertake all steps necessary to terminate their parental rights so that Elizabeth Stern could adopt the baby. Although Elizabeth was not a party to the contract, the contract gave her sole custody of the baby in the event of William's death.

Excerpts

Following are excerpts from the opinion determining that the surrogacy contract was invalid and unenforceable (citations and references to other authorities within the opinion are omitted)

One of the surrogacy contract's basic purposes, to achieve the adoption of a child through private placement, though permitted in New Jersey "is very much disfavored." Its use of money for this purpose, and we have no doubt whatsoever that the money is being paid to obtain an adoption and not, as the Sterns argue, for the personal services of Mary Beth Whitehead is illegal and perhaps criminal. In addition to the inducement of money, there is the coercion of contract: the natural mother's irrevocable agreement, prior to birth, even prior to conception, to surrender the child to the adoptive couple. Such an agreement is totally unenforceable in private placement adoption. Even where the adoption is through an approved agency, the formal agreement to surrender occurs only after birth and then, by regulation, only after the birth mother has been offered counseling. Integral to these invalid provisions of the surrogacy contract is the related agreement, equally invalid, on the part of the natural mother to cooperate with, and not to contest, proceedings to terminate her parental rights, as well as her contractual concession, in aid of the adoption, that the child's best interests would be served by awarding custody to the natural father and his wife all of this before she has even conceived, and, in some cases, before she has the slightest idea of what the natural father and adoptive mother are like.

The foregoing provisions not only directly conflict with New Jersey statutes but also offend long-established State policies. These critical terms, which are at the heart of the contract, are invalid and unenforceable; the conclusion therefore follows, without more, that the entire contract is unenforceable.

Mrs. Whitehead, shortly after the child's birth, had attempted to revoke her consent and surrender by refusing, after the Sterns had allowed her to have the child "just for one week," to return Baby M to them. The trial court's award of specific performance therefore reflects its view that the consent to surrender the child was irrevocable. We accept the trial court's construction of the contract; indeed it appears quite clear that this was the parties' intent. Such a provision, however, making irrevocable the natural mother's consent to surrender custody of her child in a private placement adoption, clearly conflicts with New Jersey law.

The surrogacy contract's invalidity, resulting from its direct conflict with the above statutory provisions, is further underlined when its goals and means are measured against New Jersey's public policy. The contract's basic premise, that the natural parents can decide in advance of birth which one is to have custody of the child, bears no relationship to the settled law that the child's best interests shall determine custody.

The surrogacy contract guarantees the permanent separation of the child from one of its natural parents. Our policy, however, has long been that to the extent possible, children should remain with and be brought up by both of their natural parents. ... This is not simply some theoretical ideal that in practice has no meaning. The impact of failure to follow that policy is nowhere better shown than in the results of this surrogacy contract. A child, instead of starting off its life with as much peace and security as possible, finds itself immediately in a tug-of-war between contending mother and father.

The surrogacy contract violates the policy of this State that the rights of natural parents are equal concerning their child, the father's right no greater than the mother's. ... The whole purpose and effect of the surrogacy contract was to give the father the exclusive right to the child by destroying the rights of the mother.

Under the contract, the natural mother is irrevocably committed before she knows the strength of her bond with her child. She never makes a totally voluntary, informed decision, for quite clearly any decision prior to the baby's birth is, in the most

important sense, uninformed, and any decision after that, compelled by a pre-existing contractual commitment, the threat of a lawsuit, and the inducement of a \$10,000 payment, is less than totally voluntary. Her interests are of little concern to those who controlled this transaction.

Although the interest of the natural father and adoptive mother is certainly the predominant interest, realistically, the only interest served, even if they are left with less than what public policy requires. They know little about the natural mother, her genetic makeup, and her psychological and medical history. Moreover, not even a superficial attempt is made to determine their awareness of their responsibilities as parents.

Worst of all, however, is the contract's total disregard for the best interests of the child. There is not the slightest suggestion that any inquiry will be made at any time to determine the fitness of the Sterns as custodial parents, of Mrs. Stern as an adoptive parent, their superiority to Mrs. Whitehead, or the effect on the child of not living with her natural mother.

This is the sale of a child, or, at the very least, the sale of a mother's right to her child, the only mitigating factor being that one of the purchasers is the father. Almost every evil that prompted the prohibition on the payment of money in connection with adoptions exists here.

The point is made that Mrs. Whitehead agreed to the surrogacy arrangement, supposedly fully understanding the consequences. Putting aside the issue of how compelling her need for money may have been, and how significant her understanding of the consequences, we suggest that her consent is irrelevant. There are, in a civilized society, some things that money cannot buy. In America, we decided long ago that merely because conduct purchased by money was "voluntary" did not mean that it was good or beyond regulation and prohibition. ... There are, in short, values that society deems more important than granting to wealth whatever it can buy, be it labor, love, or life. Whether this principle recommends prohibition of surrogacy, which presumably sometimes results in great satisfaction to all of the parties, is not for us to say. We note here only that, under existing law, the fact that Mrs. Whitehead "agreed" to the arrangement is not dispositive.

Think About It ...

1. Do you agree with the concerns raised in the *Baby M* case regarding surrogacy contracts?
2. Which "factor" do you think should be most important, based on what you read in the *Johnson* and *Belsito* cases?

Surrogacy in Wisconsin

In *Rosecky v. Schissel*, 2013 WI 66, 349 Wis. 2d 84, 833 N.W.2d 634, the Wisconsin Supreme Court ruled that surrogacy contracts are valid and enforceable unless enforcement would be contrary to the best interests of the child. However, provisions requiring the surrogate to terminate her parental rights are not enforceable if the surrogate later refuses to consent to termination of parental rights. Because the contract in this case contained a severability clause, the remainder of the contract regarding the child's custody and placement could still be enforced if those terms are consistent with the child's best interest. The case contains an overview of the history of surrogacy in Wisconsin and is definitely worth reading. (See [Appendix B](#)) for excerpts from the majority opinion)

18: Surrogacy and Parentage of Children is shared under a [CC BY 4.0](#) license and was authored, remixed, and/or curated by Beth R. Pless, J.D. (Northeast Wisconsin Technical College).

19: Paternity

Although the rights of children and their parents with respect to one another are no longer based on whether the child was born during a marriage, legal proceedings remain necessary to establish rights and obligations between children and their unmarried fathers. Though there are some federal laws impacting paternity, the process itself varies between states.

Definition: Terms Relating to Paternity

Paternity proceedings: The court proceedings used to identify the child's father and enter orders regarding child custody, placement, and support are referred to as paternity proceedings (also known as legitimization proceedings, in some states)

Genetic/biological father: The man who supplies the sperm for the conception of a child. The development of increasingly sophisticated scientific testing has significantly enhanced the ability to determine the identity of the genetic/biological father while excluding others as genetic/biological fathers.

Putative father: The man alleged to be the biological father, but not yet medically or legally declared as the father. Typically, this is based on evidence that the man had sexual intercourse with the birth mother during a presumptive conceptive period, based on the child's birth date and development at the time of birth.

Acknowledged father: A man who has formally declared himself the father by signing an acknowledgment of paternity. Such acknowledgment may have limited effectiveness if the child was born to a mother married to a different man.

Intended father: A man who has taken affirmative steps to be recognized as the father. This term is often used to distinguish legal proceedings that are initiated by the man, as opposed to the child's birth mother or the state. This difference is reflected primarily in the process used/the evidence gathered to determine he is the father.

Presumptive father: A man who is presumed to be the child's father unless/until he is medically or legally declared not to be the father. This term is used when the birth mother is married at the time of the child's conception or birth and applies to the birth mother's husband.

Equitable father: A man who is not the biological father but has a close relationship with the child, encouraged by the equitable father and the biological mother. In states that recognize this relationship, the equitable father may receive the same custody rights and have child support obligations similar to a biological father. This often happens in divorce proceedings where a child may have a close relationship with a stepparent.

A man's adjudication as a child's father has many impacts on the child's legal status, the child's rights, and the father's rights and obligations. These impacts were discussed in [Chapter 17](#).

Federal Law and Paternity/Non-Marital Children

As you learned in [Chapter 2](#), the United States Constitution and several Federal laws apply to non-marital children and their fathers. For example, the status as a non-marital child is a quasi-suspect class that requires state laws treating marital and non-marital children differently to pass the intermediate scrutiny test. Additionally, several Federal laws have been enacted requiring states to assist in locating, identifying, and adjudicating fathers; these laws benefit both fathers and mothers in many respects. Here are some of the [Federal requirements](#):

- States must have a simple civil process for voluntarily acknowledging paternity through documents signed by both parties and notarized, which has the same effect as an adjudication of paternity. Materials must be provided to hospitals and other agencies to facilitate the process, and the state must provide training regarding the process
- States must permit fathers, as well as mothers, to initiate a paternity action.
- States must provide a father registry allowing fathers to register as putative fathers, and allowing mothers and the State to inquire as to whether a man has registered as a putative father
- State IV-D agencies must assist with establishing paternity unless the case involves
 - Conception by incest or forcible rape
 - A child for whom a legal adoption is already pending
 - Circumstances rendering the establishment of paternity contrary to the child's best interest

- State IV-D agencies must assist parties with obtaining legally and medically acceptable genetic tests at reasonable cost; or free of cost if the agency orders the testing, or for recipients of government aid.

Methods to Establish Paternity

There are 4 ways to establish paternity: (1) presumptively, (2) voluntarily, (3) involuntarily, and (4) equitably. State requirements, processes, and legal forms relating to each of these methods vary; this chapter will focus on Wisconsin.

Presumptive Paternity

As mentioned in [Chapter 17](#), if a child is born or conceived during a marriage, the husband is presumed to be the father. In Wisconsin, courts often will not order genetic testing that could rebut this presumption absent a determination that overcoming the marital presumption would not be harmful to the child's best interest. This issue often comes up when the married couple is divorcing and the father wishes to claim that another man is the biological father of the child(ren) so that he can avoid paying child support. Wisconsin's marital presumption applies when:

- The father and the birth mother are or have been married to each other and the child is conceived or born during the marriage and before the granting of a decree of legal separation, annulment or divorce between the parties. **OR**
- The father and the birth mother get married after the child is born, and they had sexual intercourse during the period of time within which the child was conceived and no other man has been adjudicated to be the father or presumed to be the father of the child.
- Note: the time of conception is presumed to be 240-300 days before the child's birth date.

Voluntary Paternity

Both parents can acknowledge a child's paternity through a form signed by both of them in front of a notary, which is then filed with the state Registrar's office of Vital Records. For parents who marry after the child is born, the form is referred to as an "Acknowledgement of Marital Child." For parents who remain unmarried, the form is referred to a "Voluntary Acknowledgement of Paternity." Once the form is signed and filed, the man is presumed to be the child's father and remains the child's father unless and until the presumption is overcome.

Involuntary (Contested) Paternity

When a paternity is contested, there are two options for establishing paternity through genetic testing:

- **Administrative paternity:** In Wisconsin, if the mother and the putative father are both at least 18 years old and there is no other presumption of paternity, the county child support agency can issue administrative subpoenas requiring the mother and alleged father to submit to genetic testing. If the test results show that the man is not excluded as the father and that the statistical probability of paternity is 99% or higher, the man is conclusively determined to be the father.
- **Court adjudication of paternity:** In Wisconsin, a paternity action can be filed by the mother, the alleged father, the child (between the ages of 18 and 19), or the State. Also, the birth mother's husband, as well as a man who previously acknowledged paternity, can use these proceedings to refute paternity. Parties may request the court to order genetic testing. These procedures are described later in this chapter.

Equitable Paternity

In some states, either the mother or the alleged father can be estopped from denying a child's paternity when to prevent damage or injury to the child.

Definition: Paternity by Estoppel

Paternity by estoppel : An equitable doctrine prohibiting an adult from contesting a child's paternity when the adult's voluntary conduct with respect to a child's paternity was justifiably relied upon by the other adult and/or the child.

Paternity by estoppel might occur when the child's birth mother told the alleged father that he was the father of the child and subsequently did not object to him taking responsibility for the child and developing a parental relationship with the child over a period of time. It may also occur when the alleged father was aware that he was not the child's biological father, yet voluntarily took responsibility for the child and developed a parental relationship with the child over a period of time.

More information regarding paternity in Wisconsin:

- [Your Guide to Legal Fatherhood, DCF-P-DWSC15445 \(wisconsin.gov\)](#)
- [Methods for Establishing Paternity in Wisconsin \(page 1\)](#)

Wisconsin Paternity Procedure

A child born to a married couple is presumed, by law, to be the child of both spouses. Paternity issues generally arise when an unmarried woman has a child. Depending on the circumstances, a paternity action may be filed in court with paternity decided by a judge, though Wisconsin law allows for paternity to be established using certain procedures that do not require going to court.

Acknowledgment

If unmarried parents marry after their child is born, the parents may establish paternity by signing a form, referred to as an “acknowledgment of a marital child.” The parents must sign the form before a notary and then submit the form to the state registrar’s office of vital records, along with the parties’ marriage records. Local child support agencies can assist parents with the form. Upon receiving the signed form, the state registrar will add the man’s name to the child’s birth record.

If both the child’s mother and the male are at least 18 years of age and believe the male is the child’s father, then the male and mother may establish paternity by signing a statement acknowledging paternity. The statement, referred to as the “voluntary acknowledgment of paternity” form, is commonly provided by a hospital or midwife after a child’s birth, though the form may be signed at any time after a child is born. The parents must sign the form before a notary and submit the form to the state registrar’s office of Vital Records to add the male’s name to the child’s birth record. Again, local child support agencies may assist with this form. State law presumes that a male is a child’s father if he and the mother have acknowledged paternity and if no other male is presumed to be the father due to marriage.

Administrative Determination Based on Genetic Test Results

Paternity may be established based on genetic tests performed pursuant to a local child support agency’s administrative subpoena power. Specifically, under this method, genetic test results may constitute a conclusive determination of paternity if all of the following conditions apply:

- Both the child’s mother and the male are over 18 years of age.
- A county child support agency required genetic tests be performed using its subpoena power.
- The test results show that the male is not excluded as the father and that the statistical probability of the male’s parentage is 99 percent or higher.
- No other male is presumed to be the father under legal presumptions of paternity related to marriage or acknowledgment.

If a county child support agency receives genetic test results and the above requirements are satisfied, the agency must notify the mother and male of the results and other information, including the right to object. If the mother or male timely object, the agency must commence a paternity action on behalf of the state. If neither the mother nor the male object timely, the agency must file a report with the state registrar to add the man’s name to the child’s birth record, which creates a conclusive determination of paternity and has the same effect as a judgment of paternity. Subsequently, a court action may be filed to address the issues of legal custody, physical placement, or child support.

Court Ruling in a Paternity Action

Wisconsin law also allows for paternity to be established by a court in a paternity case, up until a child turns 19. Several persons are eligible to commence a paternity action under Wisconsin law, including the child, the child’s mother, a man alleging to be the child’s father, or a child support agency on behalf of the state. In addition, the husband of the mother, who is presumed to be the child’s father, or a man legally acknowledged as the child’s father at birth, may bring an action to refute paternity. If a man is named as the possible father in a petition for paternity and does not agree, or, if a man states that he is the father of a child and the mother does not agree, a court will make a ruling about paternity.

A paternity action is commenced by filing a summons, notice, and petition for paternity with the clerk of court for the county in which the child or the alleged father resides. The person filing the action must generally serve the filed documents on the other parent or alleged parent within 90 days of filing the action. The alleged father has a right to counsel in the proceeding. A guardian ad litem (GAL) is appointed for a minor parent and may be appointed for the child in some circumstances.

Paternity court proceedings are closed to the public and generally involve three stages: the first appearance; the pretrial hearing; and the trial. Paternity can be acknowledged at any of these stages. Generally, the alleged father may admit paternity, deny paternity, or admit paternity subject to confirming genetic tests.

At the first appearance, the court must inform the parties of certain information, including the rights and obligations created by a paternity judgment, the right to request genetic tests, and the existence of various defenses to paternity, such as sterility at the time of conception, or lack of intercourse, or another man having intercourse with the mother during the preconception period.

At the pretrial hearing, the court must evaluate the probability of determining paternity at trial. At this stage, witnesses and other evidence may be presented, as described below. The court may, at the conclusion of the evidence, make a recommendation to the parties regarding the paternity action, including dismissal or settlement. If no settlement is reached at the pretrial stage, a paternity trial is held in two parts: first, to determine paternity; and second, if paternity is established, to determine child support, legal custody, periods of physical placement, and any related issues, if necessary.

Genetic tests are a common form of evidence used in a court action to determine paternity, though other types of evidence of paternity are permitted. Wisconsin law generally requires a court to order genetic tests, unless certain exceptions apply. If the results of genetic testing show that the alleged father is not excluded as a possible father of the child and that the statistical probability of the alleged father's parentage is 99 percent or higher, the alleged father is rebuttably presumed to be the child's father.

After a settlement by the parties or upon conclusion of a paternity trial, the court enters a judgment of paternity. The judgment contains an adjudication of the child's paternity, an order requiring payment of child support, an order for the child's legal custody and physical placement, an order as to which parent may claim the tax exemption for the child, and orders relating to the payment of birth expenses and costs and fees of the action, including GAL fees and genetic testing fees.([ib_paternity_ao_2021_02_26 - wisconsin.gov](#))

Once the trial is completed, the court enters a judgment of paternity. The judgment contains an adjudication of the child's paternity, an order requiring either parent to pay child support, an order for the child's legal custody and physical placement, an order regarding which parent will have the right to claim the tax exemption for the child, and orders relating to the payment of birth expenses and all related costs and fees of the action, including GAL fees and genetic testing fees.

Paternity Under the Uniform Parentage Act

Voluntary Acknowledgement of Parentage

The Uniform Parentage Act (UPA) provides procedures for voluntary acknowledgment of parentage by the child's birth mother and any other person seeking to establish a parent-child relationship, regardless of that person's gender. (See [Appendix C -- Uniform Parentage Act Article 3](#)). The UPA is worded in such a way that it can easily be applied to same-sex relationships, eliminating the need for adoption procedures to create the parent-child relationship.

Proceeding to Adjudicate Parentage

The UPA also provides procedures for court adjudication of parentage for individuals wishing to claim or dispute parentage based on genetic testing, presumed parentage, acknowledged parentage, and parentage by estoppel (called De facto parentage under the act.). The hearing and adjudication procedures are similar to procedures existing in many states (See [Appendix C -- Uniform Parentage Act Article 6](#)). Again, the UPA is worded in such a way that it can easily be applied to persons of any gender.

Parentage through Assisted Reproduction

As you saw in [Chapter 17](#), children conceived through assisted reproduction not involving sexual intercourse can result in unique challenges to courts that are requested to determine parentage, particularly in the absence of a valid and enforceable surrogacy agreement. The UPA addresses this scenario as well, by providing a person other than the birth mother an opportunity to establish parentage of the child conceived through assisted reproduction through signed written consent. The UPA also limits the ability to dispute parentage for spouses (regardless of gender) of birth mothers who conceived through assisted reproduction, if the parties were married at the time of the conception or at the time of the birth. (See [Appendix C -- Uniform Parentage Act Article 7](#)).

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20: Adoption

Around 5 million people in the United States are adopted; approximately 115,353 adoptions took place in 2019, including private placements, stepparent adoptions, and adoptions from foster care, with another roughly 114,000 children currently in foster care awaiting adoption. ([Adoption.com](https://adoption.com)).

Definition: Adoption

Adoption: The legal process by which one person (the adoptive parent) becomes the legal parent of another person (the adoptee).

With adoption, the parent-child relationship is a permanent relationship (as opposed to **foster care, which is a temporary parent-child relationship**). State and Federal law treats adoptive parents and children the same as biological parents and children, conferring the same rights, obligations, and legal status on parents and children (See [Chapter 17](#)). There are several different types of adoption, and the process varies by state and by country.

Types of Adoptions

Typically, minor children are adopted; however, many states also allow for the adoption of adults. Most often, the purpose of adult adoption is to provide for inheritance or other rights for the adult adoptee.

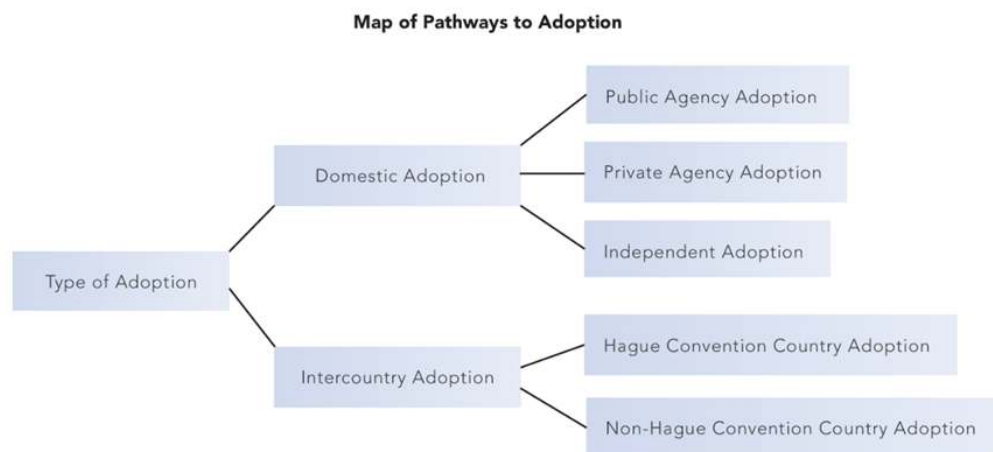


Figure 20.1: Map of Pathways to Adoption ([Exploring the Pathways to Adoption](#))

Definition: Domestic Adoption

Domestic Adoption: All parties (including the child) reside within the United States

There are many different types of domestic adoption:

- **Private agency infant adoption:** the birth parent(s) make an adoption plan for their child through a licensed adoption agency. The agency maintains legal custody of the baby and the baby is physically placed with the identified adoptive parent(s) with an approved adoption home study.
 - **Closed agency adoption:** Records are sealed and the identity of the biological and adoptive parents are kept confidential except in relatively rare circumstances.
 - **Open agency adoption:** The biological parent maintains certain kinds of initial and/or ongoing contact with the adoptee, whose adoptive parent(s) were often selected by the biological parent.
- **Independent infant adoption:** the birth parent(s) selects the adoptive parents through a source other than an adoption agency. A licensed adoption agency must still be involved in the independent adoption process to complete the adoption home study,

license the home, monitor placement, and provide/offer counseling and services to birth parents and prospective adoptive parents.

- **Public agency adoption:** the adoptive parent(s) adopt a child who is currently in the foster care system and is unable to be reunited with their birth parent(s). Essentially, the temporary parent-child relationship created in the foster care system becomes a permanent parent-child relationship.
- **Relative adoption:** the birth parent and the adoptive parent(s) are related by blood or marriage. Relatives who may adopt include parents, grandparents, or other persons related to one of the birth parents. Typically, relative adoptions are independent adoptions.
- **Step-parent adoption:** the spouse of the child's biological parent adopts the child. Most commonly, stepparent adoption occurs when the child's other biological parent is deceased. Stepparent adoption can also occur if the other biological parent's rights have been involuntarily or voluntarily terminated, though this circumstance is less common. Similar to relative adoptions, stepparent adoptions are independent adoptions.
- **Second-parent adoption: a non-marital partner of the child's biological parent adopts the child.** The only difference between step-parent and second-parent adoption is that the two adoptive parents are not married to one another. Not all states allow second-parent adoptions; however, many states allow a single unmarried person to adopt unilaterally.
- **Tribal adoption:** the child is eligible to register with a Native American Tribe. This type of adoption is subject to special rules and procedures under the Indian Child Welfare Act. Essentially, adoptive preference is given to the child's extended family, other members of the child's tribe, or other tribal families.

Definition: International/intercountry Adoption

International/Intercountry Adoption: Person(s) from the United States adopt a child who resides outside of the United States.

Each country has its own rules and procedures that must be followed before the child can be adopted. In the United States, the Department of State is the designated Central Authority for the Hague Convention, and the Office of Children's Issues in the department's Bureau of Consular Affairs is responsible for executing the day-to-day functions under the Convention. U.S. Citizenship and Immigration Services (USCIS), an agency within the U.S. Department of Homeland Security, also plays a significant role. In many states, a licensed adoption agency in the state must also complete an adoption home study.

According to the U.S. Department of State, there have been 284,088 international adoptions from 1999 to 2023; in 2023, 1,275 children were adopted into the US, and 24 children were adopted from the United States into Austria, Canada, Ireland, the Netherlands, Norway and Switzerland. ([FY 2023 Annual Report on Intercountry Adoption](#))

Requirements and Restrictions on Adoptions

Adoptive Parents

As with legal custody and physical placement in the context of divorce/annulment and paternity, the overriding factor in adoption is the **best interest of the child**. However, the factors that are considered when determining what is in the child's best interest in the context of adoption differ in significant ways. With respect to the adoptive parents, courts may consider:

- **Age:** most states require adoptive parents to be adults, and frown upon large age gaps between adoptive parents and adoptee children. In Wisconsin, because adoptive parents must first be qualified as foster parents, adoptive parents must be at least 21 years old.
- **Health:** in most states, while general health is an important factor, a disability that does not interfere with raising a child will not render an adoptive parent unfit. Wisconsin statutes specifically provide that a person's deafness, blindness, or other physical disability. Adoptive parents' mental and emotional health are also important factors.
- **Marital status:** some states prefer adoptive parents to be married. Wisconsin allows married or single persons to adopt. Married persons must jointly adopt, unless the adoption is a stepparent adoption.
- **Economic status:** Adoptive parents must demonstrate financial stability and means to meet the needs of the adoptive child
- **Home environment:** A home study by a licensed agency will be required to ensure, as much as possible, that the child will be entering a stable, loving home where the child will be nurtured to their best potential. The home should be free from criminal or other illegal activities, as well as what some states describe as "conspicuously unorthodox or immoral lifestyles." Although

outright bans on adoptions by gay or lesbian persons are no longer enforceable, agencies and judges sometimes use their discretion with respect to what is in the child's best interest to disfavor gay and lesbian adoptive parents.

- **Race:** Although race can be a factor, especially with Native American children, pursuant to the federal Multiethnic Placement Act, as well as state statutes, no otherwise qualified person can be declared unfit because of his or her race, color, ancestry or national origin.
- **Religion:** in most states, including Wisconsin, the birth parent(s) can request that the adoptive parents be the same religion as the birth parent(s), if practicable. In Wisconsin, adoption cannot be denied based on their religious belief in the use of spiritual means through prayer for healing.

Adoptees

As mentioned previously, in most states, including Wisconsin, adults can be adopted by other adults.

With respect to minor children, Wisconsin statutes declare children living in Wisconsin to be eligible for adoption if:

- Both of the child's parents are deceased.
- The parental rights of both of the child's parents with respect to the child have been terminated.
- The parental rights of one of the child's parents with respect to the child have been terminated and the child's other parent is deceased.
- The person filing the petition for adoption is the spouse of the child's parent with whom the child and the child's parent reside and either of the following applies:
 - The child's other parent is deceased.
 - The parental rights of the child's other parent with respect to the child have been terminated.

Advertising

People wanting to initiate a private, independent adoption, and who don't have prospective adoptive parents or children in their families may resort to advertising. Many states do not allow any advertising for adoptions, whereas other states allow advertising only by certain persons. Advertising for adoption is highly regulated so that the parties' conduct does not raise concerns about "baby selling."

In Wisconsin, only licensed agencies and individuals who have been recommended by a licensed agency as fit adoptive parents may advertise for the purpose of finding a child to adopt. Birth parents are not allowed to advertise their intent to place their child for adoption. [Section 48.825](#), Wis. Stats. Advertising includes traditional methods such as billboards and radio/television communications, as well as posts on social media or other uses of the internet. Violations of Wisconsin's rules regarding adoption advertisements can result in fines and imprisonment.

Other potential resources for finding children available to adopt or adoptive parents include friends, relatives, and coworkers; online directories and support groups; churches and other places of worship; or even doctors and attorneys.

Payments

Similar to advertising, nearly every state restricts payments between adoptive parents and the birth parent(s). The types of expenses for which payment/reimbursement to the biological mother is most commonly allowed by states include:

- Maternity-related medical and hospital costs
- Temporary living expenses of the mother during pregnancy
- Counseling fees
- Attorney and legal fees, including guardian ad litem fees
- Travel costs, meals, and lodging when necessary for court appearances or accessing services
- Foster care for the child, when necessary

In Wisconsin, proposed adoptive parents may pay the actual cost of any of the following:

- Pre-adoptive and post-adoptive counseling for a birth parent of the child or an alleged or presumed father of the child.
- Maternity clothes for the child's birth mother, in an amount not to exceed \$300.
- Local transportation expenses of a birth parent of the child that are related to the pregnancy or adoption.
- Services provided by a licensed child welfare agency in connection with the adoption.
- Medical and hospital care received by the child's birth mother in connection with the pregnancy or birth of the child. Medical and hospital care does not include lost wages or living expenses.

- Medical and hospital care received by the child.
- Legal and other services received by a birth parent of the child, an alleged or presumed father of the child, or the child in connection with the adoption.
- Living expenses of the child's birth mother, in an amount not to exceed \$5,000 if payment of the expenses by the proposed adoptive parents or a person acting on their behalf is necessary to protect the health and welfare of the birth mother or the fetus.
- Any court-ordered investigation is based on a fee schedule established by the state.
- If the adoption is completed, the cost of any care provided for the child by foster parents other than the adoptive parents
- Birthing classes.
- A gift to the child's birth mother from the proposed adoptive parents, of no greater than \$100 in value.

Payments can be made directly to the birth parent(s) or to the provider of goods or services listed above. All other payments are prohibited. [Section 48.913](#), Wis. Stats.

Adoption Procedure in General

Adopting a child is neither easy nor inexpensive. States have created elaborate and complex procedures designed to protect the best interests of children, the rights of biological parents, and the interests of adoptive parents.

In general, the process consists of two steps, although both steps may be accomplished in a single proceeding. In the first step, the legal rights and obligations of the natural parents are terminated, either voluntarily or involuntarily. The second step is the formal adoption which creates the legal bond with the new adoptive parents, giving the new adoptive parents the legal rights and obligations that formerly existed between the child and the birth parents. Though the procedures and safeguards vary by state and by type of adoption, the following steps are typically required:

1. **Termination of the parental rights of the birth parent(s).** Termination can be voluntary or involuntary (the birth parent is found by a court to be unfit). Notice to the birth father or putative/alleged birth father is critical. Many states require a search of the putative father registry if the birth father has not been identified.
2. **Petition by the adoptive parent(s).** Adoptions require court action to fully and finally create the new parent-child relationship, even if the adoptive parent is a spouse or relative of the birth parent.
3. **Certification and Training for adoptive parents.** Depending on the type of adoption, adoptive parents might be required to be certified as foster parents prior to being given an adoptive placement. Many states, including Wisconsin, require first-time adoptive parents to complete pre-adoption training that covers
 - Adoption and its impact on parenting and family dynamics
 - The issues for a child in an adoptive placement
 - Loss and grief for the adopted child and the adoptive family
 - Attachment issues in adoptive placements
 - Support and resources for adopted children and adoptive families, Cultural sensitivity in adoption
 - Effects of abuse and neglect in adoption, including sexual abuse,e Legal issues relating to adoption
 - Issues of children being adopted from an institutionalized care setting
 - Educational issues in adoption
 - Childhood developmental stages
 - Trauma issues related to adoption
4. **Home study.** Licensed agencies perform extensive investigations into the adoptive family to ensure the child will be provided with a stable, safe, and healthy home. Home studies generally include interviews and investigations regarding
 - Personal and family background about the adoptive parent's family growing up, including discipline, conflict resolution, and other life experiences
 - Other significant people, such as spouses/life partners, co-workers, friends, and extended family
 - Motivation to adopt, including feelings about infertility if this was an issue
 - Parenting and integration of the child into the family, including expectations for the child(ren) growing up
 - Family dynamics and environment including conditions of the home; interactions with siblings and others in the home; evidence of drug/alcohol abuse; evidence of spousal/domestic or child abuse/neglect
 - Physical, medical, and health history
 - Education, employment, job stresses, insurance coverage, and childcare plans

- Reference letters of recommendation from three non-relatives. Some agencies also ask for recommendations from family members, school staff, etc.
 - Criminal background checks, including child protective services checks
5. **Recommendations/consent of any required parties.** This may include guardians ad litem for the adoptee child, for the minor birth parent(s), the state or other person currently having custody over the adoptee child, and the agency.
6. **Finalization of the adoption.** In addition to granting the adoption, the court may order changes to the adoptee child's name or birth certificate.

Needless to say, the assistance of trained legal professionals is recommended at every step of the process.

Challenges to the Adoption Order

Although the grounds for challenging an adoption order and the time allowed for doing so are limited, legal battles sometimes occur. Most relate to a lack of proper notice or violation of procedures.

Some of the most infamous cases involving challenges to adoption orders involved claims that the birth father did not receive proper and adequate notice before his parental rights were terminated. These cases resulted in intense public reaction and what one judge referred to as "journalistic terrorism."

✓ Case in Point: *In re Clausen*, 422 Mich. 648, 502 N.W.2d 649 (1993). Also known as the "Baby Jessica Case"

Synopsis

This case involved an interstate battle between Baby Jessica's birth parents, Cara and Daniel Schmidt (who lived in Iowa), and her custodial parents, Roberta and Jan DeBoer (who lived in Michigan). Shortly after giving birth in Iowa, Cara relinquished her parental rights; Cara had named Scott Seefeldt as the baby's father and he also relinquished his parental rights. Two weeks later, the DeBoers filed a petition in Iowa to adopt the child. That same day, Cara and Scott's parental rights were terminated and the DeBoers were granted custody; the DeBoers then returned to Michigan. Nine days after the adoption petition was filed and approximately one month after the baby was born, Cara initiated a court action to revoke her relinquishment of her parental rights, disclosing that she had lied when she named Scott as the father and instead claiming Daniel Schmidt was the father. Daniel intervened in the action and nearly 9 months later it was determined that Daniel was indeed the biological father and that his parental rights had not been properly terminated. As a result, the DeBoers' adoption petition was denied.

A series of court actions in Iowa and Michigan occurred over the next two years; during this time the baby remained with the DeBoers. More than 2 years after the baby was born, the DeBoers were ordered to transfer the custody of the baby to her birth parents in Iowa.

Excerpts

Following are excerpts from the dissenting opinion which demonstrate the difficulty the courts face in balancing parental rights and the best interest of the child in these types of cases (citations and references to other authorities within the opinion are omitted)

I would agree with the majority's analysis if the DeBoers had gone to Iowa, purchased a carload of hay from Cara Clausen, and then found themselves in litigation in Iowa with Daniel Schmidt, who also claimed an interest in the hay. It could then properly be said that the DeBoers "must be taken to have known" that, rightly or wrongly, the Iowa courts might rule against them, and they should, as gracefully as possible, accept an adverse decision of the Iowa courts. Michigan would then have had no interest in the outcome, and would routinely enforce a decree of the Iowa courts against the DeBoers.

But this is not a lawsuit concerning the ownership, the legal title, to a bale of hay. This is not the usual A v B lawsuit; Schmidts v DeBoers, or, if you prefer, DeBoers v Schmidts.

There is a C, the child, "a feeling, vulnerable, and [about to be] sorely put upon little human being": Baby Girl Clausen, also known as Jessica DeBoer, who will now be told, ... that she is not Jessie, that the DeBoers are not Mommy and Daddy, that her name is Anna Lee Schmidt, and that the Schmidts, whom she has never met, are Mommy and Daddy. This child might, indeed, as the circuit judge essentially concluded, have difficulty trying that on for size at two and one-half years, she might, indeed, suffer an identity crisis. The judge said:

We had different degrees of testimony from the experts. All the way from permanent, serious damage she would never recover from, down to the child, who would recover in time. However, every expert testified that there would be serious traumatic injury to the child at this time.

The majority's analysis, that the DeBoers should have known when they filed their petition for adoption in Iowa that they might lose, overlooks that the child did not choose to litigate in Iowa, over four hundred miles from her only home, the legal and factual issues that would decide whether her world would be destroyed, and know that she might lose.

...

The majority's analysis focusing on the contest between the Schmidts and the DeBoers for possession of the child misfocuses on whether biological parents or persons acting as parents have the better "legal right," better legal title, not to a carload of hay, but to a child. The focus of the Parental Kidnapping Protection Act is not on the interests of the contestants' parents or persons acting as parents but, rather, on the best interests of the child.

The superior claim of the child to be heard in this case is grounded not just in law, but in basic human morality. Adults like the Schmidts and the DeBoers make choices in their lives, and society holds them responsible for their choices. When adults are forced to bear the consequences of their choices, however disastrous, at least their character and personality have been fully formed, and that character can provide the foundation for recovery, the will to go on.

The character and personality of a child two and one-half years old is just beginning to take shape. To visit the consequences of adult choices upon the child during the formative years of her life, and to force her to sort out the competing emotional needs of the Schmidts and DeBoers, is unnecessarily harsh and without legal justification. The PKPA does not require this result.

The PKPA was enacted to protect the child. This Court, by ignoring obvious issues concerning the welfare of the child and by focusing exclusively on the concerns of competing adults, as if this were a dispute about the vesting of contingent remainders, reduces the PKPA to a robot of legal formality with results that Congress did not intend.

Essentially, the court in Baby Jessica stated that factors regarding the best interest of the child should have outweighed the parental rights of the birth parents in that case. The following year, another court reached the opposite conclusion.

✓ Case in Point: *In re Petition of John & Jane Doe to Adopt Baby Boy Janikova*, 159 Ill. 2d 347, 638 N.E.2d 181 (1994). Also known as the "Baby Richard Case"

Synopsis

This case involved an interstate battle over "Baby Richard" that lasted over 3 years. Daniella Janikova became pregnant in June 1990. She was not married to the child's biological father Otakar Kirchner. During the first 8 months of the pregnancy, Kirchner paid all of Daniella's expenses. Shortly before the child was born, Kirchner returned to his native country of Czechoslovakia to care for his gravely ill grandmother. During this time, Kirchner's aunt told Daniella that he had resumed a romantic relationship with another woman. Daniella cut ties with Kirchner and refused contact with him when he returned, other than to falsely tell him the child had died. She instead consented to the DeBoers' adoption of the baby.

57 days after the child was born, Kirchner discovered that the baby was alive and had been placed for adoption. At that point, Kirchner filed a court action to contest the adoption. The trial court ruled against Kirchner, terminating his parental rights. The Supreme Court reversed the trial court and vacated the adoption order.

A series of court actions in Iowa and Michigan occurred over the next two years; during this time the baby remained with the DeBoers. More than 2 years after the baby was born, the DeBoers were ordered to transfer the custody of the baby to her birth parents in Iowa.

Excerpts

Following are excerpts from the supplemental opinion of the Justice who authored the majority opinion, written in response to the intense public criticism of the case. (citations and references to other authorities within the opinion are omitted)

On Thursday, June 16, 1994, this court reversed a decision by a divided appellate court which had affirmed certain adoption proceedings in the circuit court of Cook County. Our reversal was the result of the failure of the courts below to correctly apply Illinois law in terminating the natural father's parental rights. This cause is now before the court on petitions for rehearing filed by the adoptive parents and the guardian ad litem for the child.

I have been a judge for over 23 years. In that time, I have seldom before worked on a case that involved the spread of so much misinformation, nor one which dealt with as straightforward an application of law to fact.

As was made clear in the majority opinion, a conspiracy was undertaken to deny the natural father any knowledge of his son's existence. It began when the biological mother, 8½ months pregnant, was misinformed that the father, her fiancé, had left her for another woman. She left their shared home and, at the encouragement of a social worker, agreed to give up her child. The social worker called her personal attorney, who contacted the adoptive mother (that attorney's friend and employee). At the behest of the adoptive parents and their attorney, the mother gave birth at a different hospital than she and the father had planned to avoid the father's intervention; the mother surrendered the baby to strangers four days after his birth; and then falsely told the father that the child had died. All of this occurred in the space of less than three weeks.

The father did not believe the mother, and he immediately began an intensive and persistent search and inquiry to learn the truth and locate the child. On the 57th day following the child's birth, the father learned of his son's existence and of the pending adoption. On that day, he hired a lawyer and contested the adoption of his son by strangers. One may reasonably ask, What more could he have done? What more should he have done? The answer is that he did all that he could and should do.

The majority opinion pointed out that the adoptive parents should have relinquished the baby at that time. That is to say, on the 57th day. Instead of that, however, they were able to procure an entirely erroneous ruling from a trial judge that allowed the adoption to go forward. The father's only remedy at that stage was a legal appeal which he took. He is not the cause of the delay in this case. It was the adoptive parents' decision to prolong this litigation through a long and ultimately fruitless appeal. Now, the view has been expressed that the passage of time warrants their retention of the child; that it would not be fair to the child to return him to his natural parents, now married to each other, after the adoptive parents have delayed justice past the child's third birthday.

If ... the best interests of the child is to be the determining factor in child custody cases, persons seeking babies to adopt might profitably frequent grocery stores and snatch babies from carts when the parent is looking the other way. Then, if custody proceedings can be delayed long enough, they can assert that they have a nicer home, a superior education, a better job or whatever, and that the best interests of the child are with the baby snatchers. Children of parents living in public housing or other conditions deemed less than affluent and children with single parents might be considered particularly fair game. The law, thankfully, is otherwise.

...

The best interest of the child standard is not to be denigrated. It is real. However, it is not triggered until it has been validly determined that the child is available for adoption. And, a child is not available for adoption until the rights of his natural parents have been properly terminated.

Columnist Bob Greene apparently does not care. Rather, columnist Greene has used this unfortunate controversy to stimulate readership and generate a series of syndicated newspaper columns in the Chicago Tribune and other papers that are both false and misleading. In so doing, he has wrongfully cried "fire" in a crowded theatre, and has needlessly alarmed other adoptive parents into ill-founded concerns that their own adoption proceedings may be in jeopardy. In support of his position, Greene has stirred up contempt against the Supreme Court as an institution, concluding one of his columns by referring to all of the Justices with the curse,

...

In support of his objective, Greene brings to bear the tools of the demagogue, namely, incomplete information, falsity, half-truths, character assassination and spurious argumentation. He has conducted a steady assault on my abilities as a judge, headlining one of his columns "The Sloppiness of Justice Heiple." Another was entitled "Supreme Injustice for a Little Boy." He has shown my picture in his columns with bylines reading, respectively, "Justice Heiple: Ruling takes boy from home," and "James D. Heiple: No justice for a child."

Make no mistake about it. These are acts of journalistic terrorism. These columns are designed to discredit me as a judge and the Supreme Court as a dispenser of justice by stirring up disrespect and hatred among the general population.

...

As for the child, age three, it is to be expected that there would be an initial shock, even a longing for a time in the absence of the persons whom he had viewed as parents. This trauma will be overcome, however, as it is every day across this land by children who suddenly find their parents separated by divorce or lost to them through death. It will not be an insurmountable

trauma for a three-year-old child to be returned, at last, to his natural parents who want to raise him as their own. It will work itself out in the fullness of time. As for the adoptive parents, they will have to live with their pain and the knowledge that they wrongfully deprived a father of his child past the child's third birthday. They and their lawyer brought it on themselves.

This much is clear. Adoptive parents who comply with the law may feel secure in their adoptions. Natural parents may feel secure in their right to raise their own children. If there is a tragedy in this case, as has been suggested, then that tragedy is the wrongful breakup of a natural family and the keeping of a child by strangers without rights. We must remember that the purpose of an adoption is to provide a home for a child, not a child for a home.

Think About It...

1. What factor do you think should prevail: the best interests of the child or the birth parent's parental rights? Should that answer depend on the relative "clean" or "dirty" hands of the birth mother, the birth father, and/or the adoptive parent(s)?
2. Both cases involved a birth mother who lied to (or about) the baby's biological father, presumably unbeknownst by the adoptive parents. Should there be a limit on the period of time potential birth fathers have to assert their rights under these circumstances?

Although adoption is complex and expensive, many resources exist to facilitate the process and provide information and support to all persons involved. Adoption is one of the actions affecting the family that results in a happy ending, especially for the child and the adoptive family. This practice specialty can be one of the most rewarding in the area of Family Law.

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21: Overview of Adoption in WI

Adopting a minor child in Wisconsin requires multiple steps, each of which is designed to ensure the protection of the rights of the birth mother, the actual/alleged birth father, the child, and the adoptive parents. The overriding factor is the best interest of the child, and the courts are assisted in protecting the child's best interest by guardians, guardians ad litem, and various agencies. Although adults can also be adoptees in Wisconsin (see [Chapter 882 of the Wisconsin Statutes](#)), this chapter focuses on minor child adoption.

Adoption Requirements

Child's Eligibility for Adoption

A child present within the state at the time an adoption petition is filed is eligible if **any one** of the following circumstances exists:

- Both of the child's parents are deceased
- The parental rights of both of the child's parents have been terminated
- The parental rights of one of the child's parents have been terminated and the other parent is deceased
- The person seeking to adopt the child is the spouse of the child's parent and the other parent is deceased or has had his/her parental rights terminated. ([Wisconsin Statute §48.81](#))

A Guardian ad Litem must be appointed for the minor child. ([Wisconsin Statute §48.235](#))

Who May Adopt

Adult residents of the State of Wisconsin may adopt a minor child. If the birth parent requests that the adoptive parent(s) be of the same religious faith as the birth parent, that request shall be granted when it is possible (although a person cannot be denied as an adoptive parent based on that person's "religious belief in the use of spiritual means through prayer for healing."). Both married adults and unmarried adults may adopt in Wisconsin, though the rules are different.

- Married adults
 - Both spouses can jointly petition for adoption, or,
 - If one of the spouses is already a parent of the adoptive child (as in a stepparent adoption), then only the spouse who is the stepparent would need to file a petition.
- Unmarried adults
 - An unmarried adult can also adopt a minor child unilaterally
 - **However**, two unmarried adults cannot jointly adopt a child; nor can the non-marital partner of a child's parent adopt his/her partner's child. (See *In the matter of the adoption of M.M.C.*, 2024 WI 18, 411 Wis. 2d 389, 5 N.W.3d 238)

An otherwise qualified person cannot be disqualified as an adoptive parent based on the person's physical disability, race, color, ancestry or national origin (unless the Indian Child Welfare Act applies). If the Indian Child Welfare Act applies, there is a preference for adoptive parents to be members of the child's extended family, other members of the child's tribe, or other Native American families. ([Wisconsin Statute §48.82](#))

Jurisdiction and Venue

As with other court proceedings, jurisdiction and the proper venue for adoption proceedings is determined by one of the following:

- The County in which the proposed adoptive parent resides
- The County in which the child resides
- The County in which a Termination of Parental Rights to the child was filed or granted

However, a Native American Tribe has exclusive jurisdiction over any Native American child who *resides or is domiciled on tribal reservation land*, or any Native American child who is a ward of the tribal court, pursuant to the Indian Child Welfare Act (ICWA). This means that pending adoption proceedings must be transferred to the Tribal Court if the transfer is requested by a parent, custodian, or another member of the child's tribe unless good cause exists to deny the transfer, or either birth parent objects to the transfer, or the Tribal Court declines the transfer. ([Wisconsin Statute §§48.83 and 48.028\(3\)\(b\)](#))

Birth Parents

Unless the adoption is a stepparent adoption, the parental rights of both birth parents must be terminated as part of an adoption. This can get tricky when the birth parents have never been married. In that case, the child's paternity must be established before any other proceedings can occur. Additionally, a Guardian ad Litem must be appointed to represent the best interest of each birth parent who is a minor or otherwise incompetent. ([Wisconsin Statute §48.235](#))

Adoption Requirements

Adoption procedures in Wisconsin differ depending on whether the Indian Child Welfare Act (ICWA) applies, and also depending on whether the adoptive parents are related to the child. In general, however, legal practitioners should be aware of the following requirements, found in [Sections 48.834 through 48.91, Wis. Stats.](#)

Paternity Must be Established

In Wisconsin, paternity can be established through any of the following:

- The marital presumption if the birth mother was married at the time of the baby's conception or birth
- Acknowledgement of paternity by the father
- Adjudication of paternity
- Conclusive determination through DNA testing

If paternity has not been established, the next step is to determine whether a Declaration of Paternal Interest has been filed by someone who might be the child's father. Typically, the court makes an inquiry to the Wisconsin Parental Interest Registry. The court must attempt to determine the identity of the child's father and provide him with the opportunity to assert his rights as the father.

Termination of Parental Rights of Non-Petitioning Birth Parent

If only one birth parent (typically the mother) petitions for voluntary termination of parental rights, the parental rights of the non-petitioning parent, whether that person's identity is known or unknown, must occur first. Again, efforts must be made to identify and locate the child's father before his parental rights can be terminated.

Adoptive Placement/Adoption Must be Approved

If the adoptive parents are not related to the child, they must file a Petition for Adoptive Placement; if at least one of the adoptive parents is related to the child by blood or as a stepparent, they can file a Petition for Minor Child Adoption (no waiting period or agency approval is necessary). The adoptive placement/final adoption must be approved prior to terminating the parental rights of a birth parent who petition for termination of parental rights; this is so that the birth parent knows that the adoptive placement/final adoption has been approved before consenting to termination of parental rights.

Typically, the petition by the adoptive parent is filed at the same time at least one of the birth parents files a Petition for Termination of Parental Rights. The court must hold hearings on these petitions within 30 days of the date on which they are filed unless the baby has not been born yet – the hearings cannot be held until after the baby has been born.

If the adoptive parents are not related to the child, they must be licensed as a foster home before adoptive placement can be granted. After the petitions are filed, the court will order an appropriate agency to conduct an investigation regarding adoptive placement. The agency must file its recommendations at least 5 days before the hearing on the petitions. Once the court approves the Petition for Adoptive Placement/Adoption, the child is immediately placed in the adoptive parent(s)' home (unless the child was previously placed in the adoptive home pursuant to the request of the birth and adoptive parents and the approval of the agency).

Termination of Parental Rights of Petitioning Birth Parent

The petitioning parent(s)' parental rights cannot be terminated until after the Petition for Adoptive Placement is granted. The birth mother is required to appear in court for the hearing and she can consent to the termination of her parental rights at any time after the child's birth. The birth father is not required to be in court to consent to the termination of his parental rights if he previously signed a consent that was notarized. During the hearing on the Petition for Termination of Parental Rights (TPR), the court will receive evidence regarding the reasons for termination and to ensure that the birth parents fully understand the impact of the termination. Evidence that the termination is not the result of fraud, undue coercion, mistake, or inadvertence should also be included. After parental rights are terminated, an appropriate agency is usually appointed as the child's guardian (unless at least one

adoptive is related to the child, in which case the final adoption is approved). The TPR becomes final 30 days after the order for TPR has been entered.

Adoptive Placement with Non-Relatives

If no adoptive parent is related to the child, the adoptive parent must wait until the child has been placed in the adoptive home for 6 months before filing the Petition for Minor Child Adoption. During this time, the appropriate agency is appointed as the child's guardian and continues its investigation and home study.

Petition for Minor Child Adoption by Non-Relative Adoptive Parent(s)

Once the child has been in the adoptive home for at least 6 months, the adoptive parent(s) can file a Petition for Minor Child Adoption. A hearing on the Petition must be held within 90 days after the Petition was filed. The agency must file its recommendation regarding the adoption at least 10 days before this hearing. If the Petition for Minor Child Adoption is approved, the court can also change the baby's name and the birth certificate if requested by the adoptive parents.

Adoption and the Indian Child Welfare Act (ICWA)

Although many of the procedures for non-ICWA adoptions are similar to ICWA adoptions, when the minor child is subject to ICWA, there are additional requirements and agencies involved. First, the Bureau of Indian Affairs, the child's Tribe, and a Tribal/Indian Custodian become involved. Additionally, ICWA includes placement preferences for the child that must be adhered to unless there is good cause to depart from that order of placement preference.

Paralegal Roles

When a client comes to the law office regarding an adoption, the paralegal's role is to support the supervising attorney in providing legal services and acting as a liaison between the client and the supervising attorney. Typical tasks include interviewing the client, requesting documents and other information from the client, and conducting a factual investigation regarding the identities of the child's birth parents. Legal research regarding paternity and potential ICWA procedures might also be warranted. In Wisconsin, most of the attorney involvement relates to the establishment of paternity and termination of parental rights. Once those steps have been completed, often most of the work is completed by the appropriate adoption agencies.

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22: Appendix A - Uniform Parentage Act Article 8

[PART] 1 - GENERAL REQUIREMENTS

SECTION 801. DEFINITIONS. In this [article]:

- (1) “Genetic surrogate” means a woman who is not an intended parent and who agrees to become pregnant through assisted reproduction using her own gamete, under a genetic surrogacy agreement as provided in this [article].
- (2) “Gestational surrogate” means a woman who is not an intended parent and who agrees to become pregnant through assisted reproduction using gametes that are not her own, under a gestational surrogacy agreement as provided in this [article].
- (3) “Surrogacy agreement” means an agreement between one or more intended parents and a woman who is not an intended parent in which the woman agrees to become pregnant through assisted reproduction and which provides that each intended parent is a parent of a child conceived under the agreement. Unless otherwise specified, the term refers to both a gestational surrogacy agreement and a genetic surrogacy agreement.

SECTION 802. ELIGIBILITY TO ENTER GESTATIONAL OR GENETIC SURROGACY AGREEMENT

(a) To execute an agreement to act as a gestational or genetic surrogate, a woman must:

- (1) have attained 21 years of age;
- (2) previously have given birth to at least one child;
- (3) complete a medical evaluation related to the surrogacy arrangement by a licensed medical doctor;
- (4) complete a mental-health consultation by a licensed mental-health professional; and
- (5) have independent legal representation of her choice throughout the surrogacy arrangement regarding the terms of the surrogacy agreement and the potential legal consequences of the agreement.

(b) To execute a surrogacy agreement, each intended parent, whether or not genetically related to the child, must:

- (1) have attained 21 years of age;
- (2) complete a medical evaluation related to the surrogacy arrangement by a licensed medical doctor;
- (3) complete a mental-health consultation by a licensed mental health professional; and
- (4) have independent legal representation of the intended parent’s choice throughout the surrogacy arrangement regarding the terms of the surrogacy agreement and the potential legal consequences of the agreement.

SECTION 803. REQUIREMENTS OF GESTATIONAL OR GENETIC SURROGACY AGREEMENT: PROCESS

A surrogacy agreement must be executed in compliance with the following rules:

- (1) At least one party must be a resident of this state or, if no party is a resident of this state, at least one medical evaluation or procedure or mental-health consultation under the agreement must occur in this state.
- (2) A surrogate and each intended parent must meet the requirements of Section 802.
- (3) Each intended parent, the surrogate, and the surrogate’s spouse, if any, must be parties to the agreement.
- (4) The agreement must be in a record signed by each party listed in paragraph (3).
- (5) The surrogate and each intended parent must acknowledge in a record receipt of a copy of the agreement.
- (6) The signature of each party to the agreement must be attested by a notarial officer or witnessed.
- (7) The surrogate and the intended parent or parents must have independent legal representation throughout the surrogacy arrangement regarding the terms of the surrogacy agreement and the potential legal consequences of the agreement, and each counsel must be identified in the surrogacy agreement.
- (8) The intended parent or parents must pay for independent legal representation for the surrogate.
- (9) The agreement must be executed before a medical procedure occurs related to the surrogacy agreement, other than the medical evaluation and mental health consultation required by Section 802.

SECTION 804. REQUIREMENTS OF GESTATIONAL OR GENETIC SURROGACY AGREEMENT: CONTENT

(a) A surrogacy agreement must comply with the following requirements:

- (1) A surrogate agrees to attempt to become pregnant by means of assisted reproduction.
- (2) Except as otherwise provided in Sections 811, 814, and 815, the surrogate and the surrogate's spouse or former spouse, if any, have no claim to parentage of a child conceived by assisted reproduction under the agreement.
- (3) The surrogate's spouse, if any, must acknowledge and agree to comply with the obligations imposed on the surrogate by the agreement.
- (4) Except as otherwise provided in Sections 811, 814, and 815, the intended parent or, if there are two intended parents, each one jointly and severally, immediately on birth will be the exclusive parent or parents of the child, regardless of number of children born or gender or mental or physical condition of each child.
- (5) Except as otherwise provided in Sections 811, 814, and 815, the intended parent or, if there are two intended parents, each parent jointly and severally, immediately on birth will assume responsibility for the financial support of the child, regardless of number of children born or gender or mental or physical condition of each child.
- (6) The agreement must include information disclosing how each intended parent will cover the surrogacy-related expenses of the surrogate and the medical expenses of the child. If health-care coverage is used to cover the medical expenses, the disclosure must include a summary of the health-care policy provisions related to coverage for surrogate pregnancy, including any possible liability of the surrogate, third-party-liability liens, other insurance coverage, and any notice requirement that could affect coverage or liability of the surrogate. Unless the agreement expressly provides otherwise, the review and disclosure do not constitute legal advice. If the extent of coverage is uncertain, a statement of that fact is sufficient to comply with this paragraph.
- (7) The agreement must permit the surrogate to make all health and welfare decisions regarding herself and her pregnancy. This [act] does not enlarge or diminish the surrogate's right to terminate her pregnancy.
- (8) The agreement must include information about each party's right under this [article] to terminate the surrogacy agreement.

(b) A surrogacy agreement may provide for:

- (1) payment of consideration and reasonable expenses; and
- (2) reimbursement of specific expenses if the agreement is terminated under this [article].

(c) A right created under a surrogacy agreement is not assignable and there is no third-party beneficiary of the agreement other than the child.

SECTION 805. SURROGACY AGREEMENT: EFFECT OF SUBSEQUENT CHANGE OF MARITAL STATUS

(a) Unless a surrogacy agreement expressly provides otherwise:

- (1) the marriage of a surrogate after the agreement is signed by all parties does not affect the validity of the agreement, her spouse's consent to the agreement is not required, and her spouse is not a presumed parent of a child conceived by assisted reproduction under the agreement; and
- (2) the [divorce, dissolution, annulment, declaration of invalidity, legal separation, or separate maintenance] of the surrogate after the agreement is signed by all parties does not affect the validity of the agreement.

(b) Unless a surrogacy agreement expressly provides otherwise:

- (1) the marriage of an intended parent after the agreement is signed by all parties does not affect the validity of a surrogacy agreement, the consent of the spouse of the intended parent is not required, and the spouse of the intended parent is not, based on the agreement, a parent of a child conceived by assisted reproduction under the agreement; and
- (2) the [divorce, dissolution, annulment, declaration of invalidity, legal separation, or separate maintenance] of an intended parent after the agreement is signed by all parties does not affect the validity of the agreement and, except as otherwise provided in Section 814, the intended parents are the parents of the child.

Legislative Note: A state should use its own terms for the proceedings identified in the bracketed language in subsections (a)(2) and (b)(2).

SECTION 806. INSPECTION OF DOCUMENTS

Unless the court orders otherwise, a petition and any other document related to a surrogacy agreement filed with the court under this [part] are not open to inspection by any individual other than the parties to the proceeding, a child conceived by assisted reproduction under the agreement, their attorneys, and [the relevant state agency]. A court may not authorize an individual to inspect a document related to the agreement, unless required by exigent circumstances. The individual seeking to inspect the document may be required to pay the expense of preparing a copy of the document to be inspected.]

Legislative Note: A state should review the state's open records law to determine if this section needs to be included or amended.

SECTION 807. EXCLUSIVE, CONTINUING JURISDICTION.

During the period after the execution of a surrogacy agreement until 90 days after the birth of a child conceived by assisted reproduction under the agreement, a court of this state conducting a proceeding under this [act] has exclusive, continuing jurisdiction over all matters arising out of the agreement. This section does not give the court jurisdiction over a child-custody or child-support proceeding if jurisdiction is not otherwise authorized by law of this state other than this [act].

[PART] 2 SPECIAL RULES FOR GESTATIONAL SURROGACY AGREEMENT

SECTION 808. TERMINATION OF GESTATIONAL SURROGACY AGREEMENT

(a) A party to a gestational surrogacy agreement may terminate the agreement, at any time before an embryo transfer, by giving notice of termination in a record to all other parties. If an embryo transfer does not result in a pregnancy, a party may terminate the agreement at any time before a subsequent embryo transfer.

(b) Unless a gestational surrogacy agreement provides otherwise, on termination of the agreement under subsection (a), the parties are released from the agreement, except that each intended parent remains responsible for expenses that are reimbursable under the agreement and incurred by the gestational surrogate through the date of termination.

(c) Except in a case involving fraud, neither a gestational surrogate nor the surrogate's spouse or former spouse, if any, is liable to the intended parent or parents for a penalty or liquidated damages, for terminating a gestational surrogacy agreement under this section.

SECTIONAL 809. PARENTAGE UNDER GESTATIONAL SURROGACY AGREEMENT

(a) Except as otherwise provided in subsection (c) or Section 810(b) or 812, on birth of a child conceived by assisted reproduction under a gestational surrogacy agreement, each intended parent is, by operation of law, a parent of the child.

(b) Except as otherwise provided in subsection (c) or Section 812, neither a gestational surrogate nor the surrogate's spouse or former spouse, if any, is a parent of the child.

(c) If a child is alleged to be a genetic child of the woman who agreed to be a gestational surrogate, the court shall order genetic testing of the child. If the child is a genetic child of the woman who agreed to be a gestational surrogate, parentage must be determined based on [Articles] 1 through 6.

(d) Except as otherwise provided in subsection (c) or Section 810(b) or 812, if, due to a clinical or laboratory error, a child conceived by assisted reproduction under a gestational surrogacy agreement is not genetically related to an intended parent or a donor who donated to the intended parent or parents, each intended parent, and not the gestational surrogate and the surrogate's spouse or former spouse, if any, is a parent of the child, subject to any other claim of parentage.

SECTION 810. GESTATIONAL SURROGACY AGREEMENT: PARENTAGE OF DECEASED INTENDED PARENT

(a) Section 809 applies to an intended parent even if the intended parent died during the period between the transfer of a gamete or embryo and the birth of the child.

(b) Except as otherwise provided in Section 812, an intended parent is not a parent of a child conceived by assisted reproduction under a gestational surrogacy agreement if the intended parent dies before the transfer of a gamete or embryo unless:

(1) the agreement provides otherwise; and

(2) the transfer of a gamete or embryo occurs not later than [36] months after the death of the intended parent or birth of the child occurs not later than [45] months after the death of the intended parent.

SECTION 811. GESTATIONAL SURROGACY AGREEMENT: ORDER OF PARENTAGE

(a) Except as otherwise provided in Sections 809(c) or 812, before, on, or after the birth of a child conceived by assisted reproduction under a gestational surrogacy agreement, a party to the agreement may commence a proceeding in the [appropriate court] for an order or judgment:

- (1) declaring that each intended parent is a parent of the child and ordering that parental rights and duties vest immediately on the birth of the child exclusively in each intended parent;
- (2) declaring that the gestational surrogate and the surrogate's spouse or former spouse, if any, are not the parents of the child;
- (3) designating the content of the birth record in accordance with [cite applicable law of this state other than this [act]] and directing the [state agency maintaining birth records] to designate each intended parent as a parent of the child;
- (4) to protect the privacy of the child and the parties, declaring that the court record is not open to inspection[except as authorized under Section 806];
- (5) if necessary, that the child be surrendered to the intended parent or parents; and
- (6) for other relief the court determines necessary and proper.

(b) The court may issue an order or judgment under subsection (a) before the birth of the child. The court shall stay enforcement of the order or judgment until the birth of the child.

(c) Neither this state nor the [state agency maintaining birth records] is a necessary party to a proceeding under subsection (a).

Legislative Note: A state should include the bracketed language in subsection (a)(4) if the state enacts Section 806.

SECTION 812. EFFECT OF GESTATIONAL SURROGACY AGREEMENT

(a) A gestational surrogacy agreement that complies with Sections 802, 803, and 804 is enforceable.

(b) If a child was conceived by assisted reproduction under a gestational surrogacy agreement that does not comply with Sections 802, 803, and 804, the court shall determine the rights and duties of the parties to the agreement consistent with the intent of the parties at the time of execution of the agreement. Each party to the agreement and any individual who at the time of the execution of the agreement was a spouse of a party to the agreement has standing to maintain a proceeding to adjudicate an issue related to the enforcement of the agreement.

(c) Except as expressly provided in a gestational surrogacy agreement or subsection (d) or (e), if the agreement is breached by the gestational surrogate or one or more intended parents, the non-breaching party is entitled to the remedies available at law or in equity.

(d) Specific performance is not a remedy available for breach by a gestational surrogate of a provision in the agreement that the gestational surrogate be impregnated, terminate or not terminate a pregnancy, or submit to medical procedures.

(e) Except as otherwise provided in subsection (d), if an intended parent is determined to be a parent of the child, specific performance is a remedy available for:

- (1) breach of the agreement by a gestational surrogate which prevents the intended parent from exercising immediately on birth of the child the full rights of parentage; or
- (2) breach by the intended parent which prevents the intended parent's acceptance, immediately on birth of the child conceived by assisted reproduction under the agreement, of the duties of parentage.

[PART] 3 SPECIAL RULES FOR GENETIC SURROGACY AGREEMENT

SECTION 813. REQUIREMENTS TO VALIDATE GENETIC SURROGACY AGREEMENT

(a) Except as otherwise provided in Section 816, to be enforceable, a genetic surrogacy agreement must be validated by the [designate court]. A proceeding to validate the agreement must be commenced before assisted reproduction related to the surrogacy agreement.

(b) The court shall issue an order validating a genetic surrogacy agreement if the court finds that:

- (1) Sections 802, 803, and 804 are satisfied; and
- (2) all parties entered into the agreement voluntarily and understand its terms.

(c) An individual who terminates under Section 814 a genetic surrogacy agreement shall file notice of the termination with the court. On receipt of the notice, the court shall vacate any order issued under subsection (b). An individual who does not notify the court of the termination of the agreement is subject to sanctions.

SECTION 814. TERMINATION OF GENETIC SURROGACY AGREEMENT

(a) A party to a genetic surrogacy agreement may terminate the agreement as follows:

(1) An intended parent who is a party to the agreement may terminate the agreement at any time before a gamete or embryo transfer by giving notice of termination in a record to all other parties. If a gamete or embryo transfer does not result in a pregnancy, a party may terminate the agreement at any time before a subsequent gamete or embryo transfer. The notice of termination must be attested by a notarial officer or witnessed.

(2) A genetic surrogate who is a party to the agreement may withdraw consent to the agreement any time before 72 hours after the birth of a child conceived by assisted reproduction under the agreement. To withdraw consent, the genetic surrogate must execute a notice of termination in a record stating the surrogate's intent to terminate the agreement. The notice of termination must be attested by a notarial officer or witnessed and be delivered to each intended parent any time before 72 hours after the birth of the child.

(b) On termination of the genetic surrogacy agreement under subsection (a), the parties are released from all obligations under the agreement except that each intended parent remains responsible for all expenses incurred by the surrogate through the date of termination which are reimbursable under the agreement. Unless the agreement provides otherwise, the surrogate is not entitled to any non-expense related compensation paid for serving as a surrogate.

(c) Except in a case involving fraud, neither a genetic surrogate nor the surrogate's spouse or former spouse, if any, is liable to the intended parent or parents for a penalty or liquidated damages, for terminating a genetic surrogacy agreement under this section.

SECTION 815. PARENTAGE UNDER VALIDATED GENETIC SURROGACY AGREEMENT

(a) Unless a genetic surrogate exercises the right under Section 814 to terminate a genetic surrogacy agreement, each intended parent is a parent of a child conceived by assisted reproduction under an agreement validated under Section 813.

(b) Unless a genetic surrogate exercises the right under Section 814 to terminate the genetic surrogacy agreement, on proof of a court order issued under Section 813 validating the agreement, the court shall make an order:

(1) declaring that each intended parent is a parent of a child conceived by assisted reproduction under the agreement and ordering that parental rights and duties vest exclusively in each intended parent;

(2) declaring that the genetic surrogate and the surrogate's spouse or former spouse, if any, are not parents of the child;

(3) designating the contents of the birth certificate in accordance with [cite to applicable law of the state other than this [act]] and directing the [state agency maintaining birth records] to designate each intended parent as a parent of the child;

(4) to protect the privacy of the child and the parties, declaring that the court record is not open to inspection[except as authorized under Section 806];

(5) if necessary, that the child be surrendered to the intended parent or parents; and

(6) for other relief the court determines necessary and proper.

(c) If a genetic surrogate terminates under Section 814(a)(2) a genetic surrogacy agreement, parentage of the child conceived by assisted reproduction under the agreement must be determined under [Articles] 1 through 6.

(d) If a child born to a genetic surrogate is alleged not to have been conceived by assisted reproduction, the court shall order genetic testing to determine the genetic parentage of the child. If the child was not conceived by assisted reproduction, parentage must be determined under [Articles] 1 through 6. Unless the genetic surrogacy agreement provides otherwise, if the child was not conceived by assisted reproduction the surrogate is not entitled to any non-expense related compensation paid for serving as a surrogate.

(e) Unless a genetic surrogate exercises the right under Section 814 to terminate the genetic surrogacy agreement, if an intended parent fails to file notice required under Section 814(a), the genetic surrogate or [the appropriate state agency] may file with the court, not later than 60 days after the birth of a child conceived by assisted reproduction under the agreement, notice that the child has been born to the genetic surrogate. Unless the genetic surrogate has properly exercised the right under Section 814 to withdraw

consent to the agreement, on proof of a court order issued under Section 813 validating the agreement, the court shall order that each intended parent is a parent of the child.

Legislative Note: A state should include the bracketed language in subsection (b)(4) if the state enacts Section 806.

SECTION 816. EFFECT OF NONVALIDATED GENETIC SURROGACY AGREEMENT

(a) A genetic surrogacy agreement, whether or not in a record, that is not validated under Section 813 is enforceable only to the extent provided in this section and Section 818.

(b) If all parties agree, a court may validate a genetic surrogacy agreement after assisted reproduction has occurred but before the birth of a child conceived by assisted reproduction under the agreement.

(c) If a child conceived by assisted reproduction under a genetic surrogacy agreement that is not validated under Section 813 is born and the genetic surrogate, consistent with Section 814(a)(2), withdraws her consent to the agreement before 72 hours after the birth of the child, the court shall adjudicate the parentage of the child under [Articles] 1 through 6.

(d) If a child conceived by assisted reproduction under a genetic surrogacy agreement that is not validated under Section 813 is born and a genetic surrogate does not withdraw her consent to the agreement, consistent with Section 814(a)(2), before 72 hours after the birth of the child, the genetic surrogate is not automatically a parent and the court shall adjudicate parentage of the child based on the best interest of the child, taking into account the factors in Section 613(a) and the intent of the parties at the time of the execution of the agreement.

(e) The parties to a genetic surrogacy agreement have standing to maintain a proceeding to adjudicate parentage under this section.

SECTION 817. GENETIC SURROGACY AGREEMENT: PARENTAGE OF DECEASED INTENDED PARENT

(a) Except as otherwise provided in Section 815 or 816, on birth of a child conceived by assisted reproduction under a genetic surrogacy agreement, each intended parent is, by operation of law, a parent of the child, notwithstanding the death of an intended parent during the period between the transfer of a gamete or embryo and the birth of the child.

(b) Except as otherwise provided in Section 815 or 816, an intended parent is not a parent of a child conceived by assisted reproduction under a genetic surrogacy agreement if the intended parent dies before the transfer of a gamete or embryo unless:

(1) the agreement provides otherwise; and

(2) the transfer of the gamete or embryo occurs not later than [36] months after the death of the intended parent, or birth of the child occurs not later than [45] months after the death of the intended parent.

SECTION 818. BREACH OF GENETIC SURROGACY AGREEMENT

(a) Subject to Section 814(b), if a genetic surrogacy agreement is breached by a genetic surrogate or one or more intended parents, the non-breaching party is entitled to the remedies available at law or in equity.

(b) Specific performance is not a remedy available for breach by a genetic surrogate of a requirement of a validated or non-validated genetic surrogacy agreement that the surrogate be impregnated, terminate or not terminate a pregnancy, or submit to medical procedures.

(c) Except as otherwise provided in subsection (b), specific performance is a remedy available for:

(1) breach of a validated genetic surrogacy agreement by a genetic surrogate of a requirement which prevents an intended parent from exercising the full rights of parentage 72 hours after the birth of the child; or

(2) breach by an intended parent which prevents the intended parent's acceptance of duties of parentage 72 hours after the birth of the child.]

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23: Appendix B - Rosecky v. Schissel

349 Wis.2d 84 833 N.W.2d 634 2013 WI 66

In re the Paternity of F.T.R.

David J. Rosecky, Petitioner–Appellant,

v.

Monica M. Schissel, Respondent–Respondent.

Supreme Court of Wisconsin.

Decided July 11, 2013.

ANNETTE KINGSLAND ZIEGLER, J.

¶ 1 This appeal is before the court on certification by the court of appeals, pursuant to Wis. Stat. § 809.61 (2009–10).¹ David and Marcia Rosecky (the Roseckys) entered into a Parentage Agreement (PA or the agreement) with Monica and Cory Schissel (the Schissels) whereby the parties agreed that Monica Schissel (Monica) would become pregnant and carry a child for the Roseckys. The agreement provided that “[the Roseckys] shall be the legal parents of [the] Child,” that the “Child’s best interests will be served by being in [the Roseckys’] legal custody and physical placement,” and that “[t]he parties will cooperate fully in any parentage proceedings to determine [the Roseckys] as [the][C]hild’s legal parents, ... including but not limited to termination of parental rights and adoption.” Monica became pregnant through artificial insemination using her egg and David Rosecky’s (David) sperm. On March 19, 2010, Monica gave birth to F.T.R. Shortly before F.T.R.’s birth, Monica informed the Roseckys she no longer wanted to give up her parental rights. She further sought custody and placement of F.T.R. David responded by seeking enforcement of the PA. The Columbia County Circuit Court, Judge Alan J. White, determined that the PA was not enforceable, and after a trial, awarded sole custody of F.T.R. to David, primary placement to David, and secondary placement to Monica. David appealed, seeking enforcement of the PA and sole custody and placement of F.T.R. The court of appeals certified to this court the question of “whether an agreement for the traditional surrogacy and adoption of a child is enforceable.”

¶ 2 We granted the court of appeals’ certification and now reverse the order of the circuit court.

¶ 3 Aside from the termination of parental rights provisions in the PA at issue, we conclude a PA is a valid, enforceable contract unless enforcement is contrary to the best interests of the child. While the traditional defenses to the enforcement of a contract could apply, none appear to render the entire PA in this case unenforceable.

¶ 4 We also conclude that the circuit court erroneously exercised its discretion by excluding the PA and rendering its custody and placement decision without consideration of the PA. We reverse the circuit court’s determination that the PA is unenforceable and remand for a hearing on custody and placement, wherein the terms of the PA are enforced unless enforcement is contrary to the best interests of F.T.R.

I. FACTUAL BACKGROUND

¶ 5 Marcia and Monica were good friends for many years, having met in grade school. Each participated in the other’s wedding. The Roseckys were godparents to the Schissels’ youngest daughter.

¶ 6 In 2004, and again in 2008, Marcia was diagnosed with leukemia. After receiving treatments, she is currently in good health and the doctors consider the leukemia “a nonissue.” However, her eggs are no longer viable and she is unable to have biological children.

¶ 7 In 2004, and again in 2008, Monica offered to act as a surrogate for the Roseckys. Monica testified that she wanted to help the Roseckys: “I was [Marcia’s] friend. I offered to do this.... I orchestrated this whole thing. This whole thing was my doing. I offered. I carried. I said I would do it.” In 2008, the Roseckys accepted Monica’s offer. The parties discussed using a donor egg, but decided to use Monica’s egg because they could be sure of Monica’s family history, there was a higher chance of having multiples using a donor egg, and Monica preferred to use her own egg. Marcia expressed concern that Monica would have trouble giving up her biological child, but Monica reassured Marcia that she would allow the Roseckys to raise the child.

¶ 8 The parties had extensive conversations about the legal ramifications of the surrogacy before Monica became pregnant. The parties discussed and agreed that Monica and the child would have no legal relationship, Monica would not have formal custody and placement of the child, Monica would see the child through informal social visits, and the Roseckys would raise the child. Both

parties retained counsel, and the attorneys reduced the agreement to writing. The parties negotiated terms in the agreement, and sent revised drafts back and forth. The parties acknowledge that the written agreement is an accurate reflection of the discussions they had before Monica became pregnant. Monica became pregnant in June 2009 through artificial insemination using her egg and David's sperm.

¶ 9 On November 7, 2009, the agreement was signed by David as the “father,” and Marcia as the “mother.” On November 17, 2009, the agreement was also signed by Monica as the “carrier,” and Cory Schissel (Cory) as the “husband.” The attorneys for both parties also signed the agreement.

¶ 10 Most importantly for this opinion, the PA contains the parties' agreement as to parentage, legal custody, and physical placement.²

¶ 11 Cory and Monica have five children together. Before Monica became pregnant with F.T.R., the Schissels did not intend to have any more children; to that end, Cory had a vasectomy.

¶ 12 Toward the end of the pregnancy, the parties had a falling out. It suffices to say that there were several events resulting in hurt feelings and lack of trust among the parties. In any event, shortly before F.T.R. was born, Monica reneged on the PA and refused to terminate her parental rights. On March 19, 2010, Monica gave birth to F.T.R. and allowed F.T.R. to go home with the Roseckys from the hospital.

II. PROCEDURAL POSTURE

¶ 13 Shortly after F.T.R. was born, the Columbia County Circuit Court appointed the Roseckys as the temporary guardians of F.T.R.³ On May 13, 2010, David filed a separate paternity action in the Waukesha County Circuit Court. On August 2, 2010, Judge Lee S. Dreyfus Jr. adjudicated David to be the father of F.T.R. and transferred the remaining issues to Columbia County to be joined with the existing guardianship case. On September 30, 2010, Monica moved the circuit court for increased custody and placement of F.T.R. David moved for specific performance of the PA, pointing to language in the PA that Monica had waived her right to custody and placement of F.T.R.

¶ 14 The circuit court scheduled two hearings: one to determine interim custody and placement and one to determine the enforceability of the PA. On November 18, 2010, the court held a hearing to determine custody and placement. After hearing testimony from Monica, David, and Marcia, the court determined that it was in F.T.R.'s best interests to maintain the status quo: primary custody and placement with David and two hours of placement per month with Monica.

¶ 15 The parties then briefed the enforceability of the PA. On February 8, 2011, the court held a hearing and determined that the PA was not enforceable. It entered an order to that effect on the same date. The court made several findings regarding the PA. First, it found that “[t]he contract, on its face is clear and unambiguous.” Second, the court rejected Monica's argument that the PA lacked consideration because she was already pregnant at the time the agreement was signed. Third, the court made additional findings about the PA:

....

There is no claim here by [Monica] that she did not understand the contract when she signed it. Indeed, to a great extent, it appears it was her idea to act as a surrogate in the first instance.

Had [Monica] gone through with the termination of her parental rights, this Court would have no problem upholding the agreement....

However, the court articulated the main issue as “whether the Court can, under these circumstances, force or require the mother to terminate her parental rights.” The court determined that it could not force or require Monica to terminate her parental rights because the requirements of Wis. Stat. § 48.41, governing voluntary consent to a termination of parental rights (TPR), were not met. In the same vein, the court also refused to enforce the custody and placement provisions of the PA. The court did not consider the severability clause of the PA.

¶ 16 On February 16, 2011, in anticipation of the custody and placement trial, the court ordered Dr. Beth B. Huebner to complete a custody study to evaluate F.T.R.'s best interests. See Wis. Stat. § 767.405(14). On February 18, 2011, the court entered an interim placement order giving David primary placement and Monica placement of F.T.R. for three hours every other Saturday.

¶ 17 On April 6, 2011, Dr. Huebner filed her report. Her ultimate recommendation was that David should have full custody and placement of F.T.R., and Monica should not have any placement. On April 25, 2011, F.T.R.'s guardian ad litem, Krista E. Miller,

filed her report, similarly concluding that David should have full custody and placement, and Monica should not have any placement.

¶ 18 On July 5 and 6, 2011, the court held a trial to determine F.T.R.'s best interests with regard to custody and placement under Wis. Stat. § 767.41. The court heard testimony from David, Marcia, Monica, Cory, Dr. Huebner, Dr. Kenneth H. Waldron (hired by the Roseckys to review Dr. Huebner's report), and Dr. Patrick T. Kane (hired by the Schissels to recommend possible steps to develop a healthy attachment between a parent and a child).

¶ 19 Dr. Huebner testified that it was in F.T.R.'s best interests to have full custody and placement with the Roseckys. She testified that F.T.R. was attached to Marcia, and to displace that attachment could have disastrous consequences. She testified that placement with Monica would be harmful to F.T.R. because of Monica's desire to be his mother and to replace Marcia, which would be confusing for F.T.R. Monica admitted that she referred to herself as “Mom” in interactions with F.T.R. and that she was “seeking to have placement that would allow me to act as his mother.” Dr. Huebner testified that the relationship between the Roseckys and the Schissels was essentially dead; a fact to which all of the parties agreed. She testified that allowing Monica to have placement in the current situation—which Dr. Huebner characterized as “beyond high conflict” even though the parties did not swear or yell at each other—would have a negative effect on F.T.R.

¶ 20 Dr. Waldron testified that Dr. Huebner did use the appropriate methodology in gathering data, making findings, and incorporating social science research in her report. Further, Dr. Waldron testified about disrupted secure detachment—where a young child is separated from a caregiver to whom he or she has formed an attachment—and the consequences thereof, including depression, anxiety, mental health problems, behavioral problems, delinquency, trouble maintaining long-term friendships and relationships, and increased thoughts of suicide.

¶ 21 Dr. Kane testified that a child can form more than one attachment, that a new attachment can be formed through a series of increased contacts, but that he did not interview the parties and did not have recommendations specific to this case. Dr. Kane's discussion assumed that the contact was in the best interests of the child. Dr. Kane also discussed that a hostile relationship between parents has negative effects on children, and that Monica's desire to be F.T.R.'s mother could result in anxiety and confusion for F.T.R.

¶ 22 Marcia, David, Monica, and Cory all testified about the tense relationship between the families. From the Roseckys' perspective, Monica offered to be a surrogate so the Roseckys could start a family, Monica was not abiding by the terms of the agreement, and the Roseckys agreed to use Monica's egg only after she reassured the Roseckys she could allow them to raise the child. From the Schissels' perspective, Monica was being shut out and was not able to visit F.T.R. through social interactions as she had imagined. A precise retelling of the testimony at trial is not necessary for the legal analysis, but it suffices to say that the parties testified about many instances of failed communication, hurt feelings, and tense interactions.

....

¶ 24 On August 25, 2011, the circuit court awarded sole custody and primary placement of F.T.R. to David and secondary placement to Monica. The court awarded Monica six hours of placement every other weekend until F.T.R. turned two (March 2012), and at that time, Monica was awarded an overnight stay from Friday evening until Saturday evening every other weekend. The court did not consider the PA in any way, but instead relied solely on Wis. Stat. § 767.41 to determine custody and placement. The court reasoned that under Wis. Stat. § 767.41(4)(b), both families were entitled to placement unless “the court finds that physical placement with a parent would endanger the child's physical, mental or emotional health.” By granting placement with Monica, the court rejected the expert testimony and the guardian ad litem's opinion that the tension between the parties and the separation from attachment figures could endanger F.T.R.'s mental or emotional health: “The possibility that difficulties may occur and that allowing the Schissels to play a role in the child's life is a risk. But risks are a part of life.” The court rejected Dr. Huebner's opinion that this case was “beyond high conflict,” because high conflict cases are those in which “the parties simply can't resist the temptation to do anything and everything to subvert, attack, demean and literally try to destroy the child's relationship with the other parent.” The court noted that the contact between the families was generally civil, that it hoped “cordial transitions can be accomplished and that cordiality may develop into friendly transitions,” and that F.T.R. would have the benefit of five half siblings if Monica received placement.

....

IV. ANALYSIS

¶ 30 Aside from the termination of parental rights provisions in the PA at issue, we conclude a PA is a valid, enforceable contract unless enforcement is contrary to the best interests of the child. While the traditional defenses to the enforcement of a contract could apply, none appear to render the entire PA in this case unenforceable.⁴

¶ 31 We also conclude that the circuit court erroneously exercised its discretion by excluding the PA and rendering its custody and placement decision without consideration of the PA. We reverse the circuit court's determination that the PA is unenforceable and remand for a hearing on custody and placement, wherein the terms of the PA are enforced unless enforcement is contrary to the best interests of F.T.R.

¶ 32 Section IV. A. of this opinion discusses the background of surrogacy, Section IV. B. discusses whether the Wisconsin Statutes provide guidance to our analysis, Section IV. C. discusses the enforceability of the PA, and Section V. discusses the need for legislative action in this area.

A. Background on Surrogacy

¶ 33 Assisted reproductive technology (ART) has created ways for people to have children regardless of their reproductive capacity: “ART, in particular surrogacy arrangements, forces us to confront deeply held beliefs about what makes a ‘mother’ or a ‘father,’ ... and perhaps most fundamentally, what makes a ‘family.’” Darra L. Hofman, “Mama's Baby, Daddy's Maybe:” A State–By–State Survey of Surrogacy Laws and Their Disparate Gender Impact, 35 Wm. Mitchell L.Rev. 449, 450 (2009).

¶ 34 In general terms, surrogacy “is the process by which a woman makes a choice to become pregnant and then carry to full term and deliver a baby who, she intends, will be raised by someone else.” Thomas J. Walsh, Wisconsin's Undeveloped Surrogacy Law, Wisconsin Lawyer, Mar. 2012, at 16. See also Black's Law Dictionary 1458 (7th ed. 1999) (defining “surrogate mother” as “[a] woman who carries a child to term on behalf of another woman and then assigns her parental rights to that woman and the father”). This opinion will refer to the woman who carries the baby as the “surrogate.”⁵ An “intended parent” is “an individual, married or unmarried, who manifests the intent ... to be legally bound as the parent of a child resulting from assisted or collaborative reproduction.” American Bar Association Model Act Governing Assisted Reproductive Technology (ABA Model Act) § 102(19) (Feb. 2008). The Roseckys are the intended parents of F.T.R.

¶ 35 There are two broad categories of surrogacies, traditional and gestational, but there are many permutations within those categories. In a traditional surrogacy, the surrogate is the genetic mother of the child and is artificially inseminated with the sperm of the intended father or a sperm donor. See Walsh, *supra*, at 16. In a gestational surrogacy, the surrogate is not genetically related to the child; instead, “sperm is taken from the father (or from a donor) and an egg is taken from the mother (or from a donor), fertilization happens outside the womb (called in vitro fertilization), and the fertilized embryos are then implanted into the surrogate mother's uterus.” *Id.* The case before the court involves a traditional surrogacy, as Monica was artificially inseminated with David's sperm.

¶ 36 Parties contemplating a surrogacy will often enter into a surrogacy agreement. *Id.* at 18. This agreement typically outlines the parties' rights and responsibilities throughout the surrogacy process. Common provisions include contemplated medical procedures, contingencies in case of medical complications, compensation, parental rights and responsibilities, choice of law, and the parties' intent.

¶ 37 The ability to create a family using ART has seemingly outpaced legislative responses to the legal questions it presents, especially the determination of parentage. See Mark Hansen, As Surrogacy Becomes More Popular, Legal Problems Proliferate, ABA Journal, Mar. 2011, at 54. Historically, there have been no significant questions of maternity: the woman who gave birth to a child was the child's mother. See Charles P. Kindregan, Jr., Considering Mom: Maternity and the Model Act Governing Assisted Reproductive Technology, 17 Am. U.J. Gender Soc. Pol'y & L. 601, 605 (2009). Indeed, Monica is the mother of F.T.R. and has the commensurate parental rights. See Wis. Stat. § 48.02(13) (defining “parent” as “a biological parent, a husband who has consented to the artificial insemination of his wife [], or a parent by adoption”). Conversely, paternity could be established in multiple ways. See, e.g., Wis. Stat. § 767.89 (paternity judgment); § 767.84(1m) (rebuttable presumption when genetic testing shows probability of paternity of 99 percent or greater); § 767.805 (voluntary acknowledgment of paternity); § 891.41 (presumption of paternity based on marriage of the parties). With surrogacy, relevant parties could include the genetic mother, genetic father, intended parents, the surrogate, and the surrogate's husband.

¶ 38 The vast majority of states do not have statutory provisions addressing surrogacy.⁶ Many courts have encountered issues surrounding surrogacy, and the cases often involve ad hoc procedures attempting to effectuate the parties' intent by analyzing

surrogacy issues under the state's statutes for TPR, adoption, custody and placement, and the like. See generally Rachel M. Kane, Cause of Action for Determination of Status as Legal or Natural Parents of Children Borne by Surrogate or Gestational Carrier, 48 COA 2d 687 (Jun. 2011). At oral argument, counsel for the Roseckys explained that surrogacy is a reality in Wisconsin and that Wisconsin attorneys attempt to effectuate the parties' intent in a surrogacy. Clearly, when the parties follow the agreement and everything goes as planned, the court's involvement is quite limited. For example, if the surrogate agrees to terminate her parental rights, the intended parents can adopt the child. See Wis. Stat. § 48.41 (voluntary consent to TPR); Wis. Stat. § 48.82 (persons eligible to adopt a minor child); Wis. Stat. § 48.91 (if prerequisites are met, court shall grant adoption if it is in the best interests of the child). A court will often adjudicate the intended biological parent as the biological parent of a child, as David was adjudicated to be F.T.R.'s father. The adjudicated parent may then seek custody and placement of the child. Counsel for David also noted that some Wisconsin circuit courts have used Wis. Stat. § 69.14(1)(h) to make a determination of parentage for the intended mother and intended father.⁷ When the parties do not agree, however, the courts are forced to confront issues of the most difficult nature.

¶ 39 Given this general background, we turn to Wisconsin law for guidance in answering whether the PA is enforceable.

B. Wisconsin Law

¶ 40 The Wisconsin Statutes do not provide a specific answer as to whether the PA is enforceable, and they do not contain a statement of public policy against enforcement.

¶ 41 One statutory provision seems to contemplate some level of relief for intended parents:

If the registrant of a birth certificate under this section is born to a surrogate mother, information about the surrogate mother shall be entered on the birth certificate and the information about the father shall be omitted from the birth certificate. If a court determines parental rights over the registrant, the clerk of court shall report the court's determination to the state registrar.... Upon receipt of the report, the state registrar shall prepare and register a new birth certificate for the registrant under s. 69.15(6) and send a copy of the new certificate to the local registrar who filed the original certificate. Upon receipt of the copy, the local registrar shall destroy his or her copy of the replaced certificate and file the new certificate.

Wis. Stat. § 69.14(1)(h). "Registrant" is defined as "the subject of a certificate or declaration which a local registrar has accepted for filing in the system of vital statistics." Wis. Stat. § 69.01(19). This section seems to contemplate that a court may make a determination of parental rights to someone other than the "surrogate mother."

¶ 42 Wisconsin Stat. § 891.40 provides that if certain procedures are followed when a woman is inseminated with sperm from a sperm donor, the woman's husband at the time of conception "shall be the natural father of a child conceived." Wis. Stat. § 891.40(1). Further, the statute provides that the sperm donor "bears no liability for the support of the child and has no parental rights with regard to the child." Wis. Stat. § 891.40(2).

¶ 43 The Wisconsin Statutes also govern more typical custody and placement situations, but the statutes do not specifically contemplate the use of a surrogacy parenting agreement in the adjudication of custody and placement disputes. See Wis. Stat. ch. 767. The statutes specify that a circuit court shall make custody and placement determinations in certain enumerated actions affecting the family. See Wis. Stat. § 767.41(1)(b) (annulment, divorce, legal separation, adjudicated paternity, custody, compelled support, acknowledged paternity). Surrogacy is not one of those enumerated actions. In a more typical custody and placement determination, where there is no PA, the court "shall consider all facts relevant to the best interest of the child." Wis. Stat. § 767.41(5). The statute enumerates 16 factors that the court shall consider. *Id.* As the circuit court noted, many of the statutory factors are difficult to apply to the facts surrounding a surrogacy:

One of the striking things to the court in this case is how many factors in § 767.41 don't apply.... The interaction of each parent has wholly been affected by [Monica's] relinquishment of the child and the orders of this court and earlier agreements of the parties. The amount and quality of time with the parent. Same analysis. The child's adjustment to home. Same analysis. The need for regularly occurring and meaningful periods of placement. So far, same analysis. In many respects it doesn't quite seem to fit into the usual analysis in family court. That is because of course this case is so unusual.

¶ 44 Adoption and termination of parental rights are also governed by the Wisconsin Statutes, but do not appear to contemplate the issues surrounding a surrogacy. Adoption is available when both of the parents are deceased, the parental rights of both parents have been terminated, the parental rights of one parent have been terminated and the stepparent seeks to adopt, or the parental rights of one parent have been terminated and the other parent is deceased. See Wis. Stat. § 48.81. Parental rights can be terminated voluntarily, See Wis. Stat. § 48.41, or involuntarily if grounds for the termination exist. See § 48.415 (grounds include abandonment, continuing need of protection or services, continuing parental disability, and abuse). The TPR-and-adoption scheme

does not provide relief for a party in Marcia's circumstance: she is the wife of the biological father, she currently has no parental rights over the child, the surrogate/egg donor refuses to voluntarily terminate her parental rights, and there are no facts in the record to indicate that there would be grounds to terminate the surrogate's parental rights.

¶ 45 Further, adoption is distinctly different than surrogacy. Adoption often occurs in circumstances where the parent cannot or will not care for the child. Substantial court oversight is necessary in a voluntary-TPR-and-adoption scenario to ensure that the biological parents have consented to the TPR after being informed of the consequences thereof. See Wis. Stat. § 48.41. In contrast, surrogacies are planned, and the intended parents want the child and are willing and able to care for the child. Additionally, the Wisconsin Statutes prohibit the proposed adoptive parents from making certain payments to the birth mother, for fear of causing undue influence or encouraging “baby-selling.” See Wis. Stat. § 48.913(4). On the other hand, surrogacies may not present the same concerns for undue influence because the surrogate is often a good friend or family member of the intended parents, or, if the parties use a surrogacy agency, the surrogate is likely screened by the agency. See Hansen, *supra*, at 56–57 (reporting that a reputable surrogacy agency screens surrogates and “manage[s] all of the medical, psychological, legal, financial, insurance, and administrative details that go along with such an arrangement”).

¶ 46 In this case, Monica was presumed to be the mother of F.T.R. because she gave birth to him, David was adjudicated as the father of F.T.R., the circuit court determined that the PA was unenforceable, and Monica is unwilling to voluntarily terminate her parental rights. Under the current statutory schemes, Marcia is left without any parental rights unless and until Monica's parental rights are terminated and Marcia adopts F.T.R.:

It is clear that the more complex surrogacy relationships do not easily fit into Wisconsin's statutory scheme. The statutes do not refer to compensation of surrogate mothers or sperm and egg donors. No provisions address the interests of the child created in this process or by in vitro fertilization. Thus, parties seeking relief in Wisconsin courts are provided no guarantee that relief can be had. Further, circuit court judges attempting to determine if relief is appropriate are given no guidance on how to apportion that relief.

Walsh, *supra*, at 19. Considering the facts of this case, none of the statutory schemes neatly answer the multiple legal issues presented.

¶ 47 In summary, the Wisconsin Statutes do not provide a specific answer as to whether the PA is enforceable, and they do not contain a statement of public policy against enforcement.

C. Enforceability of the PA

¶ 48 Having determined that the Wisconsin Statutes do not provide a specific answer regarding the enforceability of the PA, we turn to contract law. As such, we will analyze whether this contract satisfies the elements of a contract, and whether there are any defenses that render this contract unenforceable. First, however, we address the parties' arguments.

1. Parties Arguments

¶ 49 David makes several arguments as to why the PA should be enforceable. First, David argues that the PA is enforceable under contract law and that public policy does not invalidate the PA. Indeed, David argues that public policy supports the enforcement of the PA, as it provides stability and predictability for children and for parties to surrogacies. David looks to case law and statutes from other jurisdictions that have enforced surrogacy contracts or otherwise concluded that the intended parents are the legal parents of the child. David alternatively argues that the PA should be enforced under equitable estoppel because the Roseckys relied on Monica's representations that she would be able to separate herself from the child, and they would not have gone through with the surrogacy but for those representations.

¶ 50 David further argues that the circuit court failed to consider the severability clause in the PA when addressing the TPR provisions. The circuit court framed the issue of enforceability as “whether the court can, under these circumstances, force or require the mother to terminate her parental rights.” However, David argues that it is not necessary to terminate Monica's parental rights to effectuate the parties' overall intent—for the Roseckys to be the parents of F.T.R., with full custody and placement. Therefore, any offending portion of the PA can be severed, and the remaining portions can be used to enforce the parties' intent.

¶ 51 Finally, David argues that, at the very least, the PA should have been received into evidence and considered as a factor in custody and placement. David argues that the PA is relevant to several factors under Wis. Stat. § 767.41(5)(am), especially subdivision 1. because the PA is evidence of the “wishes of the child's parent or parents” or is a “legal custody or physical placement proposal submitted to the court.”

¶ 52 F.T.R.'s guardian ad litem on appeal, Todd J. Hepler, argues that, absent some showing of unconscionability, a surrogacy contract should be presumptively enforceable as long as it is in the best interests of the child. The guardian ad litem argues that the

best way to promote stability and predictability is to presumptively enforce surrogacy agreements:

In the case of a last-minute surrogacy repudiation, once a child is born, the parties will be forced [to] instigate an immediate whirlwind of litigation concerning placement and custody of the child and the newborn's first days, weeks, months and years of life will be clouded by the atmosphere of tension, anxiety and angst incumbent with bitter litigation of this sort.

The guardian ad litem looks to the legislature's pronouncement that "instability and impermanence in family relationships are contrary to the welfare of children." Wis. Stat. § 48.01(1)(a).

¶ 53 Monica looks to a myriad of Wisconsin Statutes and cases to conclude that the PA cannot be enforceable. She argues that the PA violates Wis. Stat. § 48.913, which prohibits certain payments in an adoption, because the PA provides illegal payments to Monica and Cory. She argues that parents cannot contract to create parental rights⁸ and that custody and placement agreements are not binding on the parties until they are approved by a court.⁹ Wis. Stat. § 767.34(1) (requiring court approval to stipulations for "legal custody and physical placement" in "an annulment, divorce, or legal separation"). Monica further argues that her refusal to follow through with the PA precludes its enforcement. See *Hottenroth v. Hetsko*, 2006 WI App 249, ¶ 13, 298 Wis.2d 200, 727 N.W.2d 38 (parties to a divorce "are free to withdraw from a stipulation until it is incorporated into the divorce judgment") (internal quotation omitted). She argues that custody and placement orders cannot be "fixe[d]" such that there can be no modification of the order in the future and cannot be contingent on a future event. See *Jocius*, 218 Wis.2d at 118, 580 N.W.2d 708 ("[T]he statute permitting a trial court to deny a parent physical placement does not permit the trial court to make a prospective order prohibiting a parent from requesting a change in physical placement in the future."); *Culligan v. Cindric*, 2003 WI App 180, ¶ 13, 266 Wis.2d 534, 669 N.W.2d 175 ("It is well settled that a circuit court lacks the statutory authority at divorce to order a change of physical placement that is both prospective and contingent on the occurrence of some anticipated event.").

¶ 54 Monica argues that the PA violates Wis. Stat. § 767.41(5)(am) because it precludes a court from considering all statutory factors in a custody and placement determination. Monica argues that enforcement of the PA violates Wis. Stat. § 767.41(4)(b), which provides that a court can preclude placement with a parent only after a hearing and after determining that the placement would "endanger the child's physical, mental or emotional health." Finally, Monica argues that blind enforcement of the PA violates the overarching principle of custody and placement determinations, that the child's best interests must dictate any agreement or order. See Wis. Stat. § 767.41(5) ("[T]he court shall consider all facts relevant to the best interest of the child.").

2. Contract Law

¶ 55 Aside from the termination of parental rights provisions, we conclude the PA is a valid, enforceable contract unless enforcement is contrary to the best interests of F.T.R. While the traditional defenses to the enforcement of a contract apply, none have been presented to render the PA unenforceable. We do not accept David's argument that the PA is wholly enforceable. In fact, the portions of the PA calling for the termination of Monica's parental rights are unenforceable. We also do not accept Monica's assertion that the PA is wholly unenforceable. The main problem with Monica's arguments is that they are based on law that was never intended to govern the various issues presented in a surrogacy. The law does not specifically address the legal issues presented in this surrogacy dispute.

¶ 56 Despite this being a unique contract, we turn to contract law for guidance. "Wisconsin courts have long recognized the importance of freedom of contract and have endeavored to protect the right to contract." *Watts v. Watts*, 137 Wis.2d 506, 521, 405 N.W.2d 303 (1987). A founding principle of freedom of contract is that "individuals should have the power to govern their own affairs without governmental interference." *Merten v. Nathan*, 108 Wis.2d 205, 211, 321 N.W.2d 173 (1982). Courts protect parties' "justifiable expectations and the security of transactions" by "ensuring that the promises will be performed." *Id.*

¶ 57 The elements of a contract are offer, acceptance, and consideration. See *Goossen v. Estate of Standaert*, 189 Wis.2d 237, 247, 525 N.W.2d 314 (Ct.App.1994); Michael B. Apfeld et al., *Contract Law in Wisconsin* § 2.1 (3d ed.2012). Defenses to the enforcement of a contract include misrepresentation, mistake, illegality, unconscionability, void against public policy, duress, undue influence, and incapacity. See Apfeld et al., *supra*, at ch. 3.

¶ 58 Even if a contract contains an illegal provision, "Wisconsin has long accepted that a portion of a contract may be severable." *Markwardt v. Zurich Am. Ins. Co.*, 2006 WI App 200, ¶ 30, 296 Wis.2d 512, 724 N.W.2d 669. A severability clause, though not controlling, is entitled to great weight in determining if the remaining portions of a contract are severable. See *Town of Clearfield v. Cushman*, 150 Wis.2d 10, 24, 440 N.W.2d 777 (1989) (internal quotation omitted). If a contract contains an illegal clause, the remaining portions of the contract can be enforced if severing the illegal portions does not defeat the primary purpose of the bargain. See *Simenstad v. Hagen*, 22 Wis.2d 653, 662, 126 N.W.2d 529 (1964); *Baierl v. McTaggart*, 2001 WI 107, ¶¶ 15, 18, 245 Wis.2d 632, 629 N.W.2d 277.

¶ 59 In this case, there is no question that the PA contains the essential elements of a contract. Monica made an offer to the Roseckys that she would act as a surrogate. The Roseckys accepted Monica's offer. Consideration was provided.

¶ 60 The unique nature of this contract, however, cannot be understated.¹⁰ Creating a child is not something that one can decide to do one day and decide not to do the next. Typical damages cannot make one whole. Nonetheless, this is a contract and we conclude that it is largely enforceable.

¶ 61 Specifically, we conclude that the interests supporting enforcement of the PA are more compelling than the interests against enforcement. Enforcement of surrogacy agreements promotes stability and permanence in family relationships because it allows the intended parents to plan for the arrival of their child, reinforces the expectations of all parties to the agreement, and reduces contentious litigation that could drag on for the first several years of the child's life.

¶ 62 We do not hold this opinion alone; the legislature has manifested its intent in the children's code, wherein it concluded that the best interests of the child are always paramount. See Wis. Stat. § 48.01. See also § 767.41(5) (stating that in custody and placement determinations, the court considers “all facts relevant to the best interest of the child”); § 54.15(1) (stating that in selection of a guardian for a proposed ward, the “best interests of the proposed ward shall control”); § 938.01(2)(f) (stating that in the Juvenile Justice Code, the court considers “each juvenile's best interest” in responding to “a juvenile offender's needs for care and treatment”). Furthermore, the legislature has legislated that “instability and impermanence in family relationships are contrary to the welfare of children.” Wis. Stat. § 48.01(1)(a).

¶ 63 According to the expert testimony in this case, social science research also supports the conclusion that permanency and stability promote child welfare, whereas being exposed to contentious family relationships, an inevitable consequence of litigation, is harmful. As Dr. Waldron testified: “[O]ut of over 2,000 studies that have been done ... where there are separate caregivers, ... in every single one ... the higher the level of tension and conflict, the more detrimental it is to kids.... [T]hat is the number one predictor for child adjustment over time, [] whether or not there's tension and conflict between caregivers.” Dr. Huebner also testified that, according to research, the tension between the Roseckys and Schissels could be harmful to F.T.R.

¶ 64 We find no public policy statement contrary to the enforcement of the PA in the Wisconsin Statutes or in Wisconsin cases.¹¹

¶ 65 The portions of the PA requiring Monica to terminate her parental rights, however, are not enforceable under the language of the existing statutes. The PA stated that “[t]he parties will cooperate fully in any parentage proceedings to determine [the Roseckys] as [C]hild's legal parents, or in any other similar legal proceedings, including but not limited to termination of parental rights and adoption.” It further stated:

The parties intend to participate voluntarily in any legal proceedings necessary to have [the Roseckys] determined to be Child's legal parents.... It is the intent of the parties that regardless of any circumstances that may arise in the future, both [Marcia] and [David] shall be the legal parents of Child. The parties agree to sign all necessary documents and attend any scheduled court hearings either prior to or after Child's birth to achieve these goals.

As the circuit court correctly noted, the portions of the PA requiring a voluntary TPR do not comply with the procedural safeguards set forth in Wis. Stat. § 48.41 because Monica would not consent to the TPR and there is no legal basis for involuntary termination. See Wis. Stat. § 48.415. As a result, the TPR provisions of the PA are unenforceable. That fact, however, does not end the analysis.

¶ 66 We further conclude that the offending TPR provisions in the PA can be severed from the remainder of the contract without defeating the primary purpose of the agreement. The PA addresses severability:

In the event any of the provisions of this Agreement are deemed to be invalid or unenforceable, such provisions will be deemed severable from the remainder of this Agreement and will not cause the invalidity or unenforceability of the remainder of this Agreement. Consistent with the provisions of this paragraph, if any provision is deemed invalid due to its scope or breadth, such provision will be deemed valid to the extent of the scope or breadth permitted by law.

Though a severability clause itself is not controlling, it is entitled to great weight in determining whether the remainder of a contract is enforceable. See *Town of Clearfield*, 150 Wis.2d at 24, 440 N.W.2d 777. The primary purpose of this agreement is to ensure that the Roseckys will be the parents of F.T.R. and will have custody and placement. The PA contains provisions for custody and placement: “The parties believe strongly that Child's best interests will be served by being in [the Roseckys'] legal custody and physical placement, as it is necessary for Child to regard [the Roseckys] as the sole legal parents and [the Roseckys'] home as the sole parental home.” The purpose of the PA can be carried out, after severing the TPR portions, by enforcing the custody and placement provisions of the PA. See *Simenstad*, 22 Wis.2d at 662, 126 N.W.2d 529.

¶ 67 As to the remaining portions of the PA, the current court record does not support any defense to the enforcement of the contract so as to render it unenforceable. There are no facts in the record to indicate, nor does Monica argue, that the contract should be void or voidable due to misrepresentation, mistake, duress, undue influence, or incapacity. See *Apfeld et al.*, *supra*, ch. 3. Instead, the facts in the record appear to establish that the contract was entered into voluntarily and was well-planned, negotiated, and carefully executed. The circuit court made findings about the PA:

The contract, on its face, is clear and unambiguous....

The parties are each represented by counsel, and were at the time the agreement was drawn. The agreement itself covers virtually every eventuality which could possibly occur during the pregnancy.

There is no claim here by [Monica] that she did not understand the contract when she signed it. Indeed, to a great extent, it appears it was her idea to act as a surrogate in the first instance.

Had [Monica] gone through with the termination of her parental rights, this Court would have no problem upholding the agreement....

Monica offered, not once but twice, to act as a surrogate for the Roseckys. Both the Roseckys and the Schissels had independent counsel, who assisted in drafting and revising the parties' agreement. The parties negotiated the terms of the agreement. When the Roseckys raised concerns about using Monica's egg, for fear that she would not be able to separate herself from the child, Monica reassured the Roseckys that she could separate herself from the child. Monica testified that she understood all of the terms of the contract and that she simply changed her mind as to the terms.

¶ 68 Instead of arguing that the contract is void due to duress, mistake, or similar reasons, Monica argues that the PA is void as against public policy. The essence of Monica's public policy argument is that a contract cannot cut off a biological parent from his or her child, and any contract that purports to do so violates a myriad of cases and statutes relating to divorce, custody, placement, adoption, and similar areas. A contract will not be enforced if it violates public policy. *Watts*, 137 Wis.2d at 521, 405 N.W.2d 303. A court may declare a contract void on public policy grounds only if it determines, after weighing the interests, that the interests in enforcing the contract are clearly outweighed by the interests in upholding the policy that the contract violates. *Id.*; Restatement (Second) of Contracts § 178 (1981). Public policy may be expressed by a statute, regulation, or judicial opinion. See *N. States Power Co. v. Nat'l Gas Co., Inc.*, 2000 WI App 30, ¶ 8, 232 Wis.2d 541, 606 N.W.2d 613. For the reasons stated above, we reject Monica's public policy arguments.

¶ 69 In summary, though the TPR portions of the PA cannot be enforced under Chapter 48 of the Wisconsin Statutes, the remainder of the PA is an enforceable contract. No Wisconsin Statute or case contains a specific statement of public policy contrary to the enforcement of this PA. We conclude that enforcement of surrogacy agreements promotes stability and permanence in family relationships because it allows the intended parents to plan for the arrival of their child, reinforces the expectations of all parties to the agreement, and reduces contentious litigation that could drag on for the first several years of the child's life. Aside from the termination of parental rights provisions in the PA at issue, the PA is a valid, enforceable contract unless enforcement is contrary to the best interests of F.T.R. We turn to consider the circuit court action concerning custody and placement.

3. Application

¶ 70 The circuit court awarded primary custody and placement to David and secondary placement to Monica. It did so, however, without consideration of the PA. We conclude that the circuit court erroneously exercised its discretion by excluding the PA and rendering its custody and placement decision without consideration of the PA.

¶ 71 In custody and placement determinations, the circuit court has discretion to make a determination of what is in a child's best interests. See Wis. Stat. § 767.41(5); *Jocius*, 218 Wis.2d at 110–11, 580 N.W.2d 708; *Hollister*, 173 Wis.2d at 416, 496 N.W.2d 642. We will sustain the circuit court's discretionary determination unless it constitutes an erroneous exercise of discretion. See *Lubinski*, 314 Wis.2d 395, ¶ 5, 761 N.W.2d 676; *Bohms*, 144 Wis.2d at 497, 424 N.W.2d 408.

¶ 72 Because we conclude that the PA is a valid, enforceable contract, the circuit court's exclusion of the PA and decision to render a custody and placement order without consideration of the PA constituted an erroneous exercise of discretion.¹² *Id.*, at 496, 424 N.W.2d 408. We therefore reverse the circuit court's order and remand for a determination of custody and placement consistent with this opinion.

V. POTENTIAL LEGISLATIVE ACTION

¶ 73 We respectfully urge the legislature to consider enacting legislation regarding surrogacy.¹³ Surrogacy is currently a reality in our Wisconsin court system. Legislation could “address surrogacy agreements to ensure that when the surrogacy process is used, the courts and the parties understand the expectations and limitations under Wisconsin law.” ¹⁴ Walsh, *supra*, at 56.

VI. CONCLUSION

¶ 74 Aside from the termination of parental rights provisions in the PA at issue, we conclude a PA is a valid, enforceable contract unless enforcement is contrary to the best interests of the child. While the traditional defenses to the enforcement of a contract could apply, none appear to render the entire PA in this case unenforceable.

¶ 75 We also conclude that the circuit court erroneously exercised its discretion by excluding the PA and rendering its custody and placement decision without consideration of the PA. We reverse the circuit court's determination that the PA is unenforceable and remand for a hearing on custody and placement, wherein the terms of the PA are enforced unless enforcement is contrary to the best interests of F.T.R.

Order reversed and cause remanded for proceedings consistent with this opinion.

23: Appendix B - Rosecky v. Schissel is shared under a [CC BY 4.0](https://creativecommons.org/licenses/by/4.0/) license and was authored, remixed, and/or curated by Beth R. Pless, J.D. (Northeast Wisconsin Technical College).

24: Appendix C - Uniform Parentage Act Article 3-6-7

VOLUNTARY ACKNOWLEDGMENT OF PARENTAGE

SECTION 301. ACKNOWLEDGMENT OF PARENTAGE

A woman who gave birth to a child and an alleged genetic father of the child, intended parent under [Article] 7, or presumed parent may sign an acknowledgment of parentage to establish the parentage of the child.

SECTION 302. EXECUTION OF ACKNOWLEDGMENT OF PARENTAGE

(a) An acknowledgment of parentage under Section 301 must:

(1) be in a record signed by the woman who gave birth to the child and by the individual seeking to establish a parent-child relationship, and the signatures must be attested by a notarial officer or witnessed;

(2) state that the child whose parentage is being acknowledged:

(A) does not have a presumed parent other than the individual seeking to establish the parent-child relationship or has a presumed parent whose full name is stated; and

(B) does not have another acknowledged parent, adjudicated parent, or individual who is a parent of the child under [Article] 7[or 8] other than the woman who gave birth to the child; and

(3) state that the signatories understand that the acknowledgment is the equivalent of an adjudication of parentage of the child and that a challenge to the acknowledgment is permitted only under limited circumstances and is barred two years after the effective date of the acknowledgment.

(b) An acknowledgment of parentage is void if, at the time of signing:

(1) an individual other than the individual seeking to establish parentage is a presumed parent, unless a denial of parentage by the presumed parent in a signed record is filed with the [state agency maintaining birth records]; or

(2) an individual, other than the woman who gave birth to the child or the individual seeking to establish parentage, is an acknowledged or adjudicated parent or a parent under [Article] 7[or 8].

SECTION 303. DENIAL OF PARENTAGE

A presumed parent or alleged genetic parent may sign a denial of parentage in a record. The denial of parentage is valid only if:

(1) an acknowledgment of parentage by another individual is filed under Section 305;

(2) the signature of the presumed parent or alleged genetic parent is attested by a notarial officer or witnessed; and

(3) the presumed parent or alleged genetic parent has not previously:

(A) completed a valid acknowledgment of parentage, unless the previous acknowledgment was rescinded under Section 308 or challenged successfully under Section 309; or

(B) been adjudicated to be a parent of the child.

SECTION 304. RULES OF ACKNOWLEDGMENT OR DENIAL OF PARENTAGE

(a) An acknowledgment of parentage and a denial of parentage may be contained in a single document or may be in counterparts and may be filed with the [state agency maintaining birth records] separately or simultaneously. If filing of the acknowledgment and denial both are required under this [act], neither is effective until both are filed.

(b) An acknowledgment of parentage or denial of parentage may be signed before or after the birth of the child.

(c) Subject to subsection (a), an acknowledgment of parentage or denial of parentage takes effect on the birth of the child or filing of the document with the [state agency maintaining birth records], whichever occurs later.

(d) An acknowledgment of parentage or denial of parentage signed by a minor is valid if the acknowledgment complies with this [act].

SECTION 305. EFFECT OF ACKNOWLEDGMENT OR DENIAL OF PARENTAGE

(a) Except as otherwise provided in Sections 308 and 309, an acknowledgment of parentage that complies with this [article] and is filed with the [state agency maintaining birth records] is equivalent to an adjudication of parentage of the child and confers on the acknowledged parent all rights and duties of a parent.

(b) Except as otherwise provided in Sections 308 and 309, a denial of parentage by a presumed parent or alleged genetic parent which complies with this [article] and is filed with the [state agency maintaining birth records] with an acknowledgment of parentage that complies with this [article] is equivalent to an adjudication of the nonparentage of the presumed parent or alleged genetic parent and discharges the presumed parent or alleged genetic parent from all rights and duties of a parent.

SECTION 308. PROCEDURE FOR RESCISSION

(a) A signatory may rescind an acknowledgment of parentage or denial of parentage by filing with the [relevant state agency] a rescission in a signed record which is attested by a notarial officer or witnessed, before the earlier of:

- (1) 60 days after the effective date under Section 304 of the acknowledgment or denial; or
- (2) the date of the first hearing before a court in a proceeding, to which the signatory is a party, to adjudicate an issue relating to the child, including a proceeding that establishes support.

(b) If an acknowledgment of parentage is rescinded under subsection (a), an associated denial of parentage is invalid, and the [state agency maintaining birth records] shall notify the woman who gave birth to the child and the individual who signed a denial of parentage of the child that the acknowledgment has been rescinded. Failure to give the notice required by this subsection does not affect the validity of the rescission.

SECTION 309. CHALLENGE AFTER EXPIRATION OF PERIOD FOR RESCISSION

(a) After the period for rescission under Section 308 expires, but not later than two years after the effective date under Section 304 of an acknowledgment of parentage or denial of parentage, a signatory of the acknowledgment or denial may commence a proceeding to challenge the acknowledgment or denial, including a challenge brought under Section 614, only on the basis of fraud, duress, or material mistake of fact.

(b) A challenge to an acknowledgment of parentage or denial of parentage by an individual who was not a signatory to the acknowledgment or denial is governed by Section 610.

SECTION 310. PROCEDURE FOR CHALLENGE BY SIGNATORY

(a) Every signatory to an acknowledgment of parentage and any related denial of parentage must be made a party to a proceeding to challenge the acknowledgment or denial.

(b) By signing an acknowledgment of parentage or denial of parentage, a signatory submits to personal jurisdiction in this state in a proceeding to challenge the acknowledgment or denial, effective on the filing of the acknowledgment or denial with the [state agency maintaining birth records].

(c) The court may not suspend the legal responsibilities arising from an acknowledgment of parentage, including the duty to pay child support, during the pendency of a proceeding to challenge the acknowledgment or a related denial of parentage, unless the party challenging the acknowledgment or denial shows good cause.

(d) A party challenging an acknowledgment of parentage or denial of parentage has the burden of proof.

(e) If the court determines that a party has satisfied the burden of proof under subsection (d), the court shall order the [state agency maintaining birth records] to amend the birth record of the child to reflect the legal parentage of the child.

(f) A proceeding to challenge an acknowledgment of parentage or denial of parentage must be conducted under [Article] 6.

...

UNIFORM PARENTAGE ACT ARTICLE 6 – PROCEEDING TO ADJUDICATE PARENTAGE

SECTION 601. PROCEEDING AUTHORIZED

[(a)] A proceeding may be commenced to adjudicate the parentage of a child. Except as otherwise provided in this [act], the proceeding is governed by [cite to this state's rules of civil procedure].

[(b) A proceeding to adjudicate the parentage of a child born under a surrogacy agreement is governed by [Article] 8.]

SECTION 602. STANDING TO MAINTAIN PROCEEDING

Except as otherwise provided in [Article] 3 and Sections 608 through 611, a proceeding to adjudicate parentage may be maintained by:

- (1) the child;
- (2) the woman who gave birth to the child, unless a court has adjudicated that she is not a parent;
- (3) an individual who is a parent under this [act];
- (4) an individual whose parentage of the child is to be adjudicated;
- (5) a child-support agency[or other governmental agency authorized by law of this state other than this [act]];
- (6) an adoption agency authorized by law of this state other than this [act] or licensed child-placement agency; or
- (7) a representative authorized by law of this state other than this [act] to act for an individual who otherwise would be entitled to maintain a proceeding but is deceased, incapacitated, or a minor.

SECTION 603. NOTICE OF PROCEEDING

(a) The [petitioner] shall give notice of a proceeding to adjudicate parentage to the following individuals:

- (1) the woman who gave birth to the child, unless a court has adjudicated that she is not a parent;
- (2) an individual who is a parent of the child under this [act];
- (3) a presumed, acknowledged, or adjudicated parent of the child; and
- (4) an individual whose parentage of the child is to be adjudicated.

(b) An individual entitled to notice under subsection (a) has a right to intervene in the proceeding.

(c) Lack of notice required by subsection (a) does not render a judgment void. Lack of notice does not preclude an individual entitled to notice under subsection (a) from bringing a proceeding under Section 611(b).

SECTION 604. PERSONAL JURISDICTION

(a) The court may adjudicate an individual's parentage of a child only if the court has personal jurisdiction over the individual.

(b) A court of this state with jurisdiction to adjudicate parentage may exercise personal jurisdiction over a nonresident individual, or the [guardian or conservator] of the individual, if the conditions prescribed in [cite to this state's Section 201 of the Uniform Interstate Family Support Act] are satisfied.

(c) Lack of jurisdiction over one individual does not preclude the court from making an adjudication of parentage binding on another individual.

SECTION 605. VENUE

Venue for a proceeding to adjudicate parentage is in the [county] of this state in which:

- (1) the child resides or is located;
- (2) if the child does not reside in this state, the [respondent] resides or is located; or
 - (3) a proceeding has been commenced for administration of the estate of an individual who is or may be a parent under this [act].

[PART] 2 - SPECIAL RULES FOR PROCEEDING TO ADJUDICATE PARENTAGE

SECTION 606. ADMISSIBILITY OF RESULTS OF GENETIC TESTING

(a) Except as otherwise provided in Section 502(b), the court shall admit a report of genetic testing ordered by the court under Section 503 as evidence of the truth of the facts asserted in the report.

(b) A party may object to the admission of a report described in subsection (a), not later than [14] days after the party receives the report. The party shall cite specific grounds for exclusion.

(c) A party that objects to the results of genetic testing may call a genetic-testing expert to testify in person or by another method approved by the court. Unless the court orders otherwise, the party offering the testimony bears the expense for the expert testifying.

(d) Admissibility of a report of genetic testing is not affected by whether the testing was performed:

- (1) voluntarily or under an order of the court or a child-support agency; or
- (2) before, on, or after commencement of the proceeding.

SECTION 607. ADJUDICATING PARENTAGE OF CHILD WITH ALLEGED GENETIC PARENT

(a) A proceeding to determine whether an alleged genetic parent who is not a presumed parent is a parent of a child may be commenced:

- (1) before the child becomes an adult; or
- (2) after the child becomes an adult, but only if the child initiates the proceeding.

(b) Except as otherwise provided in Section 614, this subsection applies in a proceeding described in subsection (a) if the woman who gave birth to the child is the only other individual with a claim to parentage of the child. The court shall adjudicate an alleged genetic parent to be a parent of the child if the alleged genetic parent:

- (1) is identified under Section 506 as a genetic parent of the child and the identification is not successfully challenged under Section 506;
 - (2) admits parentage in a pleading, when making an appearance, or during a hearing, the court accepts the admission, and the court determines the alleged genetic parent to be a parent of the child;
 - (3) declines to submit to genetic testing ordered by the court or a child-support agency, in which case the court may adjudicate the alleged genetic parent to be a parent of the child even if the alleged genetic parent denies a genetic relationship with the child;
 - (4) is in default after service of process and the court determines the alleged genetic parent to be a parent of the child; or
 - (5) is neither identified nor excluded as a genetic parent by genetic testing and, based on other evidence, the court determines the alleged genetic parent to be a parent of the child.
- (c) Except as otherwise provided in Section 614 and subject to other limitations in this [part], if in a proceeding involving an alleged genetic parent, at least one other individual in addition to the woman who gave birth to the child has a claim to parentage of the child, the court shall adjudicate parentage under Section 613.

SECTION 608. ADJUDICATING PARENTAGE OF CHILD WITH PRESUMED PARENT

(a) A proceeding to determine whether a presumed parent is a parent of a child may be commenced:

- (1) before the child becomes an adult; or
- (2) after the child becomes an adult, but only if the child initiates the proceeding.

(b) A presumption of parentage under Section 204 cannot be overcome after the child attains two years of age unless the court determines:

- (1) the presumed parent is not a genetic parent, never resided with the child, and never held out the child as the presumed parent's child; or
- (2) the child has more than one presumed parent.

(c) Except as otherwise provided in Section 614, the following rules apply in a proceeding to adjudicate a presumed parent's parentage of a child if the woman who gave birth to the child is the only other individual with a claim to parentage of the child:

- (1) If no party to the proceeding challenges the presumed parent's parentage of the child, the court shall adjudicate the presumed parent to be a parent of the child.
- (2) If the presumed parent is identified under Section 506 as a genetic parent of the child and that identification is not successfully challenged under Section 506, the court shall adjudicate the presumed parent to be a parent of the child.
- (3) If the presumed parent is not identified under Section 506 as a genetic parent of the child and the presumed parent or the woman who gave birth to the child challenges the presumed parent's parentage of the child, the court shall adjudicate the parentage of the

child in the best interest of the child based on the factors under Section 613(a) and (b).

(d) Except as otherwise provided in Section 614 and subject to other limitations in this [part], if in a proceeding to adjudicate a presumed parent's parentage of a child, another individual in addition to the woman who gave birth to the child asserts a claim to parentage of the child, the court shall adjudicate parentage under Section 613.

SECTION 609. ADJUDICATING CLAIM OF DE FACTO PARENTAGE OF CHILD

(a) A proceeding to establish parentage of a child under this section may be commenced only by an individual who:

- (1) is alive when the proceeding is commenced; and
- (2) claims to be a de facto parent of the child.

(b) An individual who claims to be a de facto parent of a child must commence a proceeding to establish parentage of a child under this section:

- (1) before the child attains 18 years of age; and
- (2) while the child is alive.

(c) The following rules govern standing of an individual who claims to be a de facto parent of a child to maintain a proceeding under this section:

(1) The individual must file an initial verified pleading alleging specific facts that support the claim to parentage of the child asserted under this section. The verified pleading must be served on all parents and legal guardians of the child and any other party to the proceeding.

(2) An adverse party, parent, or legal guardian may file a pleading in response to the pleading filed under paragraph (1). A responsive pleading must be verified and must be served on parties to the proceeding.

(3) Unless the court finds a hearing is necessary to determine disputed facts material to the issue of standing, the court shall determine, based on the pleadings under paragraphs (1) and (2), whether the individual has alleged facts sufficient to satisfy by a preponderance of the evidence the requirements of paragraphs (1) through (7) of subsection (d). If the court holds a hearing under this subsection, the hearing must be held on an expedited basis.

(d) In a proceeding to adjudicate parentage of an individual who claims to be a de facto parent of the child, if there is only one other individual who is a parent or has a claim to parentage of the child, the court shall adjudicate the individual who claims to be a de facto parent to be a parent of the child if the individual demonstrates by clear-and-convincing evidence that:

- (1) the individual resided with the child as a regular member of the child's household for a significant period;
- (2) the individual engaged in consistent caretaking of the child;
- (3) the individual undertook full and permanent responsibilities of a parent of the child without expectation of financial compensation;
- (4) the individual held out the child as the individual's child;
- (5) the individual established a bonded and dependent relationship with the child which is parental in nature;
- (6) another parent of the child fostered or supported the bonded and dependent relationship required under paragraph (5); and
- (7) continuing the relationship between the individual and the child is in the best interest of the child.

(e) Subject to other limitations in this [part], if in a proceeding to adjudicate parentage of an individual who claims to be a de facto parent of the child, there is more than one other individual who is a parent or has a claim to parentage of the child and the court determines that the requirements of subsection (d) are satisfied, the court shall adjudicate parentage under Section 613.

SECTION 610. ADJUDICATING PARENTAGE OF CHILD WITH ACKNOWLEDGED PARENT

(a) If a child has an acknowledged parent, a proceeding to challenge the acknowledgment of parentage or a denial of parentage, brought by a signatory to the acknowledgment or denial, is governed by Sections 309 and 310.

(b) If a child has an acknowledged parent, the following rules apply in a proceeding to challenge the acknowledgment of parentage or a denial of parentage brought by an individual, other than the child, who has standing under Section 602 and was not a signatory to the acknowledgment or denial:

- (1) The individual must commence the proceeding not later than two years after the effective date of the acknowledgment.
- (2) The court may permit the proceeding only if the court finds permitting the proceeding is in the best interest of the child.
- (3) If the court permits the proceeding, the court shall adjudicate parentage under Section 613.

SECTION 611. ADJUDICATING PARENTAGE OF CHILD WITH ADJUDICATED PARENT

- (a) If a child has an adjudicated parent, a proceeding to challenge the adjudication, brought by an individual who was a party to the adjudication or received notice under Section 603, is governed by the rules governing a collateral attack on a judgment.
- (b) If a child has an adjudicated parent, the following rules apply to a proceeding to challenge the adjudication of parentage brought by an individual, other than the child, who has standing under Section 602 and was not a party to the adjudication and did not receive notice under Section 603:
 - (1) The individual must commence the proceeding not later than two years after the effective date of the adjudication.
 - (2) The court may permit the proceeding only if the court finds permitting the proceeding is in the best interest of the child.
 - (3) If the court permits the proceeding, the court shall adjudicate parentage under Section 613.

SECTION 612. ADJUDICATING PARENTAGE OF CHILD OF ASSISTED REPRODUCTION.

- (a) An individual who is a parent under [Article] 7 or the woman who gave birth to the child may bring a proceeding to adjudicate parentage. If the court determines the individual is a parent under [Article] 7, the court shall adjudicate the individual to be a parent of the child.
- (b) In a proceeding to adjudicate an individual's parentage of a child, if another individual other than the woman who gave birth to the child is a parent under [Article] 7, the court shall adjudicate the individual's parentage of the child under Section 613.

SECTION 613. ADJUDICATING COMPETING CLAIMS OF PARENTAGE.

- (a) Except as otherwise provided in Section 614, in a proceeding to adjudicate competing claims of, or challenges under Section 608(c), 610, or 611 to, parentage of a child by two or more individuals, the court shall adjudicate parentage in the best interest of the child, based on:
 - (1) the age of the child;
 - (2) the length of time during which each individual assumed the role of parent of the child;
 - (3) the nature of the relationship between the child and each individual;
 - (4) the harm to the child if the relationship between the child and each individual is not recognized;
 - (5) the basis for each individual's claim to parentage of the child; and
 - (6) other equitable factors arising from the disruption of the relationship between the child and each individual or the likelihood of other harm to the child.
- (b) If an individual challenges parentage based on the results of genetic testing, in addition to the factors listed in subsection (a), the court shall consider:
 - (1) the facts surrounding the discovery the individual might not be a genetic parent of the child; and
 - (2) the length of time between the time that the individual was placed on notice that the individual might not be a genetic parent and the commencement of the proceeding.

Alternative A

- (c) The court may not adjudicate a child to have more than two parents under this [act].

Alternative B

- (c) The court may adjudicate a child to have more than two parents under this [act] if the court finds that failure to recognize more than two parents would be detrimental to the child. A finding of detriment to the child does not require a finding of unfitness of any parent or individual seeking an adjudication of parentage. In determining detriment to the child, the court shall consider all relevant factors, including the harm if the child is removed from a stable placement with an individual who has fulfilled the child's physical needs and psychological needs for care and affection and has assumed the role for a substantial period.

End of Alternatives

Legislative Note: A state should enact Alternative A if the state does not wish a child to have more than two parents. A state should enact Alternative B if the state wishes to authorize a court in certain circumstances to establish more than two parents for a child.

SECTION 614. PRECLUDING ESTABLISHMENT OF PARENTAGE BY PERPETRATOR OF SEXUAL ASSAULT.

- (a) In this section, “sexual assault” means [cite to this state’s criminal rape statutes].
- (b) In a proceeding in which a woman alleges that a man committed a sexual assault that resulted in the woman giving birth to a child, the woman may seek to preclude the man from establishing that he is a parent of the child.
- (c) This section does not apply if:
- (1) the man described in subsection (b) has previously been adjudicated to be a parent of the child; or
 - (2) after the birth of the child, the man established a bonded and dependent relationship with the child which is parental in nature.
- (d) Unless Section 309 or 607 applies, a woman must file a pleading making an allegation under subsection (b) not later than two years after the birth of the child. The woman may file the pleading only in a proceeding to establish parentage under this [act].
- (e) An allegation under subsection (b) may be proved by:
- (1) evidence that the man was convicted of a sexual assault, or a comparable crime in another jurisdiction, against the woman and the child was born not later than 300 days after the sexual assault; or
 - (2) clear-and-convincing evidence that the man committed sexual assault against the woman and the child was born not later than 300 days after the sexual assault.
- (f) Subject to subsections (a) through (d), if the court determines that an allegation has been proved under subsection (e), the court shall:
- (1) adjudicate that the man described in subsection (b) is not a parent of the child;
 - (2) require the [state agency maintaining birth records] to amend the birth certificate if requested by the woman and the court determines that the amendment is in the best interest of the child; and
 - (3) require the man pay to child support, birth-related costs, or both, unless the woman requests otherwise and the court determines that granting the request is in the best interest of the child.

[PART] 3 - HEARING AND ADJUDICATION

SECTION 615. TEMPORARY ORDER.

- (a) In a proceeding under this [article], the court may issue a temporary order for child support if the order is consistent with law of this state other than this [act] and the individual ordered to pay support is:
- (1) a presumed parent of the child;
 - (2) petitioning to be adjudicated a parent;
 - (3) identified as a genetic parent through genetic testing under Section 506;
 - (4) an alleged genetic parent who has declined to submit to genetic testing;
 - (5) shown by clear-and-convincing evidence to be a parent of the child; or
 - (6) a parent under this [act].
- (b) A temporary order may include a provision for custody and visitation under law of this state other than this [act].

SECTION 616. COMBINING PROCEEDINGS.

- (a) Except as otherwise provided in subsection (b), the court may combine a proceeding to adjudicate parentage under this [act] with a proceeding for adoption, termination of parental rights, child custody or visitation, child support, [divorce, dissolution, annulment, declaration of invalidity, or legal separation or separate maintenance,] administration of an estate, or other appropriate proceeding.

(b) A [respondent] may not combine a proceeding described in subsection (a) with a proceeding to adjudicate parentage brought under [the Uniform Interstate Family Support Act].

Legislative Note: A state should use its own terms for the proceedings identified in the bracketed language in subsection (a).

SECTION 617. PROCEEDING BEFORE BIRTH.

[Except as otherwise provided in [Article] 8, a][A] proceeding to adjudicate parentage may be commenced before the birth of the child and an order or judgment may be entered before birth, but enforcement of the order or judgment must be stayed until the birth of the child.

Legislative Note: A state should include the bracketed phrase on Article 8 if the state wishes to recognize in statute surrogacy agreements and includes Article 8 in this act.

SECTION 618. CHILD AS PARTY; REPRESENTATION.

(a) A minor child is a permissive party but not a necessary party to a proceeding under this [article].

(b) The court shall appoint [an attorney, guardian ad litem, or similar person] to represent a child in a proceeding under this [article], if the court finds that the interests of the child are not adequately represented.

Legislative Note: A state should replace the bracketed language in subsection (b) for terms of persons authorized to represent a child in a proceeding under this article with terms for persons performing similar representation under law of the state other than this act.

SECTION 619. COURT TO ADJUDICATE PARENTAGE.

The court shall adjudicate parentage of a child without a jury.

SECTION 620. HEARING[; INSPECTION OF RECORDS].

[(a)]On request of a party and for good cause, the court may close a proceeding under this [article] to the public.

[(b) A final order in a proceeding under this [article] is available for public inspection. Other papers and records are available for public inspection only with the consent of the parties or by court order.]

Legislative Note: A state should review the state's open records laws to determine if subsection (b) needs to be included or amended.

SECTION 621. DISMISSAL FOR WANT OF PROSECUTION.

The court may dismiss a proceeding under this [act] for want of prosecution only without prejudice. An order of dismissal for want of prosecution purportedly with prejudice is void and has only the effect of a dismissal without prejudice.

SECTION 622. ORDER ADJUDICATING PARENTAGE.

(a) An order adjudicating parentage must identify the child in a manner provided by law of this state other than this [act].

(b) Except as otherwise provided in subsection (c), the court may assess filing fees, reasonable attorney's fees, fees for genetic testing, other costs, and necessary travel and other reasonable expenses incurred in a proceeding under this [article]. Attorney's fees awarded under this subsection may be paid directly to the attorney, and the attorney may enforce the order in the attorney's own name.

(c) The court may not assess fees, costs, or expenses in a proceeding under this [article] against a child-support agency of this state or another state, except as provided by law of this state other than this [act].

(d) In a proceeding under this [article], a copy of a bill for genetic testing or prenatal or postnatal health care for the woman who gave birth to the child and the child, provided to the adverse party not later than 10 days before a hearing, is admissible to establish:

(1) the amount of the charge billed; and

(2) that the charge is reasonable and necessary.

(e) On request of a party and for good cause, the court in a proceeding under this [article] may order the name of the child changed. If the court order changing the name varies from the name on the birth certificate of the child, the court shall order the [state agency maintaining birth records] to issue an amended birth certificate.

SECTION 623. BINDING EFFECT OF DETERMINATION OF PARENTAGE.

(a) Except as otherwise provided in subsection (b):

(1) a signatory to an acknowledgment of parentage or denial of parentage is bound by the acknowledgment and denial as provided in [Article] 3; and

(2) a party to an adjudication of parentage by a court acting under circumstances that satisfy the jurisdiction requirements of [cite to this state's Section 201 of the Uniform Interstate Family Support Act] and any individual who received notice of the proceeding are bound by the adjudication.

(b) A child is not bound by a determination of parentage under this [act] unless:

(1) the determination was based on an unrescinded acknowledgment of parentage and the acknowledgment is consistent with the results of genetic testing;

(2) the determination was based on a finding consistent with the results of genetic testing, and the consistency is declared in the determination or otherwise shown;

(3) the determination of parentage was made under [Article] 7[or 8]; or

(4) the child was a party or was represented by [an attorney, guardian ad litem, or similar person] in the proceeding.

(c) In a proceeding for [divorce, dissolution, annulment, declaration of invalidity, legal separation, or separate maintenance], the court is deemed to have made an adjudication of parentage of a child if the court acts under circumstances that satisfy the jurisdiction requirements of [cite to this state's Section 201 of the Uniform Interstate Family Support Act] and the final order:

(1) expressly identifies the child as a "child of the marriage" or "issue of the marriage" or includes similar words indicating that both spouses are parents of the child; or

(2) provides for support of the child by a spouse unless that spouse's parentage is disclaimed specifically in the order.

(d) Except as otherwise provided in subsection (b) or Section 611, a determination of parentage may be asserted as a defense in a subsequent proceeding seeking to adjudicate parentage of an individual who was not a party to the earlier proceeding.

(e) A party to an adjudication of parentage may challenge the adjudication only under law of this state other than this [act] relating to appeal, vacation of judgment, or other judicial review.

Legislative Note: A state should include the bracketed reference to Article 8 if the state wishes to recognize in statute surrogacy agreements and includes Article 8 in this act.

[ARTICLE] 7 - ASSISTED REPRODUCTION

SECTION 701. SCOPE OF [ARTICLE]

This [article] does not apply to the birth of a child conceived by sexual intercourse [or assisted reproduction under a surrogacy agreement under [Article] 8].

Legislative Note: A state should include the bracketed phrase concerning a surrogacy agreement if the state wishes to recognize in statute surrogacy agreements and includes Article 8 in this act.

SECTION 702. PARENTAL STATUS OF DONOR.

A donor is not a parent of a child conceived by assisted reproduction.

SECTION 703. PARENTAGE OF CHILD OF ASSISTED REPRODUCTION.

An individual who consents under Section 704 to assisted reproduction by a woman with the intent to be a parent of a child conceived by the assisted reproduction is a parent of the child.

SECTION 704. CONSENT TO ASSISTED REPRODUCTION.

(a) Except as otherwise provided in subsection (b), the consent described in Section 703 must be in a record signed by a woman giving birth to a child conceived by assisted reproduction and an individual who intends to be a parent of the child.

(b) Failure to consent in a record as required by subsection (a), before, on, or after birth of the child, does not preclude the court from finding consent to parentage if:

- (1) the woman or the individual proves by clear-and-convincing evidence the existence of an express agreement entered into before conception that the individual and the woman intended they both would be parents of the child; or
- (2) the woman and the individual for the first two years of the child's life, including any period of temporary absence, resided together in the same household with the child and both openly held out the child as the individual's child, unless the individual dies or becomes incapacitated before the child attains two years of age or the child dies before the child attains two years of age, in which case the court may find consent under this subsection to parentage if a party proves by clear-and-convincing evidence that the woman and the individual intended to reside together in the same household with the child and both intended the individual would openly hold out the child as the individual's child, but the individual was prevented from carrying out that intent by death or incapacity.

SECTION 705. LIMITATION ON SPOUSE'S DISPUTE OF PARENTAGE.

(a) Except as otherwise provided in subsection (b), an individual who, at the time of a child's birth, is the spouse of the woman who gave birth to the child by assisted reproduction may not challenge the individual's parentage of the child unless:

- (1) not later than two years after the birth of the child, the individual commences a proceeding to adjudicate the individual's parentage of the child; and
- (2) the court finds the individual did not consent to the assisted reproduction, before, on, or after birth of the child, or withdrew consent under Section 707.

(b) A proceeding to adjudicate a spouse's parentage of a child born by assisted reproduction may be commenced at any time if the court determines:

- (1) the spouse neither provided a gamete for, nor consented to, the assisted reproduction;
- (2) the spouse and the woman who gave birth to the child have not cohabited since the probable time of assisted reproduction; and
- (3) the spouse never openly held out the child as the spouse's child.

(c) This section applies to a spouse's dispute of parentage even if the spouse's marriage is declared invalid after assisted reproduction occurs.

SECTION 706. EFFECT OF CERTAIN LEGAL PROCEEDINGS REGARDING MARRIAGE.

If a marriage of a woman who gives birth to a child conceived by assisted reproduction is [terminated through divorce or dissolution, subject to legal separation or separate maintenance, declared invalid, or annulled] before transfer of gametes or embryos to the woman, a former spouse of the woman is not a parent of the child unless the former spouse consented in a record that the former spouse would be a parent of the child if assisted reproduction were to occur after a [divorce, dissolution, annulment, declaration of invalidity, legal separation, or separate maintenance], and the former spouse did not withdraw consent under Section 707.

SECTION 707. WITHDRAWAL OF CONSENT

(a) An individual who consents under Section 704 to assisted reproduction may withdraw consent any time before a transfer that results in a pregnancy, by giving notice in a record of the withdrawal of consent to the woman who agreed to give birth to a child conceived by assisted reproduction and to any clinic or health-care provider facilitating the assisted reproduction. Failure to give notice to the clinic or health-care provider does not affect a determination of parentage under this [act].

(b) An individual who withdraws consent under subsection (a) is not a parent of the child under this [article].

SECTION 708. PARENTAL STATUS OF DECEASED INDIVIDUAL.

(a) If an individual who intends to be a parent of a child conceived by assisted reproduction dies during the period between the transfer of a gamete or embryo and the birth of the child, the individual's death does not preclude the establishment of the individual's parentage of the child if the individual otherwise would be a parent of the child under this [act].

(b) If an individual who consented in a record to assisted reproduction by a woman who agreed to give birth to a child dies before a transfer of gametes or embryos, the deceased individual is a parent of a child conceived by the assisted reproduction only if:

- (1) either:

- (A) the individual consented in a record that if assisted reproduction were to occur after the death of the individual, the individual would be a parent of the child; or
 - (B) the individual's intent to be a parent of a child conceived by assisted reproduction after the individual's death is established by clear-and-convincing evidence; and
- (2) either:
- (A) the embryo is in utero not later than [36] months after the individual's death; or
 - (B) the child is born not later than [45] months after the individual's death.

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